

Demystifying Birthright Citizenship

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Executive Order 14160 and the litigation it generated in Trump v. Barbara have thrust birthright citizenship back to the center of American constitutional debate. Critics of the traditional rule argue that the Fourteenth Amendment's "subject to the jurisdiction thereof" language implicitly restricts birthright citizenship in ways that exclude the American-born children of undocumented immigrants and temporary visitors. This Article clears the brush. It demystifies birthright citizenship by demonstrating that the Citizenship Clause embodies a single, coherent rule with deep roots in the common law—one that is neither riddled with ad hoc exceptions nor susceptible to the narrowing constructions its modern critics advance.

Working from an originalist methodology, this Article reconstructs the traditional rule and systematically rejects principal arguments for a more restrictive reading. Part I begins with a note on methods and how we believe an originalist analysis of the Citizenship Clause should proceed. Part II lays out the original meaning of the birthright citizenship rule and the terms of the Fourteenth Amendment that constitutionalized that rule. We then canvass the evidence in support of a more restrictive reading of the rule. Parts III and IV examine the argument that only those who have been invited into the country and are present by the country's consent are subject to its jurisdiction. Part V examines the argument that only those who have the requisite allegiance to the country are subject to its jurisdiction. None finds sufficient support in the original meaning of the text.

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INTRODUCTION

For the better part of a century, the American legal community neglected the first clause of the Fourteenth Amendment. This neglect is not a consequence of disdain or apathy, but of a collective understanding that the constitutional rule is banal. But this was not always the case for the Citizenship Clause. The Supreme Court was called upon to clarify birthright citizenship in the late nineteenth century, and it did so by decisively rejecting important aspects of the Chinese exclusion movement in *United States v. Wong Kim Ark*

in 1898.¹ In *Wong Kim Ark*, the Court affirmed that the Citizenship Clause established a rule of birthright citizenship that extended well beyond the situation of the newly freed slaves that was the immediate concern of the drafters of the Fourteenth Amendment. The American-born children of aliens were just as much natural-born citizens under the Fourteenth Amendment as were the American-born children of slaves or of other American citizens.

In recent years, however, a new movement has emerged that has sought to mystify the long-held view of the Citizenship Clause. From the perspective of this movement, the idea of birthright citizenship is a relic of the distant past with little relevance to modern concerns. It might best be regarded as feudal remnant that should be excised from, or at least minimized within, a republican polity. It might have had its uses for a young and underpopulated country, but it has more costs than benefits in an era of modern globalization. Perhaps most importantly from a legal perspective is the possibility that the Citizenship Clause is just indeterminate and sufficiently open-textured that its meaning can be reconstructed through ordinary policy devices. President Trump took action based on such arguments in the form of Executive Order 14160.² The lawfulness of that executive order was subject to review by the Supreme Court in *Trump v. Barbara*,³ but the Court's decision is unlikely by itself to fully settle the political and legal debates that have recently animated the legal community.

This Article clears the brush. The constitutional rule regarding birthright citizenship is not mysterious. Neither is the Citizenship Clause of the Fourteenth Amendment particularly unclear. In demystifying birthright citizenship, we offer a clear restatement of the longstanding rule that has been a part of American law from the country's origins. It is a rule debased by *Dred Scot* and reestablished by the text of the Fourteenth Amendment. The traditional rule is broad and inclusive, though it does have distinct limits. The Article also explains why various suggestions for construing the Citizenship Clause more narrowly do not work from an originalist perspective.

Of course, there are ways of thinking about constitutional meaning other than through the lens of originalism, but we confine our analysis here and bracket the question of whether a different interpretive approach would yield different results for our understanding of the meaning of the Citizenship

¹ *United States v. Wong Kim Ark*, 169 U.S. 649 (1898).

² Exec. Order No. 14,160, 90 Fed. Reg. 8449 (Jan. 20, 2025).

³ *Trump v. Barbara*, 607 U.S. _ (2026).

Clause. Similarly, we do not take up policy questions relating to immigration and citizenship rules, nor do we examine the policy strategies that might be available to circumscribing the impact of a birthright citizenship rule. Our concern is solely with the question of what constitutional rule was fixed in place with the adoption of the Fourteenth Amendment. The project of written constitutionalism involves a balancing of risks. Constitutional drafters must decide how much discretion to invest in future officials over some policy issues and when to tie their hands. There are risks associated with either vesting discretion or tying hands. Our concern is not whether the drafters of the Fourteenth Amendment made a good decision about how to balance those risks in adopting the rule that they did or whether policymakers today would assess the risks in the same way and adopt the same rule. Our concern is merely with what rule the framers of the Fourteenth Amendment in fact adopted.

Part I begins with a note on methods and how we believe an originalist analysis of the Citizenship Clause should proceed. Part II lays out the original meaning of the birthright citizenship rule and the terms of the Fourteenth Amendment that constitutionalized that rule. We then canvass the evidence in support of a more restrictive reading of the rule. The various possibilities for a more restrictive understanding of the Fourteenth Amendment turn on a belief that the “subject to the jurisdiction thereof” qualification for natural-born citizenship implicitly incorporated important conditions regarding who might be eligible for citizenship. The final parts of the Article examine those possibilities. We do not believe they find sufficient support to inform a proper originalist understanding of the Citizenship Clause. Parts III and IV examine the argument that only those who have been invited into the country and are present by the country’s consent are subject to its jurisdiction. Part V examines the argument that only those who have the requisite allegiance to the country are subject to its jurisdiction.

I. A NOTE ON INTERPRETIVE METHOD

In this Article, we adopt an originalist approach to the legal content of the Citizenship Clause. We take as our starting point the assumption that the

law is the original communicative content of the constitutional text.⁴ Because that content was fixed at the time that the relevant text was ratified,⁵ as interpreters we seek the set of propositions conveyed by the text to the ratifying public.⁶

In seeking the original public meaning, we are not looking for the specific goals and intentions of those who drafted the constitutional text. Once, originalists gave substantial interpretive weight to expressed views of those drafters about how the constitutional text should be applied in particular controversies.⁷ This form of originalist analysis tended to push the constitutional text into the background in order to give primary attention to what constitutional drafters might have said about the constitutional text. Moreover, it tended to discount the possibility or significance of constitutional rules in order to elevate the importance of predictions or preferences about how the constitutional text should be applied.⁸ Ronald Dworkin was particularly concerned with criticizing this reliance on what he characterized as “concrete intentions”⁹ or “expectation intentions.”¹⁰

As originalist theory has changed and matured, so too has proper originalist methodology. Reproducing the expected applications of the

⁴ Lawrence B. Solum, *Originalist Methodology*, 84 U. CHICAGO L. REV. 269, 272 (2017). See also, KEITH E. WHITTINGTON, CONSTITUTIONAL INTERPRETATION 59-61 (1999); Larry Alexander, *Originalism, the Why and the What*, 82 FORD. L. REV. 539, 540 (2013).

⁵ Whittington, CONSTITUTIONAL INTERPRETATION, supra note 4, at 56-58; Keith E. Whittington, *Originalism: A Critical Introduction*, 82 FORD. L. REV. 375 (2013); Lawrence B. Solum, *The Fixation Thesis: The Role of Historical Fact in Original Meaning*, 91 NOTRE DAME L. REV. 1 (2015).

⁶ Lawrence B. Solum, *Original Public Meaning*, 2023 MICH. ST. L. REV. 807, 826 (2023). Whether we choose to adhere to and be governed by the propositions communicated by the constitutional lawmaker is a separate question. We can interpret the original public meaning of the text even if we do not choose to follow it or apply it. Our concern in this Article is simply with correctly interpreting the original public meaning of the Citizenship Clause.

⁷ RAOUL BERGER, GOVERNMENT BY JUDICIARY (1977).

⁸ Robert H. Bork, *Neutral Principles and Some First Amendment Problems*, 47 IND. L. J. 1 (1971).

⁹ RONALD DWORKIN, A MATTER OF PRINCIPLE 48 (1985).

¹⁰ Ronald Dworkin, *The Arduous Virtue of Fidelity: Originalism, Scalia, Tribe, and Nerve*, 65 FORDHAM L. REV. 1249, 1256 (1997). Dworkin was right to resist this tendency but wrong about the implications of his critique for originalist theory. Keith E. Whittington, *Dworkin’s “Originalism”: The Role of Intentions in Constitutional Interpretation*, 62 REV. POL. 197 (2000).

constitutional text for some set of constitutional drafters is no longer a paramount goal.

As constitutional interpreters, we are required to reason from the principles that they laid down, not to take their word for the particular applications that should be made of those principles. The task of constitutional interpretation requires wisdom, learning, and discernment, but it also requires humility and discipline. The operative question for a faithful constitutional interpreter is not what would Madison do in such a situation, or even what did Madison do in such a situation, but what does the principle that Madison and his fellows wrote into the Constitution require in such a situation.¹¹

A proper application of originalist theory should take historical evidence regarding the views and understanding of the constitutional drafters and ratifiers quite seriously, but it matters how we do so. The goal of originalist constitutional interpretation is not to identify how the drafters of a constitutional provision might have wanted to see it applied in the future but to understand what rule they embodied in the constitutional text (or what rule was encompassed in the background or structure of the constitution). As lawgivers, their intentions are authoritative to the extent that they are embodied in the constitution.¹² Their ideas about how future officials should implement the law that they put in place might be informative in helping us understand the public meaning of the rule that they put in place, but those

¹¹ Keith E. Whittington, *How to Read the Constitution: Self-Government and the Jurisprudence of Originalism* 2 (Heritage Found. First Principles Series No. 5, 2006).

¹² ANTONIN SCALIA, *A MATTER OF INTERPRETATION: FEDERAL COURTS AND THE LAW* 17 (1977) [hereinafter SCALIA, *A MATTER OF INTERPRETATION*] (describing the originalist goal as one of seeking the text's "objectified intent" understood by the public rather than Congress's "actual intent," whatever that may be).

aspirations and expectations are not themselves authoritative.¹³ They certainly cannot displace the “intentions embodied in the text.”¹⁴

This is the injunction of Justice Scalia’s textualism. When Scalia argued that “It is the *law* that governs, not the intent of the lawgiver,” his point was that the legal interpreter should be looking “for a sort of ‘objectified’ intent – the intent a reasonable person would gather from the text of the law, placed alongside the remainder of the *corpus juris*.”¹⁵ Scalia particularly cautions against the risk that a search for legislative intentions as opposed to the original meaning of the text will result in the words of individual lawmakers being substituted for the words that the legislature as a lawmaking body actually voted on and adopted.¹⁶ Rather than treating “the law promulgated by Congress” as authoritative, a court might find itself taking as authoritative “the statement of a single committee of a single house” or even an isolated statement of a single member.¹⁷

Textualist approaches to both statutes and constitutions have emphasized that prioritizing background purposes over the actual language incorporated into the text of the law risks undoing the compromises needed to create laws in the first place and the specific choices that lawmaking bodies have made about how purposes are to be achieved. Judge Frank Easterbrook noted that the “judicial pursuit of the ‘values’ or aims of legislation is a sure way of defeating the original legislative plan.”¹⁸ Lawmaking bodies, whether constitutional conventions or ordinary legislatures, can seek to advance their policy goals either by delegating discretionary authority to future policymakers to design the necessary implementing rules or by picking the rules themselves.

¹³ See RANDY BARNETT, *RESTORING THE LOST CONSTITUTION* 93-94 (2d ed. 2014); JACK BALKIN, *LIVING ORIGINALISM* 13 (2011); William Baude, *Is Originalism Our Law?*, 115 COLUM. L. REV. 2349, 2356 (2015); Stephen E. Sachs, *Originalism as a Theory of Legal Change*, 38 HARV. J. L. & PUB. POL’Y. 817, 838-845 (2015).

¹⁴ KEITH E. WHITTINGTON, *CONSTITUTIONAL INTERPRETATION* 179 (1999). See also Christopher R. Green, *Originalism and the Sense-Reference Distinction*, 50 ST. LOUIS U. L.J. 555 (2006); Richard Elkins, *Objects of Interpretation*, 32 CONST. COMMENT. 1 (2017); Lawrence B. Solum, *Original Public Meaning*, 2023 MICH. ST. L. REV. 807 (2023); Aileen Kavanaugh, *Original Intention, Enacted Text, and Constitutional Interpretation*, 47 AM. J. JURIS. 255 (2002).

¹⁵ SCALIA, *A MATTER OF INTERPRETATION* 17.

¹⁶ *Id.*, at 38.

¹⁷ *Id.*, at 31.

¹⁸ Frank H. Easterbrook, *Statutes’ Domains*, 50 U. CHICAGO L. REV. 533, 546 (1983).

It pursues Goal *X* by Rule *Y*. The selection of *Y* is a measure of what Goal *X* was worth to the legislature, of how best to achieve *X*, and of where to stop in pursuit of *X*. Like any other rule, *Y* is bound to be imprecise, to be over- and under-inclusive. This is not a good reason for a court, observing the inevitable imprecision, to add to or subtract from Rule *Y* on the argument that, by doing so it can get more of Goal *X*. The judicial selection of means to pursue *X* displaces and directly overrides the legislative selection of ways to obtain *X*.¹⁹

The text of the law not only reflects the deliberative choice of the legislature about how best to pursue its goals, but it also reflects the compromises that were necessary to move a law through the lawmaking process. Taking the words of the policy's strongest advocates in a legislative debate as functionally equivalent to the meaning of the words actually adopted in the statute itself shortchanges other crucial players in the lawmaking process, including not least the pivotal members whose support was necessary to give the law authoritative force but who might have been more cautious or moderate in their preferences than were the law's chief sponsors.²⁰ A particular legislator might have been the motivating force to pushing a policy forward, but that does not mean that the law as written and as adopted through the larger lawmaking process matched that legislator's policy ideal point. In the context of ordinary legislation, minority-protecting structures like bicameralism, Senate apportionment, filibuster rules, and presidential presentment shape legislative outcomes in meaningful ways that often frustrate the desires and preferences of the prime movers of policies.²¹ In the constitutional context,

¹⁹ *Id.*

²⁰ See, e.g., McNollgast, *Positive Canons: The Role of Statutory Interpretation*, 80 GEO. L. J. 705 (1992) ("an ardent supporter's statements during the debate are not a good guide for the purposes of interpretation. Because an ardent supporter is rarely pivotal, that legislator's views, goals, and visions of the legislation are rarely representative of the views, goals, and visions that will pass."); Daniel B. Rodriguez & Barry R. Weingast, *The Paradox of Expansionist Statutory Interpretations*, 101 NW. U. L. REV. 1207, 1222 (2007) ("In the end, our prescription flips the typical approach to interpreting legislative history by steering attention away from the expressed views of ardent supporters toward those of pivotal, moderate legislators and ardent supporters' costly signals.").

²¹ See John F. Manning, *Textualism and the Equity of the Statute*, 101 COLUMB. L. REV. 1, 74 (2001) ("the process seems to cut decidedly in favor of respecting the lines of legislative compromise"); Caleb Nelson, *What is Textualism?*, 91 VA. L. REV. 347, 417 (2005)

supermajority rules for both congressional passage and state ratification have similar compromise-forcing effects that are likely to be reflected in the choice of constitutional language.²²

Centering the text in an originalist theory of constitutional interpretation is also consistent with recognizing that the Constitution is to an important degree a legal document. As such, many of its provisions are best understood as a text written by lawyers for a legal audience. When we are interpreting a legal document, “ordinary legal meaning is to be expected.”²³ As a “legal document,” the Constitution uses language “that would have been quite familiar to lawyers” and that should be read against the backdrop of the “legal traditions and conventions of the time.”²⁴ The Constitution is written in a “legal language,” and thus must be interpreted accordingly if we are to correctly understand the meaning of those who created it and the rules that they were attempting to communicate.²⁵ Notably, as Justice Felix Frankfurter once observed, “words of art bring their art with them,” and thus “if a word is obviously transplanted from another legal source, whether the common law or other legislation, it brings the old soil with it.”²⁶ When reading the text of the Constitution, the interpreter must take care to understand the legal sources upon which the constitutional text itself draws.

An originalist theory sensitive to the idea that the constitutional text embodies rules and standards and not simply lists of specific applications must necessarily grapple with the proper scope of the rules embodied in the constitutional text. Frederick Schauer characterizes this as the problem of

(“textualists may believe that a relatively rule-based approach to statutory interpretation is likely to bring judges closer to that goal than the more holistic techniques favored by intentionalists.”).

²² See John O. McGinnis and Michael B. Rappaport, *Our Supermajoritarian Constitution*, 80 TEX. L. REV. 703, 802 (2002) (“only the original meaning of a constitutional provision has passed through the double supermajoritarian filter and has the strong presumption of correctness that such a process provides”).

²³ ANTONIN SCALIA & BRYAN GARNER, *READING LAW* 73 (2012).

²⁴ Gary Lawson and Guy Seidman, *Originalism as a Legal Enterprise*, 23 CONST. COMMENT. 47, 73 (2006). See also, Stephen E. Sachs, *Originalism as a Theory of Legal Change*, 38 HARV. J. LAW & PUB. POL’Y. 817, 878 (2015).

²⁵ John O. McGinnis and Michael B. Rappaport, *What is Original Public Meaning?*, 76 ALA. L. REV. 223, 282 (2024).

²⁶ Felix Frankfurter, *Reflections on the Reading of Statutes*, 47 COLUM. L. REV. 527, 537 (1947).

identifying the “scope of coverage” of a legal or constitutional rule.²⁷ “Even before we see what a rule *does*, we must make the initial determination of whether it *applies* at all – whether we are within its scope of operation.”²⁸ Identifying the coverage of a rule at least points us toward its boundaries. Moreover, in the context of legal rules and the terms used to express them, “we would normally expect the technical term to incorporate within its meaning those doctrinal nuances that determine the coverage of the term.”²⁹ Which is to say, “we would ordinarily expect exceptions to be built into the meaning of a primary technical term.”³⁰ The meaning of the text expressing a legal rule incorporates an expression of the boundaries of the rule, of how to identify what is excepted from the application of the rule. There might be occasions, however, when a lawmaker wants to carve out additional exceptions from the activities that would otherwise be within the scope of the articulated rule. “Only where the primary designation of the scope of a legal rule *includes* rather than *excludes* some item that its creators wish not to include is it necessary to add an exception.”³¹

In the oral arguments in *Trump v. Barbara*, Justice Clarence Thomas asked, “what is the underlying rule of law” that explains the so-called “exceptions” to the birthright citizenship rule.³² Demystifying birthright citizenship requires a good answer to Justice Thomas’s question. The possibility that birthright citizenship is riddled with ad hoc exceptions creates confusion about its logic and meaning. Even if those exceptions are a “closed set to an otherwise universal rule” such that new exceptions should not be created by presidents or courts, it would still be troubling if that closed set was merely the product of past policy choices about whom to exclude from citizenship.³³ Fortunately that is not the case. The traditional rule of birthright

²⁷ Frederick Schauer, *The Boundaries of the First Amendment: Preliminary Exploration of Constitutional Salience*, 117 HARV. L. REV. 1765, 1171 (2004).

²⁸ *Id.*, at 1769.

²⁹ Frederick Schauer, *Exceptions*, 58 U. CHICAGO L. REV. 871, 877 (1991).

³⁰ *Id.*

³¹ *Id.*, at 874.

³² Transcript of Oral Argument at 83, *Trump v. Barbara*, (No. 25-365) (U.S. argued Apr. 1, 2026) (statement of Thomas, J.), https://www.supremecourt.gov/oral_arguments/argument_transcripts/2025/25-365_l6gn.pdf.

³³ Transcript of Oral Argument at 81, *Trump v. Barbara*, (No. 25-365) (U.S. argued Apr. 1, 2026) (statement of Cecilia D. Wang),

citizenship as embodied in the Fourteenth Amendment has an internal logic that explains its coverage. There is a single rule embodied in the constitutional text that guides the interpreter in identifying both those who are included within its terms and those who are excluded by its terms. The so-called “exceptions” are simply examples of particular applications of the general rule, in this case applications that express the limits of the scope of the rule.³⁴

A peculiar interpretive question is raised by the Citizenship Clause. Here, originalists must ascertain the legal content of a relevant common law rule. At first blush, it is perfectly fair to question why someone should care about an original English rule, correctly excavated and carefully studied. Perhaps the true rule is one that was understood differently at the time of the relevant constitutional provision’s adoption. Indeed, if the common law rule changed, the method of excavation might counsel against a formalistic accounting and application of an original rule. As constitutional structures changed over time one naturally expects common law learning to shift too.

But we are confronted by the significance of what may be styled “formative precedents.” Be them treatise-writers, formal reports, or Coke’s opinion in *Calvin’s Case* (which was one of many), these formative precedents are read by future generations and form the basis of collective legal learning.³⁵ They are mapped onto different future circumstances, often without sober reflections upon the underlying constitutional logic that might mesh with or

https://www.supremecourt.gov/oral_arguments/argument_transcripts/2025/25-365_l6gn.pdf.

³⁴ Of course, once we understand the logic of the rule, even these “exceptions” can be revisited as to whether they represent correct applications of the rule in question. In the case of native birth citizenship, for example, there was broad agreement about the content and logic of the rule embodied in the language of the Citizenship Clause (those born subject to American law on American soil are native-born citizens), but disagreement about whether we should want to adopt that rule (opponents of the Fourteenth Amendment thought not) and some disagreements about its implications in particular circumstances (were members of Native American tribes subject to American law or not?). If we were to determine, for example, that foreign ambassadors were in fact subject to domestic law, that would tell us that the rule should apply to them, even if historically foreign ambassadors were a classic exception to the rule. They were a frequently cited exception precisely because the factual predicate for the application of the rule was thought to be otherwise – that such ambassadors were not subject to American law. For the ambassadorial exception’s common law roots, see *infra*, notes 195-202 and accompanying text.

³⁵ Thomas Jefferson, for example, considered Coke’s *Calvin’s Case* to be the sole source of the rule, notwithstanding whatever former or subsequent common-law sources might have existed. See *infra*, notes 216-20 and accompanying text.

contradict the past. In the past, people did bad history, just as people do bad history today. This means that a legal concept with a feudal memory might indeed be intercepted (or embraced) by a new republican system of government.³⁶ It also might mean that the legal community at one point in time misunderstands the law of the past. This drift may be progress; it may also be unintended rupture.

From an originalist standpoint, seeking a common law rule should require no creative interpretation of primary sources. There should be no subtlety if subtlety was not originally understood and traditionally practiced. Coke warns his readers in *Calvin's Case* "to be very wary" of a "caveat the law giveth, *ubi lex non distinguit nec nos distinguere debemus*."³⁷ Where law makes no distinction, we must not distinguish. The originalist enterprise is one of recovering what the law was. In doing originalism one must neither impute false logic nor needless convolution to history. If the history is simple, say so. If the history is complex, explain why. Obfuscation, equivocation, and false distinctions are novelties. They are not law.

This attention to the legal content of a common law rule is not a departure from our focus on original public meaning but an application of it. When the constitutional text employs a legal term of art, the relevant inquiry is not what the underlying common law rule "really" was as a matter of pure legal history, judged by the standards of modern scholarship, but what content that term conveyed to the legal and lay public who ratified it. The original common law learning matters because, and to the extent that it was the learning that the drafters and ratifiers brought to the text. Formative precedents like *Calvin's Case* are authoritative here not as freestanding sources of binding law but as the materials through which the relevant legal community came to understand what a term such as "jurisdiction" meant and what it covered. In the case of birthright citizenship, as we argue below, these two inquiries point in the same direction, because the traditional rule was neither obscure nor unsettled at the time the Fourteenth Amendment was framed; the received understanding and the underlying rule coincide.

In considering the pitfalls of capturing the meaning of a common law rule, we are satisfied that birthright citizenship is not particularly complex as

³⁶ Whether it was, we contend, depends less on our present feeling about what republican government ought to be than what was congenial to republicanism when the Constitution was ratified.

³⁷ *Calvin's Case* (1608), 7 Co. Rep. 5b.

a historical matter. Nor did it drift significantly over time. Rather, the most dramatic departure from the traditional birthright rule was *Dred Scott* and what we call the “Southern rule.”³⁸ Both the case and the rule are rejected by the Fourteenth Amendment. Today, however, the traditional common law rule is clouded by an emergent literature that approaches the common law without proper methodological and historical caution. An originalist recovery of common law cannot cloak present desires in the authoritative veneer of history’s objectivity. Presentism is ever-looming. Without a dedication to historical context, the authority and objectivity of the past cannot attach to an originalist project.

A concern with how the coverage of legal rules and exceptions to those rules are identified is particularly salient in the context of birthright citizenship. It is traditional for the general principle of birthright citizenship to be articulated as something like “everyone born in the country” and then to recognize that there are some “exceptions” to that principle. Attorney General Edward Bates dedicated an opinion on citizenship to that question of exceptions in order to counter the claim that race was just such an exception to the general principle “that every person in this country is born a citizen.”³⁹ Bates contended that there were “but a few exceptions commonly made” to the “general rule,” and that race was not properly among them.⁴⁰

A critical question for interpreting the Citizenship Clause is how best to account for these so-called exceptions. Are they exceptions in the strict sense in that they are carved out from the natural scope of the citizenship rule, or are they merely indicative of the boundary of the rule? The text of the Citizenship Clause specifically makes such an exception by including a second condition.⁴¹ A subclass of “all those born . . . in the United States” are excepted

³⁸ See *infra* notes 360-87 and accompanying text.

³⁹ *Citizenship*, 10 Op. Att’y Gen. 382, 396 (1862).

⁴⁰ *Id.*

⁴¹ Arguably, this additional language was not necessary. Although in ordinary language, “all those born . . . in the United States” would have been understood to be comprehensive of literally everyone, in ordinary *legal* language it would have been understood as incorporating the nuances of the preexisting common law rule that recognized some exceptions. Leaving out the “subject to the jurisdiction” language might well have invited interpretive uncertainty about whether the Citizenship Clause was altering rather than affirming the traditional rule. Making the scope condition explicit in the constitutional text was clearer and avoided that potential source of uncertainty. Adding specific language recognizing the exclusion, moreover, has the benefit of establishing a rule that accounts for the exceptions. The alternative might instead have encouraged later

from the coverage of that rule because they are not “subject to the jurisdiction thereof.” That is the only exception to the general principle that is recognized explicitly in the text. A proper interpretation of the constitutional provision should be able to draw out the principle that accounts for the “few exceptions commonly made” and that is consistent with the constitutional text actually used to express that principle. The constitutional text communicates an “underlying rule of law” that excepts some individuals from the scope of the “general rule.” In Schauer’s terms, the language “subject to the jurisdiction” incorporates within itself the “doctrinal nuances” that identify who is being excluded. The virtue of using a legal term of art like “jurisdiction” in a legal text is that it is designed to convey its scope to the legal community. Moreover, it does so without the need of the assistance of supplemental terms, which is of special importance since the Constitution does not in fact use any additional terms to further modify or qualify the scope of “jurisdiction.” No additional textual exception was added to further exclude some class of individuals who were otherwise included within the scope of “jurisdiction.”⁴² The ordinary legal term of “jurisdiction” was chosen by the constitutional drafters to do the all the work of identifying the “exception” to the general rule of native birth.⁴³

interpreters to imagine that there were implicit exceptions to the universal language but that those exceptions were not a closed set established by the text itself but rather were an open set to be fleshed out by later policymakers. The text tells us that the exceptions are not an open set; the exceptions are those groups of people identified by the scope of the rule of “jurisdiction.”

⁴² Pointing to the text of the Thirteenth Amendment that refers to “any place subject to their jurisdiction,” Philip Hamburger has suggested that the lack of a reference to “place” in the Fourteenth Amendment must imply jurisdiction means something else in the Fourteenth Amendment. Philip Hamburger, *Allegiance, Birthright, and Citizenship*, Law & Liberty (April 9, 2026), <https://lawliberty.org/allegiance-birthright-and-citizenship/>. The statutory language of the nineteenth century instead indicates that there was no difference between using places and persons in this context. See James A. Heilpern and Keith E. Whittington, “*Subject to the Jurisdiction*” as Legal Text (2026). Moreover, there is an internal textual reason for preferring not to repeat the language of the Thirteenth Amendment in the Fourteenth since the first condition of being born “in the United States” delimits the set of places “subject to the jurisdiction” of the United States.” The Thirteenth Amendment covers more places than does the Citizenship Clause taken in its entirety.

⁴³ Note here an implication of this textualist approach to understanding the constitutional rule. It is clear that the framers of the Fourteenth Amendment understood that there would be an ambassadorial exception to the native-birth citizenship rule. One might consider this to be a freestanding, bedrock feature of the constitutional rule given that widespread expectation. But the text references jurisdiction, not ambassadors, and the

II. THE FOURTEENTH AMENDMENT'S BIRTHRIGHT CITIZENSHIP RULE

The Citizenship Clause of the Fourteenth Amendment codifies the longstanding birthright citizenship rule that was inherited from the English common law and integrated into American law.⁴⁴ Chief Justice Roger Taney's opinion in the *Dred Scott* case had significantly unsettled the law by asserting that there was a new exception to the general birthright citizenship rule, an exception based on race and a historic status of involuntary servitude.⁴⁵ The Reconstruction Republicans swept away the legal uncertainty wrought by Taney and reaffirmed the traditional rule.⁴⁶ Anyone born within the United States and under the governing authority of the United States was recognized as a natural-born citizen of the United States.⁴⁷

assumption about why ambassadors were excepted was explained in terms of the jurisdiction of domestic law. At the time everyone understood that ambassadors were not subject to the jurisdiction, but a textualist approach emphasizes that this is a contingent, factual matter and not a bedrock feature of the rule. The ambassadorial exception depends on the factual predicate that ambassadors are not subject to the law. If they are made subject to the law, the application of the rule would change. And at common law, such circumstances existed. *See infra* notes 194-202 and accompanying text.

⁴⁴ See Keith E. Whittington, *By Birth Alone: The Original Meaning of Birthright Citizenship and Subject to the Jurisdiction of the United States*, 49 HARV. J.L. & PUB. POL'Y 460 (2026); Michael D. Ramsey, *Originalism and Birthright Citizenship*, 109 GEO. L.J. 405 (2020); Michael D. Ramsey, *Birthright Citizenship Re-Examined*, 101 NOTRE DAME L. REV. (forthcoming 2026); Benjamin Keener, *Calvin's Case and Birthright Citizenship*, 174 U. PA. L. REV. ONLINE (2025); ANNA O. LAW, *MIGRATION AND THE ORIGINS OF AMERICAN CITIZENSHIP* 216 (Oxford Univ. Press 2026); James C. Ho, *Defining "American": Birthright Citizenship and the Original Understanding of the 14th Amendment*, 9 GREEN BAG 2d 367 (2006); John Yoo and Robert Delahunty, *The Originalist Case for Birthright Citizenship*, 67 NATIONAL AFFAIRS 1 (2025).

⁴⁵ *Dred Scott v. Sandford*, 60 U.S. (19 How.) 393 (1857); *see* Whittington, *supra* note 44, at 488-95.

⁴⁶ See Whittington, *supra* note 44, at 495-500; Ramsey, *Originalism and Birthright Citizenship*, *supra* note 44, at 436-57; Evan D. Bernick, Paul Gowder & Anthony Michael Kreis, *Birthright Citizenship and the Dunning School of Unoriginal Meanings*, 111 CORNELL L. REV. ONLINE 101 (2025).

⁴⁷ See Whittington, *supra* note 44, at 462-64; Ho, *supra* note 44, at 369-71; Gerard N. Magliocca, *Indians and Invaders: The Citizenship Clause and Illegal Aliens*, 10 U. PA. J. CONST. L. 499, 503-05 (2008); Bethany R. Berger, *Birthright Citizenship on Trial: Elk v. Wilkins and United States v. Wong Kim Ark*, 37 CARDOZO L. REV. 1185, 1187-90 (2016).

Both components of the traditional common law rule do important work in delimiting who is born into American citizenship.⁴⁸ The American rule of natural-born citizens followed the English rule of *jus soli*, or the right of the soil.⁴⁹ One had to be born on American soil, within the territorial boundaries of the United States, to be a natural-born citizen. A child born abroad even of parents who were American citizens is not, by that rule,⁵⁰ a natural-born citizen. The common law rule had also recognized that a small set of individuals might be born on English soil and yet still not be a natural-born English subjects,⁵¹ and the American rule inherited that limitation. Individuals who were born within the territory but not subject to the sovereign's law and within the sovereign's protection were excepted from the general rule of birthright citizenship.⁵² The two components of the Fourteenth Amendment's citizenship clause map those two traditional common law elements, requiring both birth in the territory and birth subject to the jurisdiction.⁵³

This rule was established by the Exchequer Chamber in England in *Calvin's Case* in 1608.⁵⁴ The case was brought in order to resolve the legal status of Scottish subjects born after the Scottish King James VI assumed the English crown to become King James I in 1603. The case of the "*postnati*" had immediate significance for the unification of the two kingdoms, but it had long-term significance for establishing the rule for distinguishing between natural subjects and foreigners in English law. The case decisively established that the

⁴⁸ See Whittington, *supra* note 44, at 463–78; Keener, *supra* note 44, at 7–10; Magliocca, *supra* note 47, at 500–03.

⁴⁹ As a term of art, "*jus soli*" only emerged in the mid-19th century. Despite the complicated history of the term, a connection to "soil" is a useful but reductive summary of the common law rule. The term is deployed in *United States v. Wong Kim Ark*, however, so we comfortably but cautiously use it here. See generally, Nathan Perl-Rosenthal & Sam Erman, *Inventing Birthright: The Nineteenth-Century Fabrication of jus soli and jus sanguinis*, 42 LAW & HIST. REV. 421 (2024).

⁵⁰ For a discussion of this phenomenon and the statutes that supplemented the rigid common law rule, see *infra* notes 184–195; 202–21 and accompanying text.

⁵¹ See *infra* notes 177–83 and accompanying text.

⁵² See Keener, *supra* note 44, at 10–19 (analyzing enemy-alien and ambassador exceptions); Magliocca, *supra* note 47, at 503–08; Berger, *supra* note 47, at 1194–98; Whittington, *supra* note 44, at 474–88.

⁵³ See Whittington, *supra* note 44, at 462–63; Ramsey, *Originalism and Birthright Citizenship*, *supra* note 44, at 405–08; Ramsey, *Birthright Citizenship Re-Examined*, *supra* note 44 (manuscript at 103–06); Ho, *supra* note 44, at 367–69.

⁵⁴ *Calvin's Case* (1608), 7 Co. Rep. 1a.

Scottish *postnati* were legally natural-born English subjects as a consequence of being born under the rule of the same king who governed England.⁵⁵ Scotland and England had been legally united by the Scottish king's ascension to the English throne. Of more importance for the Americans centuries later, *Calvin's Case* established that those born within the English king's North American colonies were likewise English subjects by virtue of those circumstances of birth and after the Revolution that those born within the new United States were similarly natural-born American citizens.

Sir Edward Coke's report of *Calvin's Case* is the most well-known version of the decision. Coke's core principle was stated most compactly, "any place within the King's dominions may make a subject born, but any place within the King's dominions without obedience can never produce a natural subject."⁵⁶ This, of course, was not said to be a new rule established in 1608 but was instead the longstanding law of England now more clearly articulated and applied in the usual common law fashion.⁵⁷ In explaining the rule, Coke relied on several key concepts. Notably, the idea that everyone within the realm owed obedience or "*ligeance*" to the governing authority, the king. Subjects owed a natural obedience, while aliens owed a local obedience, with the primary difference being that local *ligeance* attached only so long as the alien was within the king's dominion and from a country at peace with England.⁵⁸ This duty of obedience arises from the fact of land being within the king's governing authority and protection.⁵⁹ Being "under the obedience," under the "power," and under the "*liegeance*" of the king were all the same thing.⁶⁰ Individuals upon land subject to the sovereign's governance and protection were by definition in "obedience" to that sovereign.

This basic rule articulated by Coke had several implications. First, the parent's national or political status did not determine the natural-birth status of the child; the governing circumstances of the place of birth determined whether the child is a natural alien or a natural subject.⁶¹ Thus, if a Frenchman has a child while in England, the child is a natural-born English subject. While

⁵⁵ *Id.*, at 10b.

⁵⁶ *Id.* at 18b.

⁵⁷ For those sources, see *infra* Part III.

⁵⁸ See *infra* notes 226-30 and accompanying text.

⁵⁹ See *infra* note 181 and accompanying text.

⁶⁰ *Calvin's Case*, 7 Co. Rep., at 5b.

⁶¹ See *infra* Part III.

that alien was in England, his child or “issue is a natural born subject.”⁶² Or, as Solicitor General Francis Bacon had stated the point as an advocate arguing the case, “If he be born in England it is no matter though his parents be Spaniards, or what you will.”⁶³ Second, the rule about aliens had a reciprocal implication for subjects traveling abroad. A child born of English parents in a foreign country was not, under the common law, a natural-born English subject. The child’s place of native birth, not the child’s parentage, determined subject status. This common-law baseline was routinely supplemented by statute in both England and the United States, but children born abroad to American parents are natural-born citizens by virtue of statute not by virtue of the common law or the Fourteenth Amendment’s codification of that common law rule. Third, the duty of obedience only follows from the king’s actual governance, of bringing a claimed territory into “actual obedience.”⁶⁴ The king might claim a territory as properly his own, and yet if he cannot or does not actually govern that territory and its inhabitants those inhabitants are aliens to him and do not owe him even local obedience.⁶⁵ Fourth, since it is “neither the climate nor the soil, but *ligeantia* and *obedientia* that make the subject born,” there are circumstances when even those born in England are still not natural-born English subjects.⁶⁶ Namely, an invading army that temporarily seizes a “town or fort” in England and a foreign ambassador serving in England cannot produce natural-born English subjects.⁶⁷ Neither the invading army nor the ambassador owed even local obedience to the English king; they were not within his governing authority or protection even while on English soil. They were addressed as matters of foreign affairs and equity – whether martial or diplomatic – and not as matters of domestic law. As Coke elaborated elsewhere, the definition of an “alien” is simply someone born “out of the *liegeance* of the king,” which is to say, someone “borne in a

⁶² *Calvin’s Case*, 7 Co. Rep., at 6b.

⁶³ Francis Bacon, *Speech of Lord Bacon, as Counsel for Calvin, in the Exchequer Chamber*, in A COMPLETE COLLECTION OF STATE TRIALS AND PROCEEDINGS FOR HIGH TREASON AND OTHER CRIMES AND MISDEMEANORS FROM THE EARLIEST PERIOD TO THE YEAR 1783 VOLUME II 595 (Thomas Howell ed., 1816) [hereinafter 2 HOWELL’S STATE TRIALS].

⁶⁴ *Calvin’s Case*, 7 Co. Rep. at 8a.

⁶⁵ See *infra*, note 183 and accompanying text.

⁶⁶ *Calvin’s Case*, 7 Co. Rep. at 6a.

⁶⁷ *Id.*

strange country under the obedience of a strange prince.”⁶⁸ Being born in England and under the obedience of the English king necessarily meant one was “no stranger born;”⁶⁹ such are “natural subjects, and no aliens.”⁷⁰

This foundational legal rule was summarized clearly by William Blackstone in his *Commentaries* that was the standard legal text in America at the time of the founding. As he stated the rule, “natural-born subjects are such as are born within the dominions of the crown of England; that is, within the ligeance, or as it is generally called, the allegiance of the king; and aliens, such as are born out of it.”⁷¹ Blackstone translated the legal idiom of the early seventeenth century into the legal idiom of the late eighteenth century by simply noting that “allegiance” was the more modern term for the legal circumstances that Coke had described. But he did not depart at all from Coke’s substance. “Allegiance” was the duty that followed from being within the governing authority and protection of the sovereign.⁷² The subject owed allegiance to the sovereign either by birth or explicit oath,⁷³ but the alien owed allegiance to the sovereign merely by entering the realm and “for so long time as he continues within the king’s dominion and protection.”⁷⁴ In short, “the children of aliens, born here in England, are generally speaking, natural-born subjects, and entitled to all the privileges as such,” with “generally speaking” capturing the familiar caveats of ambassadors and invading armies.⁷⁵

Those so-called exceptions or caveats to the general rule of birthright citizenship simply make explicit the appropriate application of the rule to some uncommon but hardly unknown circumstances. The question for applying the rule is always whether a child is born under the sovereign’s actual governing authority. In most circumstances, the answer to that question is easy and requires knowing no more than the time and place of birth. Since “neither the climate nor the soil” are doing the essential work, however, one

⁶⁸ EDWARD COKE, THE FIRST PART OF THE INSTITUTES OF THE LAWS OF ENGLAND *129a (London 1633).

⁶⁹ *Calvin’s Case*, 7 Co. Rep. at 25a.

⁷⁰ *Id.*, at 5b.

⁷¹ 1 WILLIAM BLACKSTONE, COMMENTARIES ON OF THE LAWS OF ENGLAND *366 (1765) [hereinafter 1 BLACKSTONE]

⁷² *Id.*

⁷³ *Id.*, at 368-369.

⁷⁴ *Id.*, at 370.

⁷⁵ *Id.*, at 373.

must in some exceptional circumstances know a bit more in order to apply the rule correctly.⁷⁶

The “underlying rule of law”⁷⁷ tells us who is “within its scope of operation.”⁷⁸ And that underlying rule of law is the two-part test of native-birth and birth in circumstances that makes one subject to the laws of the United States. Foreign ambassadors within the boundaries of the United States are nonetheless not governed by the United States but rather are governed by a foreign sovereign.⁷⁹ Invading armies who temporarily occupy some American territory are nonetheless not governed by the United States but rather are governed by a foreign sovereign.⁸⁰ In the unique circumstances of the United States, a third application of the underlying rule has been particularly salient in the context of Native American tribes. The United States, unlike England, might not have much experience with invading armies, but it does have experience with more durable “quasi-foreign nations” existing within the territory of the United States and addressed through the military and diplomatic tools of international relations.⁸¹ The members of those

⁷⁶ *Calvin’s Case*, 7 Co. Rep. at 6a.

⁷⁷ Transcript of Oral Argument at 83, *Trump v. Barbara*, (No. 25-365) (U.S. argued Apr. 1, 2026) (statement of Thomas, J.), https://www.supremecourt.gov/oral_arguments/argument_transcripts/2025/25-365_l6gn.pdf.

⁷⁸ Schauer, *The Boundaries of the First Amendment*, *supra* note 27, at 1769.

⁷⁹ The standard source for this formal rule at the time of the Fourteenth Amendment was Wheaton’s *Elements of International Law*. “From the moment a public minister enters the territory of the State to which he is sent, during the time of his residence, and until he leaves the country, he is entitled to an entire exemption from the local jurisdiction, both civil and criminal.” Surrounding this idea is the “fiction of extra-territoriality” by which the minister “is supposed still to remain within the territory of his own sovereign” even though “actually in a foreign country.” HENRY WHEATON, *ELEMENTS OF INTERNATIONAL LAW* § 224 (8th ed. 1866). Kent had said the same, observing that “ambassadors form an exception to the general case of foreigners resident in the country, and they are exempted absolutely from all allegiance, and from all responsibility to the laws of the country to which they are deputed.” Kent, *infra* note 87, at *1:38. Note Kent’s point that the “general case” that applied to all other foreigners within the country is that they owe a local “allegiance” to the local sovereign.

⁸⁰ It is perhaps worth emphasizing that a colloquial “invasion” does not have this legal effect. The common law is specifically concerned with whether the arrival of armed foreigners has taken some territory out of the governing control of the sovereign such that those foreigners are not subject to the sovereign’s law and cannot claim the sovereign’s protection from violence or other violations of their rights.

⁸¹ CONG. GLOBE, 39th Cong., 1st Sess. 2890 (1866) (statement of Sen. Howard).

“domestic dependent nations” were said not to be governed by the United States but rather were governed by a “quasi-foreign” sovereign.⁸² Knowing whether the parent of newborn was an alien or a citizen was not itself legally significant to knowing how the rule applied to the child. The legally relevant question was always which sovereign governed and protected the child at the time of the child’s birth.

This English rule remained foundational in the United States after the American Revolution. As liberals and as revolutionaries, Americans rejected a further element of the English law regarding natural-born subjects. The duty of obedience that a natural-born subject owed the English sovereign was not just extraterritorial; it was also perpetual. English subjects carried that duty with them when they left England, and they could never unilaterally free themselves of it. “Once an Englishman, always an Englishman.”⁸³ The United States, however, adopted the “anomalous position” that the duty of obedience to one’s native land could be extinguished simply by the choice of the individual.⁸⁴ The right of expatriation was a sharp departure from the then-universal rule regarding how durable the natural obedience might be, but it did not affect the question of how that legal status of natural obedience was established in the first place.

American sources from the founding to the Civil War affirmed that the “law of the United States of America agrees” with the traditional common law of England regarding birthright citizenship.⁸⁵ The leading treatise of American law throughout these decades was authored by James Kent.⁸⁶ Kent gave a straightforward restatement of the English common law rule while observing that this was the governing rule of the United States as well. In doing so, he further modernized the language of Coke and Blackstone. “Natives are all persons born within the jurisdiction and allegiance of the United States.”⁸⁷ Rather than the English “dominions,” Kent substituted the American “jurisdiction.” Rather than Coke’s “ligeance,” Kent kept Blackstone’s

⁸² *Cherokee Nation v. Georgia*, 30 U.S. (5 Pet.) 1, 17 (1831) (Marshall, C.J.) (“They may, more correctly, perhaps, be denominated domestic dependent nations.”).

⁸³ EDWARD CHANNING, *THE JEFFERSONIAN SYSTEM* 170 (1906).

⁸⁴ *Id.*

⁸⁵ ALEXANDER COCKBURN, *NATIONALITY* 12 (London, William Ridgway 1869).

⁸⁶ Judith S. Kaye, *Commentaries on Chancellor Kent*, 74 CHI. KENT L. REV. 11, 29 (1998). (James Kent was “referred to as an American Blackstone” and “the founder of American equity jurisprudence”).

⁸⁷ 2 JAMES KENT, *COMMENTARIES ON AMERICAN LAW* *39 (W. Osborn 5th ed. 1844).

“allegiance.” But his gloss on the common law rule was the traditional one; “to create allegiance by birth, the party must be born not only within the territory, but within the ligeance of the government.”⁸⁸ He referred to the traditional English sources and recognized the traditional logic of the rule’s application.⁸⁹ Being “within the allegiance of the government” simply meant being subject to the authority of that government and having a duty to obey it. Natural-born aliens, as usual, were those who “owe not even a local allegiance” to the United States, even when they were born within the United States.⁹⁰ But even alien enemies tolerated to be present in the United States “owe a local allegiance,” in that they “are equally bound with natives to obey all general laws for the maintenance of peace and the preservation of order, and which do not relate specially to our own citizens.”⁹¹ Such aliens are “amenable to the ordinary tribunals of the country” for their legal transgressions and intrapersonal disputes.⁹² Their children, if born in the United States, were thus necessarily natives and not themselves aliens.⁹³

Perhaps the most extensive subsequent discussion of the birthright citizenship rule came in the New York case of *Lynch v. Clarke*, involving the American-born child of an Irish couple who had temporarily visited the United States.⁹⁴ The widely cited conclusion was clear; “Birth in this country does of itself constitute citizenship No one asks whether his parents were citizens or foreigners. It is enough that *he was born here*, whatever were the *status* of his parents.”⁹⁵ The native-born child of a sojourning alien is an American

⁸⁸ *Id.*, at *42. Kent takes note of the English statute making children of English subjects born abroad into natural-born subjects. In doing so, he observes that such children are “born without the ligeance of the king,” that is, physically outside the scope of the king’s governing authority. *Id.*, at *51. Kent is clear that by “allegiance” he means the traditional common law duty to obey a lawful authority. Thus, allegiance is “claimed” by the relevant sovereign that governs the territory “of all persons born within its territories,” *id.*, at *40, and it is “owed” to one’s proper sovereign until one is lawfully released from that duty. *Id.*, at *42.

⁸⁹ *Id.*

⁹⁰ *Id.*, at *50.

⁹¹ *Id.*, at *63-64.

⁹² *Id.*, at *64.

⁹³ Kent is capturing Coke’s application of the birthright rule in *Calvin’s Case*. If a child was born to alien enemies on *occupied* American soil—land no longer under the governing authority or possession of the United States—that child would not be a citizen. *See infra* notes 176-81 and accompanying text.

⁹⁴ *Lynch v. Clarke*, 1 Sand. Ch. 583 (N.Y. Ch. 1844).

⁹⁵ *Id.*, at 663.

citizen because the child was born subject to the jurisdiction of the United States.⁹⁶ Among those who cited the *Lynch* case as explicating the established American rule of birthright citizenship was Abraham Lincoln's attorney general.⁹⁷ In explaining the error of *Dred Scott*, Attorney General Edward Bates emphasized, "That nativity furnishes the rule, both of duty and of right, as between the individual and the government, is a historical and political truth so old and so universally accepted that it is needless to prove it by authority," though he nonetheless provided them.⁹⁸

The *Dred Scott* case necessitated a response by the congressional Republicans. Chief Justice Taney's opinion had at least introduced legal uncertainty about the continued vitality of the native-birth rule. Republicans like Bates thought it remained clear that the English rule prevailed and that there were no exceptions grounded in the claim that a black man had "no rights that a white man was bound to respect."⁹⁹ But there was no guarantee that everyone would agree with that view. Moreover, the principle of citizenship advocated by some Southern jurists like Taney on the eve of the Civil War held that citizenship was a privilege to be awarded rather than a birthright to be recognized.¹⁰⁰

Including the Citizenship Clause in a constitutional amendment codified a previously unwritten rule of the common law. This served an important purpose of clarifying the law in the wake of *Dred Scott* by reaffirming the traditional rule. It served a second and perhaps even more important purpose of entrenching that rule so that it could not be ignored or changed if the government fell into the hands of those with new views.¹⁰¹ It

⁹⁶ Antebellum legal commentators did not always think this was a wise rule, even as they recognized that their personal preferences did not align with the state of the law. *See, e.g.*, 1 HENRY ST. GEORGE TUCKER, COMMENTARIES ON THE LAWS OF VIRGINIA *57 (1836) ("the principles of the English law . . . at variance with the dictates of natural justice and reason"); JOSEPH STORY, COMMENTARIES ON THE CONFLICT OF LAWS §48 (1834) ("A reasonable qualification of this rule would seem to be, that it should not apply to the children of parents, who were *in itinere* in the country, or abiding there for temporary purposes, as for health, or occasional business. It would be difficult, however, to assert that in the present state of public law such a qualification is universally established.").

⁹⁷ *Citizenship*, 10 Op. Att'y Gen. 382, 394 (1862).

⁹⁸ *Id.*

⁹⁹ *Dred Scott v. Sandford*, 60 U.S. 393, 407 (1857).

¹⁰⁰ *See* Whittington, *By Birth Alone*, *supra* note 44, at 494-495.

¹⁰¹ CONG. GLOBE, *supra* note 81, at 2768 (statement of Sen. Wade) ("if the Government should fall into the hands of those who are opposed to the views that some of us maintain . . .

removed the discretion that government officials might otherwise have possessed of being able to rewrite the rule of birthright citizenship and carve out new exceptions unknown to the logic of the common law rule.

After a false start with the Civil Rights Act of 1866, the Reconstruction Congress settled on textual language for the Fourteenth Amendment that efficiently communicated the familiar common law rule carried down through the centuries since Coke.¹⁰² Natural-born citizenship followed from meeting the twin conditions of being born in the United States and subject to the jurisdiction thereof. The language of the amendment was modern and American, but the idea conveyed by that language was the same one described by Coke, Blackstone, Kent, and Bates. In the legal vernacular of the mid-nineteenth century United States, “subject to the jurisdiction thereof” simply meant subject to the laws of the country, which was the critical determinant of birthright status identified in *Calvin’s Case*.¹⁰³ It is no surprise that the lawmakers of 1866 would turn to such language since it was familiar, clear, and communicated the rule that they repeatedly said they wanted to entrench.¹⁰⁴ As Michigan’s Jacob Howard told his colleagues when introducing the Fourteenth Amendment on the Senate floor, the amendment would establish beyond all doubt that a “person who was born within the limits of the United States and subject to their laws” is a citizen of the United States.¹⁰⁵ The language of the Citizenship Clause both mapped that understanding of the rule and secured that goal of putting it “beyond all cavil for the present and for the future.”¹⁰⁶

III. DOES THE COMMON LAW RULE INVOLVE PARENTS?

This Article defends the view that the Fourteenth Amendment recovered the traditional common law rule from the stain of *Dred Scott*. Common law explains the relationship between the general rule and the

they may construe the provision in such a way as we do not think it liable to construction at this time, unless we fortify and make it very strong and clear”).

¹⁰² On the “better” language of the Fourteenth Amendment compared to the Civil Rights Act, *see infra* Part V.iv.

¹⁰³ James A. Heilpern and Keith E. Whittington, “*Subject to the Jurisdiction*” as *Legal Text* _ HARV. J. L. & PUB. POL’Y. _ (2026).

¹⁰⁴ *See infra* note 388 and accompanying text.

¹⁰⁵ CONG. GLOBE, *supra* note 81, at 2765 (statement of Sen. Howard).

¹⁰⁶ *Id.*, at 2769. (statement of Sen. Wade).

known exceptions for occupying enemy armies, children of ambassadors, and Native Americans. The rule existed for centuries before being famously clarified in 1608 in *Calvin's Case*.¹⁰⁷ It was subsequently and self-consciously carried into early American practice before being erroneously eclipsed by Chief Justice Taney's race-based rule. History explains the rule's nuance. Birthright citizens are those who are born within a sovereign's territory and under the sovereign's governing authority. In common-law terms, natural subjection extended to those born within the allegiance the sovereign or, in other words, upon land within the king's actual possession.¹⁰⁸

In one restrictionist account, Ilan Wurman accepts that the Citizenship Clause intercepts a common-law rule. His interpretation of that rule, however, differs markedly from the settled historical consensus.¹⁰⁹ To him, "the most relevant desideratum at common law was whether parents, including alien parents, were under the protection and within the allegiance of the sovereign."¹¹⁰ Thus, the paramountcy of parental status means that "the case against birthright citizenship for the children of unlawfully present aliens—who may not be under the protection of the sovereign—is stronger than the case for denying citizenship to the children of temporary visitors."¹¹¹ In other words, unless modern parents possess something equal or analogous to the status of common law protection, their children are not birthright citizens. To be sure, concepts of land, allegiance, protection, amity, and enmity were part of a general common law picture, and they informed traditional common law exceptions. But necessary to Wurman's argument is that a *parental* entanglement with those common-law concepts was paramount to the operation of the rule as historically practiced and understood. The native-born

¹⁰⁷ For other scholarship on this history, see generally Anthony Michael Kreis, *Discovering the Historical Anglo-American Constitution* (8 June 2026), https://papers.ssrn.com/sol3/papers.cfm?abstract_id=6873145; Kathleen Commons, 'Duplex and reciprocal' obligation: *Calvin's Case* (1608) and the development of early modern English citizenship, 98 *Hist. Research* 203 (2024).

¹⁰⁸ "Allegiance" at common law and as a legal term of art is distinct from "allegiance" as used in modern common parlance. We therefore treat the "allegiance" of England as the foreign concept it is. See *infra* notes 124-34 and accompanying text.

¹⁰⁹ As a general matter, mere appeals to "consensus" are nothing to rest an argument upon. But, when debating history, a claim that the settled, traditional, and expert understanding of the common law is wrong at raises expectations. A convincing rebuttal of settled history should be both profound and conclusive. There is nothing of the sort here.

¹¹⁰ Ilan Wurman, *Jurisdiction and Citizenship*, 49 *HARV. J.L. & PUB. POL'Y* 320 (2026).

¹¹¹ *Id.*, at 324.

child's protection is assumed to be derived from that of the parents. Because the claim is empirical, it is verifiable. Scrutiny proves the Scottish proverb true: one cannot make a silk purse from a sow's ear.

The argument from parental status has some plausibility. Wurman invokes concepts found in the common law. He also invokes concepts familiar and morally agreeable to us today. What is lacking is supportable context. He lacks context that defines his terms his way and proves sound the proposition that parental status is both a desideratum and "most relevant" to determining one's birthright status at common law. His argument rests on several speculative interpretations of common law sources. A friendly alien owes local allegiance while within the realm as a consequence of being under the protection and authority of the king. With local allegiance, that alien becomes a temporary subject. These propositions are true. Wurman then interprets passages of *Calvin's Case* to suggest that the birthright rule requires one to be born under the allegiance of subject who is under the king's protection. It is the protection of the parent that entitles "a child to protection, which would then create a subsequent debt of allegiance on the part of the child."¹¹² As he states in his recent essay, "The rule has always been birth on soil to parents who were under the protection of the sovereign and thus, in exchange, owed the sovereign allegiance."¹¹³

Because concepts of sovereign consent, protection, and parentage are necessary to Wurman's argument, and they are necessarily implicated by the history of the common law rule, we mostly set aside arguments he makes about the law of nations when the Fourteenth Amendment was ratified. Nothing that we can find in the historical record contradicts the standard historical picture that we have elsewhere defended.¹¹⁴ Historical adjudications of alienage, alternative reports of and speeches in *Calvin's Case*, and the history and meaning of the king's protection and amity all support the standard view that birth on the king's land, when actually possessed, is enough. *Calvin's Case* held, absent well-known exceptions, that those born

¹¹² *Id.*, at 333.

¹¹³ Ilan Wurman, *Jurisdiction and Citizenship: A Reply 2* (Mar. 22, 2026), https://papers.ssrn.com/sol3/papers.cfm?abstract_id=6300038.

¹¹⁴ Keith E. Whittington, *By Birth Alone: The Original Meaning of Birthright Citizenship and Subject to the Jurisdiction of the United States*, 49 HARV. J.L. & PUB. POL'Y (2026); Benjamin Keener, *Calvin's Case and Birthright Citizenship*, 174 U. PA. L. REV. ONLINE (2025).

upon English land under the actual possession of the sovereign are natural born subjects.

i. Birth on Actually Possessed Land

English judges were not in the business of making law. So went the maxim: *jus dicere, et non jus dare*.¹¹⁵ The decision clarifying the birthright status of Scottish children after King James's ascension had to accord with historical practice.¹¹⁶ The traditional rule we defend here is repeated many times across multiple versions of *Calvin's Case*.¹¹⁷ The case scarcely mentions parents; the focus is squarely on the place, time, and circumstances of a child's birth. The material question was not the identity of the father of young Robert Calvin but whether the child was born under the king's rule.

If we are seeking a precise understanding of the common law birthright rule, the restrictionist account should track how courts adjudicated birthright status. But looking to courts yields only affirmations of the settled view. One only finds references to the possession of land and birth on foreign land. Moreover, there is no suggestion that the source most directly familiar to Americans, William Blackstone, departed in any way from that common law tradition.¹¹⁸ If Blackstone disagreed with *Calvin's Case*, he would have done so

¹¹⁵ Coke formulates the rule as “*iudex est lex loquens*,” which itself recalls passages from Cicero. See EDWARD COKE, THE FIRST PART OF THE INSTITUTES OF THE LAWS OF ENGLAND, A COMMENTARY UPON LITTLETON, NOT THE NAME OF A LAWYER, BUT OF THE LAW ITSELF 199 (3d ed. 1633) (“The king judgeth by his judges, and they are the speaking law, *lex loquens*.”) [hereinafter COKE 1 INSTITUTES]; *Calvin's Case*, 7 Co. Rep. 4a. (referring to judges as “the mouth of the Law (for *iudex est lex loquens*)”). See also, Cicero, *De Legibus III*, in 213 LOEB CLASSICAL LIBRARY 460, 461 (“For as the laws govern the magistrate, so the magistrate governs the people, and it can truly be said that the magistrate is a speaking law, and the law a silent magistrate.”). For Coke's use of this maxim, see Benjamin Keener, *The Provenance of Edward Coke's Artificial Reason* 30-36 (Oct. 22, 2024) (MPhil. dissertation, University of Cambridge), https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4997237.

¹¹⁶ As Coke says in *Calvin's Case*, the arguments “told no strange histories, cited no foreign laws, produced no alien precedents, and that for two causes: the one, for that the Laws of England are so copious in this point, as God willing by the report of this case shall appear.” As was proper, the case was “only to be decided by the laws of this Realm.” *Calvin's Case*, 7 Co. Rep. at 4a.

¹¹⁷ See *infra* Part III.iii for Ellesmere's report.

¹¹⁸ Wurman implies that Blackstone departed from Coke, but provides no evidence of any such material departure. Wurman, *Jurisdiction and Citizenship*, *supra* note 110, at 334 n. 40.

explicitly.¹¹⁹ But the author of the *Commentaries* fancied himself Coke's intellectual successor. As we note below, their visions of the rule hardly differed.

After restating the traditional rule, we turn to the common law exceptions. Principal of them was the exception for enemies during war in occupied territory. Rather than an exception, it was simply an application of the baseline rule. That application is straightforward: when land is no longer actually possessed by the sovereign, it is not under the sovereign's allegiance and a child born there is not a subject. A child born there is no subject, that is, unless a statutory exception applied. That statutory exception existed to supplement the restrictive common law rule that ignored parental allegiance and protection. It sought to legitimize children of natural born subjects born abroad (or on territory outside the King's control and possession). When Coke explains that a child born on non-possessed land should be "born under the ligeance of a subject," he is referring to the statutory, non-common-law exception.¹²⁰ Coke's point in this passage on invading armies, as we discuss,¹²¹ was that the king no longer possessed the land in question. Automatic birthright subjecthood no longer applied when the "town or fort" in which the a child was born had been removed, perhaps temporarily, from the control of the king.¹²² Ambassadors, we explain, either fell under the statutory exception or a developing but accepted international law rule about ambassadors being fictional representations of their state's sovereignty.¹²³

¹¹⁹ Blackstone was explicit when he disagreed with Coke. The most famous of supposed disagreements is when Blackstone disavows the supposed doctrine of Bonham's Case, whereby it appeared to many that Coke (despite public comments to the contrary) endorsed a form of judicial review of acts of parliament. For this disagreement and Coke's true intentions, see Benjamin Keener, *Bonham's Case and Judicial Duty* 14, 68 (Jan. 17, 2025), https://papers.ssrn.com/sol3/papers.cfm?abstract_id=5100489. See generally Jeffrey Goldsworthy, *What Really Happened in Dr Bonham's Case? Statutory Interpretation and Voidance Then, and Now*, PUB. L. 452-477 (2025) (synthesizing the debate).

¹²⁰ *Calvin's Case* (1608), 7 Co. Rep. at 6a.

¹²¹ See *infra*, Part III.iv.

¹²² *Id.*

¹²³ See *infra*, notes 195-202 and accompanying text.

ii. Pleading “Alien”

The common law defined aliens simply. Aliens are born outside the allegiance of the English king.¹²⁴ As a feudal concept—or a popularly understood feudal concept¹²⁵—allegiance was intermixed with a land-based political paradigm.¹²⁶ Coke himself, in explaining the allegiance relationship between subject and king, analogized from “the connexion which ought to be between the Lord and Tenant that holdeth by homage.”¹²⁷ Allegiance was a kind of corollary to the king’s property right to his dominions (whether by descent or conquest) and control over that landed property (termed “actual possession” or “actual obedience”).¹²⁸ But allegiance “is well expressed by

¹²⁴ The most authoritative definition comes from Littleton, whose feudal treatise on Land Tenure was the subject of Coke’s first volume of the famous Institutes. *See generally* COKE 1 INSTITUTES. *See also infra* note 175 and accompanying text. *See also*, EDWARD LEIGH, A PHILOLOGICALL COMMENTARY, OR, AN ILLUSTRATION OF THE MOST OBVIOUS AND USEFUL WORDS IN THE LAW WITH THEIR DISTINCTIONS AND DIVERS ACCEPTATIONS 12 (1658) (hereafter “LEIGH, PHILOLOGICALL COMMENTARY”) (“Alien, is derived from the Latine word alienae and according to the Etymològy of the word, it signifies one born in a strange countrey, under the obedience of a strange Prince.”).

¹²⁵ In 1605, Thomas Craig (a courtier of James I and advocate for union) wrote *DE UNIONE REGNORUM BRITANNIA*, in which he identified the common law of England and the ancient law of Scotland as sharing the same *jus feudale* (“feudal law”) that compelled the following rule: namely that “aliens” are “persons born out of the jurisdiction of the ‘liege prince,’ although a child born in another sovereign’s territory was not an alien ‘so long as the parents are [regarded] as having died in loyalty to the king.’” Polly J. Price, *Natural Law and Birthright Citizenship in Calvin’s Case* (1608), 9 *YALE J. L. & HUMANS* 73, 130 (1997).

¹²⁶ Blackstone states the same. *See* 1 BLACKSTONE 354-55 (“Under the feodal system, every owner of lands held them in subjection to some superior or lord, from whom or whose ancestors the tenant or vassal had received them: and there was a mutual trust or confidence subsisting between the lord and vassal, that the lord should protect the vassal in the enjoyment of the territory he had granted him, and, on the other hand, that the vassal should be faithful to the lord and defend him against all his enemies.”).

¹²⁷ *Calvin’s Case*, 7 Co. Rep. at 4b. Although a tenuous comparison, land remained paramount. *See* W.S. Holdsworth, *The History of the Law as to the Status of British Subjects and Aliens*, 3 *REVUE DE L’HISTOIRE DU DROIT* 175, 178 (1921) (“The relation between the king and his subjects was never quite the same as the relation of the lord and his tenants.”).

¹²⁸ The analogy to property law is obvious. The same terms were used to describe inheritance law and trespass. For trespass, *see* EDMUND WINGATE, *THE BODY OF THE COMMON LAW OF ENGLAND AS IT STOOD IN FORCE BEFORE IT WAS ALTERED BY STATUTE, OR ACTS OF PARLIAMENT, OR STATE* 24 (1655) (“Trespasse in Land is, when the trespass is done upon the actual possession thereof.”). For inheritance, *see id.* at 9 (“Inheritance is an estate descendable to his heires that hath actual possession.”).

divers several names or synonymia” according to the common and statute law.¹²⁹ They include “obedience or obeysance,” “power” (*sub potestate regis*), “faith” (*ad fidem Regis*), and “ligealty.”¹³⁰ Consequently, says Coke, “they that are born under the obedience, power, faith, ligealty, or ligeance of the King, are natural subjects, and no aliens.”¹³¹ They are one and the same. Parentage is not mentioned.

As was conventional, the judges determined the content of legal concepts from their historical use. Coke thus explained “alien” with respect to how that status was determined in court:

An Alien is a subject that is born out of the ligeance of the king, and under the ligeance of another, and can have no real or personal action for or concerning land; but in every such action the tenant or defendant may plead that he was born in such a Country which is not within ligeance of the king, and demand judgment if he shall be answered.¹³²

The feudal echo in natural allegiance makes it hardly surprising that aliens could not own land. It is birth within *places* (“a Country”) that are “within ligeance” of a sovereign that determines the foreignness of people.¹³³ Thus, Coke sometimes characterizes the rule in Littleton’s words: “a stranger is a subject who is born outside the land, that is, outside the king’s power.”¹³⁴ Recall that “power” is synonymous with “allegiance.”

Versions of this rule are repeated ad nauseam in *Calvin’s Case*, Coke’s notebooks, and elsewhere. In one concise example from Coke’s speech in the House of Lords in 1606,¹³⁵ he states: “Three things [are] in an alien: time of

¹²⁹ 7 Co. Rep. at 5a.

¹³⁰ *Id.*

¹³¹ *Id.*, at 5b.

¹³² *Id.*, at 16a.

¹³³ See W.S. Holdsworth, *The History of the Law as to the Status of British Subjects and Aliens*, 3 REVUE DE L’HISTOIRE DU DROIT 175, 178-79 (1921) (stating that by at least 1290 it was understood that “all persons born on English soil, no matter what their parentage, owed allegiance to, and were therefore subjects of the king” and that “birth within the king’s allegiance signified birth within a defined ‘geographical tract’”).

¹³⁴ 7 Co. Rep. at 16b. “Extraneus est subditus, qui extra terram, i.e. potestatem regis natus est.”

¹³⁵ The Lords rehearsed the issue in Michaelmas of 1606 and then held a conference with the Commons in February of 1607. It would have been one of Coke’s first major legal

birth, place, and obedience. *Ubi quis nascitur; ibi subditus; ubi quis natus est datus est*: where one is born, the law gives his subjection.”¹³⁶ In the same 1606 speech in Parliament, Coke explains that the standard natural law rule avoids questions of parental subjection.¹³⁷

[T]he reason why someone born in Denmark or Spain etc. is an alien to the king of England is because by the law of nature and nations *he is the subject of the king of the realm where he was born*. Thus if a Spaniard has issue in England or an Englishman has issue in Spain, such issue is the subject of the king where he is born and *not the king where his parents are subject*. This is to avoid questions of subjection and naturalisation.¹³⁸

When Francis Bacon later argued *Calvin’s Case*, he perhaps recalled Coke’s reference to Spain. He added that local English law was unique:

By the law of England, it should suffice, *either place or parents*. If he be born in England, it is no matter though his parents be Spaniards, or what you will. On the other side, if he be born of English parents, it skilleth not though he be born in Spain, or

issues as the new Chief Justice of the Common Pleas. Coke’s speech in 1607, which is substantively similar to what he recorded from his speech in 1606, is summarized in 2 HOWELL’S STATE TRIALS at 568-575 and “Le Case del Union, Del Realm, d’Escose, ove Angleterre,” in CASES COLLECT & REPORT PER SIR FRANCIS MOORE CHEVALIER, SERJEANT DEL LEY 700, 797- 800 (1688). See also REPORTS FROM THE NOTEBOOKS OF EDWARD COKE VOLUME VII, 1604-1608 1625 (John Baker ed.) (2025) [hereinafter 7 COKE’S NOTEBOOKS] (discussing the meetings in the Lords and the conference with the Commons).

¹³⁶ 7 COKE’S NOTEBOOKS at 1625.

¹³⁷ In 1604, Coke recorded the rule alternatively but with no ambiguity: “whoever is born upon the king’s land is the king’s subject, and whoever is [present] upon any part of the land, even if he is an alien, owes obedience to the king.” There, he draws the conclusion from an anonymous report by James Dyer, in which a “bastard born at Tournai,” a foreign land then actually possessed by the King was, accordingly, “then under the obedience of King Henry VIII” and a subject of the king. *Post-Nati* (1604), in 6 COKE’S NOTEBOOKS at 1437. There is no academic dispute about the holding of Dyer’s report. John Baker recounts that the court held the bastard to be natural born “because the birth occurred while Tournai was in the possession of Henry VIII.” REPORTS FROM THE LOST NOTEBOOKS OF SIR JAMES DYER VOLUME II 206 n.6 (John Baker ed.) (1994) [hereinafter 2 DYER’S NOTEBOOKS].

¹³⁸ 7 COKE’S NOTEBOOKS at 1621.

in any other place of the world. In such sort doth the law of England open her lap to receive in people to be naturalized; which indeed showeth the wisdom and excellent composition of our law, and that it is the law of a warlike and magnanimous nation fit for empire.¹³⁹

This was the common law picture. As we note below, however, it was a disputed point whether and how the statute laws of England extended natural subjection to the children of subjects born abroad. After *Calvin's Case*, this exception was frequently modified by statute.¹⁴⁰ But, within the king's lands, under his power and on land in his actual possession,¹⁴¹ subjecthood was determined regardless of parental status.

This common law rule cashed out in court as one might expect. Rather than asking whether parents of a child possessed a kind of status (such as protection or allegiance), the practice of determining alienage in court reflected the standard land-based view. Juries determined alienage as a factual matter and a litigant needed only to show that someone was "notoriously known to have been born in England . . . and by this a subject and liegeman of the realm."¹⁴² Before and after *Calvin's Case*, there was no doubt.¹⁴³ Coke

¹³⁹ 2 HOWELL'S STATE TRIALS at 595.

¹⁴⁰ See *infra* notes 203-15 and accompanying text.

¹⁴¹ See notes 176-83 and accompanying text. See also W.S. Holdsworth, *The History of the Law as to the Status of British Subjects and Aliens*, 3 REVUE DE L'HISTOIRE DU DROIT 175, 189 (1921) ("[I]f the king acquired a new dominion either by conquest or by title of descent the inhabitants necessarily became his subjects.").

¹⁴² *Storie's Case* (1571), in JAMES DYER, LES REPORTS DES DIVERS SELECT MATTERS & RESOLUTIONS DES REVEREND JUDGES & SAGES DEL LEY 300b [hereinafter DYER]. See also Keener, *supra* note 44, at note 49.

¹⁴³ Judges and learned lawyers frequently remarked that "if a husband and wife, who are both aliens, have issue born here in England, this issue is the king's liege and able to purchase without license like anyone else." This point was distinguished, however, from questions of inheritance and "inheritable blood." *Frowk's Reading on the Prerogativa Regis* in MS Hargrave 87 (1495), in SELECTED READINGS AND COMMENTARIES ON MAGNA CARTA 1400-1604 297 (John Baker ed.) (2015). Coke and Dyer also noted versions of this rule. See Keener, *supra* note 44, at 25 (discussing the inheritance and birth to alien parents); 6 COKE'S NOTEBOOKS 1436-37 ("a bastard born at Tournai, then under the obedience of King Henry VIII, is a denizen, just as if he was an issue born in England; for whoever is born within the obedience is a denizen throughout the obedience. Note that whoever is born upon the king's land is the king's subject, and whoever is [present] upon any part of the land, even if he is an

pointed to pleading practices to examine how the common law controlled and reflected the meaning of allegiance. Principal of all pleading manuals was Fitzherbert's *Book of Entries* that, like the *Registrum Brevium*,¹⁴⁴ recorded examples of formally correct pleadings and writs that could be copied and used in court.¹⁴⁵ The *Book of Entries* has multiple examples of how common law courts adjudicated one's alienage. The test was simple: if someone was born outside of the allegiance of the king and under the allegiance of a foreign king, he was an alien.¹⁴⁶ Both were determined by birth on actually possessed land.¹⁴⁷

Coke explains by citing an example from the *Book of Entries*. In an action for ejectment, the plaintiff claimed the defendant was "an alien born in the realm of France under the obedience of the same king."¹⁴⁸ The "reply" from the defendant was merely "born in England."¹⁴⁹ In another example, the prior of Andover had "his possessions . . . seised" because people "suppos[ed] that he was an alien born" and thus could neither own nor protect his landed

alien, owes obedience to the king: for if he practises treason against the king in his land the indictment shall say 'against the duty of his allegiance': 4 Mar. 144. Note that.").

¹⁴⁴ Discussed *infra* at note 322 and accompanying text.

¹⁴⁵ See THEODORE PLUCKNETT, A CONCISE HISTORY OF THE COMMON LAW 402 (1956) (noting that "the Books of Entries . . . consist of choice specimens of enrolments, collected for the use of pleaders").

¹⁴⁶ As explained by Coke in Calvin's Case, "the most usual and best pleading in this case is, both exclusive and inclusive, viz. extra ligeantiam domini Regis, &c. et infra ligeantiam alterius Regis, as it appeareth in 9 Ed. 4. 7. Book of Entries, fol. 244, &c." *Calvin's Case*, 7 Co. Rep. at 16b. In other words, the correct pleading is that one was born "outside the allegiance of the King and under the allegiance of another king." See also 7 COKE'S NOTEBOOKS at 1622.

¹⁴⁷ Interestingly, this convention could still be seen in the 1860s when England and the United States exchanged diplomatic missives about sailors captured while violating the Union blockade on Confederate ports. In asserting an interest over "native-born British subjects" held by American authorities, the evidence of that status routinely referred to place of birth. The British government provided an "original affidavit showing [Mr. James MacHugh] to be a native-born British subject" which consisted of a statement that MacHugh was "born in county of Tyrone, Ireland, about or in the year 1838." *Letter from Lord Lyons to William H. Seward, Sec'y of State (Feb. 25, 1864)*, in 1864 Foreign Rel. U.S. pt. 2, at 533. The Canadian shipmaster John E. Holt enlisted the help of the British government when his ship was seized by the Union navy, observing simply "I am a British subject, born in Nova Scotia, and have never taken the oath of allegiance to any foreign state." *Letter from Lord Lyons to William H. Seward, Sec'y of State (Dec. 31, 1863)*, in 1864 Foreign Rel. U.S. pt. 2, at 492.

¹⁴⁸ 7 COKE'S NOTEBOOKS at 1625.

¹⁴⁹ *Id.*

property.¹⁵⁰ The prior sued “and alleged that he was born in Gascoin (Gascony) within the ligeance of the king; which point being put in Issue and found by Jury to be true, it was adjudged he should have restitution of his possessions generally. . . .”¹⁵¹ In other words, the test at common law for one’s allegiance and natural subjecthood was whether he was born on land (here, in present-day France) that itself was within the ligeance of the English king.

During war, litigants sometimes pled that an opposing party was an alien enemy. Juries would thus determine birthright status. Take two cases in the Court of Common Pleas that Coke cites in his speech in Parliament. In *Holburn v. Wartre* (1456), for example, the defendant broke into someone’s home in York and stole five horses, five cows, and money.¹⁵² His defense was that the plaintiff was “an alien born in the parts of Scotland, which is at enmity with the king of England.”¹⁵³ The plaintiff replied “that he is English from birth, having been born at the town of Newcastle upon Tyne.”¹⁵⁴ Again, in *Southwell v. Fyssh*e (1453), the debtor defendant pleaded that the creditor plaintiff was:

‘... an alien, begotten and born at a town called St John’s Town [now Dalry] in Scotland under the allegiance of James, king of the Scots, enemy and adversary to the present lord king of England, and that the parents of the selfsame John were born in the same town under the same allegiance, and not under the allegiance of our lord king of England.’ The plaintiff, replied that he was born at Tettershall in England, and the jury found for him.¹⁵⁵

¹⁵⁰ *Calvin’s Case*, 7 Co. Rep. at 19a.

¹⁵¹ *Id.*, at 19a-b.

¹⁵² *Holburn v. Wartre* (1456), 2 DYER’S NOTEBOOKS 256. Coke cites the case in his 1606 speech in the House of Lords. See 7 COKE’S NOTEBOOKS at 1625 (summarizing the defendant pleading that the plaintiff was “born in the parts of Scotland, which is in enmity with the lord king; the plaintiff replies that he is English.”).

¹⁵³ 2 DYER’S NOTEBOOKS at 256.

¹⁵⁴ *Id.*

¹⁵⁵ *Id.* Recorded elsewhere at YB Hil. 32 Hen. VI, fo. 25, pl. 13. Coke also cites this case in his 1606 speech in the House of Lords. See 7 COKE’S NOTEBOOKS 1625 (“[W]here it was alleged that the plaintiff was a Scot, born at St. John’s in Scotland outside the king’s allegiance, and the plaintiff to the contrary, this issue was tried where the writ was brought.”).

If someone was supposedly born on land not possessed by the king it was necessary to determine whether the parents were subjects of England.¹⁵⁶ But such was *not* the case if he was supposedly born on English-controlled land. If the English birthright rule required examining the status of parents (including when litigants were allegedly the children of alien enemies), one would expect courts to examine the status of parents.¹⁵⁷

Litigating *Calvin's Case*, Francis Bacon reports that to prove alienage was merely to “apprise the court more certainly, that the *countrey* of the birth is none of those, that are subject to the King.”¹⁵⁸ Note the grammar here and elsewhere: “those” is a demonstrative pronoun that stands in for “countrey.” It is *land* that is subject to the king. Birth alone, on that subjected land, determines one’s alienage and natural allegiance. A similarly simple test was used to determine alienage for *venire facias*, the writ commanding sheriffs to collect English jurors.¹⁵⁹ Determining subjecthood for purposes of *venire facias*, Bacon explains, was as simple as identifying “where the natural birth is laid.”¹⁶⁰

For purposes of one’s rights to sue in court, protect property, and serve on juries, the law of England asked one question. You needed to prove where you were born. Thus, Coke tells us in his speech in Parliament, “evidence of his birth in any place within the Kings Dominions is sufficient” to determine natural subjecthood.¹⁶¹ If that place was subjected to the king (under the king’s actual possession), you were a subject. If that land was under the king’s subjection, you automatically received the protection of law.¹⁶² Timing matters, Coke explains,¹⁶³ because sometimes land is no longer under the

¹⁵⁶ For the statutory reason why, see *infra* notes 184-215 and accompanying text.

¹⁵⁷ See also *Esterling's Case* (1480), YB Hil. 19 Edw. 4, pl 4, fol. 6a (in which the judges, ignoring the pleading that the Plaintiff was from Denmark and that Denmark was at enmity with England, compelled a jury to answer the question “ou fuit il nee?”).

¹⁵⁸ 2 HOWELL'S STATE TRIALS at 574.

¹⁵⁹ For a discussion of juries composed partially or totally by aliens, see Keener, *supra* note 44, at notes 77-78 and accompanying text. See also *Calvin's Case*, 7 Co. Rep. at 18b (“Aliens born cannot be returned of Juries for the trial of Issues between the king and the subject, or between subject and subject.”).

¹⁶⁰ 2 HOWELL'S STATE TRIALS at 589.

¹⁶¹ *Id.*, at 573.

¹⁶² As we show below, “protection” generally refers to legal process. In rare cases, such as safe conducts, “protection” excepts people from the control of common law courts and entitles them to equitable relief. See *infra* Part IV..

¹⁶³ See *supra* notes 136, 164, 168 and accompanying text.

actual possession (actual obedience and allegiance) of the king. Take a final example from the Year Books in which the king's actual possession of land is contested by litigants:

The plaintiff said that at the time of birth, Roos was outside of the allegiance of England, and had always been, and still was, so she was born outside of the allegiance etc. The defendant said that, since the plaintiff had acknowledged that there was such a person alive, who was born in Roos, which was in Scotland, where all Scotland was held of the king of England and in his subjection, [she therefore demanded] judgment etc. The plaintiff asked, at what time was she born? *Wychyngham JCP* said that it was for the plaintiff to show, because he had said that at the time of birth, Roos was outside of the allegiance of England . . . *Thorp CJCP* said that . . . men of this country could not have knowledge whether Roos was within the allegiance of England or not. . . . *Thorp CJCP* said that the Court . . . did not know [how] to judge, because they did not know whether Roos was within the allegiance or not, but they understood that the king had enrolled which towns (villes) were within the allegiance or not, and for that reason the one who wanted to benefit himself in this, it was necessary for the two of them to let her sue a certification to certify the Court out of the rolls, whether all Scotland was within the allegiance of the king of England, or outside.¹⁶⁴

Parents and parental status is nowhere to be seen. Actually possessed land, however, is dispositive. Wars happen. Land is lost and gained. One could not be born an English subject on land captured or taken by an enemy. That is, of course, unless one of the common law's exceptions applied.

iii. Ellesmere's Report of Calvin's Case

Here we add a brief word about Chancellor Ellesmere's alternative report of *Calvin's Case*. Just as with Francis Bacon's speech, Coke's *Institutes*, and various cases and commentaries, Ellesmere's record of the decision is probative of the traditional common law rule as it would have been popularly

¹⁶⁴ *Lord Beaumont's Case* (1368), YB Hil. 42 Edw. 3, pl. 9, fol. 2b-3a.

understood. His report of the birthright rule is the same as Coke's: the formal content is subjecthood, faith, or obedience¹⁶⁵ determined by birth "in any of the Kings Dominions" that are "under the Kings obedience."¹⁶⁶ Being under the king's obedience is just as Coke described. The thing to which obedience is tied is land. Obedience exists, he repeatedly clarified, within "kingdomes and dominions *in possession*" of the king.¹⁶⁷ He lists various examples (also reported by Coke) in which the defining characteristic of the natural subjecthood of the foreigners was birth on land actually possessed by the English sovereign. These lands—namely, "Normandie, Aniow, and Gascoyne, and parte of Scotland in former times"—were the King's "Dominions" and "under the obedience of the King of *England*" by their control and possession.¹⁶⁸

Ellesmere repeats himself several times. He clarifies that by France being under the king's obedience, "I meane such part of [France] as *was in the Kinges possession*, and in subiection and obedience to him, and not in that parte of France which his enemies helde."¹⁶⁹ Anyone "borne there" or anywhere else "so long as it was in subiection and obedience to the King" were natural subjects.¹⁷⁰ "And therefore all that haue bin borne in any of the kinges dominions since hee was King of England, are capable and inheritable in all his Dominions without exception."¹⁷¹ Whether by "conquest" or by "discent," the manner of the king's acquisition of these lands was immaterial.¹⁷² Conquest is significant, too, because it comprehends but disregards whatever private sentiments the conquered parents harbored about their new sovereign. Feelings did not matter, and prior allegiances did not matter. Their children would be natural subjects of the English king.

¹⁶⁵ "I say, Ligeantia, or Allegiantia vnderstood Senu currenti, is vinculum fidei & obedientiae..." THOMAS EGERTON, THE SPEECH OF THE LORD CHANCELLOR OF ENGLAND, IN THE EXCHEQUER CHAMBER, TOUCHING THE POST-NATI 62 (1609) [hereinafter ELLESMERE'S SPEECH]; "For, in a true and lawfull subiect, there must bee Subiectio, fides, & obedientia; and those cannot bee severed." *Id.*, at 64.

¹⁶⁶ *Id.*, at 63.

¹⁶⁷ *Id.*, at 66-67.

¹⁶⁸ *Id.*, at 65.

¹⁶⁹ *Id.*, at 89.

¹⁷⁰ *Id.*, at 69.

¹⁷¹ *Id.*, at 81.

¹⁷² *Id.*, at 65.

This agreement between the Chancellor and Coke about the birthright rule is significant. Both men harbored wildly different theories of law and maintained a bitter rivalry.¹⁷³ And, although their opinions reflected serious jurisprudential tensions about rule of law and sovereignty,¹⁷⁴ their agreement here demonstrates the uncontroversial content of the traditional common law rule.

iv. Exceptions to the Common Law Rule

The common law did not define an alien as anyone born “outside the realm.” The reason is discussed at length in *Calvin’s Case*. Natural subjecthood follows from allegiance to the natural body of a king, which is not limited by geography. Coke explains in the *Institutes*:

Littleton doth not say, out of the realme or beyond the sea . . . but out of the *ligeance*; for (as hath beene said before) a man may be borne out of the realme, viz. of England, as in Ireland, Jersey, and Guernsey, &c. and yet seeing he is not borne out of the ligeance of the king, as *Littleton* here speaketh, he is no alien. But hereof it is so much and so plentifully spoken in our bookes, and especially in the case of *Calvin*, *ubi supra*, as this shall suffice.¹⁷⁵

Quite correctly, English law came to accept that natural subjects could be born outside the realm. They could either be born, per common law, within

¹⁷³ Ellesmere and Coke disagreed about the sources of royal power and the interrelation of the common law and chancery. See generally, Keener, *Calvin’s Case and Birthright Citizenship*, *supra* note 44.

¹⁷⁴ For differences in their legal theory, see *id.*, at 21-41.

¹⁷⁵ 1 INSTITUTES at 129a. Coke repeats this rule several times:

Note, here Littleton saith not out of the realm, but out of the ligeance; for he may be borne out of the realm of England, yet within the liegeance. And he that is borne within the king’s liegeance is called sometime a denien, quasi deins nee, born within, and thereupon in Latine called indigena, the king’s liegeman; for ligeus is ever taken for a naturall borne subject.

Id.

dominions under the king's actual obedience (i.e., the King's actual possession) or they could be to parents, per statutes, in foreign lands.

The first comprehends the exception for occupying enemy aliens. Coke tells us that birth at "any place within the king's dominions may make a subject born, but any place within the king's dominions without obedience can never produce a natural subject."¹⁷⁶ A man may thus be born on the king's "soyl, and under his meridian" but not upon land under the king's obedience.¹⁷⁷ His example, one also given by Ellesmere,¹⁷⁸ is that of an occupying enemy army.¹⁷⁹ He explains:

But if Enemies should come into any of the king's dominions and surprise any Castle or Fort, and *possess the same by hostility*, and have issue there, that issue is no subject to the king, though he be born within his dominions, for that he was not born under the king's ligeance or obedience.¹⁸⁰

It is called "under the actual obedience of the king," Coke tells us, because "though the King of England hath absolute right to other kingdoms or dominions . . . Yet seeing the King is not in actual possession thereof, none born there since the Crown of England was out of actual possession thereof, are Subjects to the king of England."¹⁸¹ The same naturally applies to land within the realm. The traditional exception for occupying enemy armies, therefore, is merely an application of the baseline common-law rule.

Whether a child is born in Normandy or a coastal English village, the determination of whether that child is a natural-born subject always turned on whether that land at that moment of the child's birth was in the "actual possession" of the English king. To repeat Coke above: "any place within the king's dominions may make a subject born, but any place within the king's dominions without obedience can never produce a natural subject."¹⁸² It is places without obedience, not people, that matter. Coke's comments, taken in

¹⁷⁶ *Calvin's Case*, 7 Co. Rep. at 18a.

¹⁷⁷ *Id.*, at 5b.

¹⁷⁸ See *supra* note 169 and accompanying text.

¹⁷⁹ See *Calvin's Case*, 7 Co. Rep. at 17b-18a; 5b-6a.

¹⁸⁰ *Id.*, at 5b-6a.

¹⁸¹ *Id.* For the many lands discussed in *Calvin's Case* and the king's actual possession thereof, see, Keener, *supra* note 44, at note 42 and accompanying text.

¹⁸² *Calvin's Case*, 7 Co. Rep. at 18a.

their full context, plainly mean that when land belonged to a sovereign but was no longer actually possessed by that sovereign—such as, to use Ellesmere’s words, “Normandie, Aniow, and Gascoyne and parte of Scotland in former times”¹⁸³—a child born there could not be a subject. A child born there could not be a subject, that is, unless an exception for subjects abroad applied. As the statutory exception went, a child born *abroad* (including occupied English land) indeed must be born “under the ligeance of a subject.”

Recall Francis Bacon’s winning oral argument. “If he be born in England, it is no matter though his parents be Spaniards, or what you will. On the other side, if he be born of English parents, it skilleth not though he be born in Spain, or in any other place of the world.”¹⁸⁴ Bacon’s argument explicitly stemmed from an interpretation of Edward III’s statute conferring natural subjecthood (perhaps merely inheritance rights) to the children of natural subjects born abroad.¹⁸⁵ That 1350 statute, *De Natus Ultra Mare*, reads:

[A]ll Children Inheritors, which from henceforth shall be born without the Ligeance of the King, whose Fathers and Mothers at the Time of their Birth be and shall be at the Faith and Ligeance of the King of *England*, shall have and enjoy the same Benefits and Advantages, to have and bear the Inheritance within the same Ligeance¹⁸⁶

The statute presupposes that a child’s allegiance does not by common law follow that of the parents. Indeed, “without the ligeance” is in explicit reference to people “born in the Parts beyond the Sea” (or, in other words, outside the King’s possession).¹⁸⁷ Birth without allegiance was just birth outside the King’s controlled land, notwithstanding parents who were both natural

¹⁸³ ELLESMERE’S SPEECH at 65.

¹⁸⁴ 2 HOWELL’S STATE TRIALS at 595.

¹⁸⁵ *Id.*, at 585 (“By the statute of 25 Ed. 3, which, if you will believe Hussey, is but a declaration of the common law, all children born in any parts of the world, if they be of English parents continuing at that time as liege subjects to the king, and having done no act to forfeit the benefit of their allegiance, are ipso facto naturalized.”). Hussey’s interpretation, and thus Francis Bacon’s, was snubbed by various cases and, ultimately, the United States Supreme Court in *Wong Kim Ark*. The only part of the statute truly declaratory of the common law was that regarding the King’s children.

¹⁸⁶ *De Natus Ultra Mare* (1350/51), 25 Edw. 3, Stat. 1, in 1 THE STATUTES AT LARGE 254 (1763)

¹⁸⁷ *Id.*

subjects. The statute would be superfluous if parental allegiance was the common law test.

But among the scant precedents that interpreted these passages was a conflict. Both Francis Bacon and a certain Justice Hussey appeared to consider the entirety of the statute to be declaratory of the common law.¹⁸⁸ But, quite clearly, only one part of the statute did so. Namely, the statute stated that “the Law of the Crown of *England* is, and always hath been such, that the Children of the Kings of *England*, in whatsoever Parts they be born, in *England* or elsewhere, be able and ought to bear the Inheritance of the Death of their Ancestors.”¹⁸⁹ Thus, it was only the children of the monarchs born abroad who were by common law inheritable. They did not inherit their parent’s allegiance (as was suggested for subjects generally) because the king could not have allegiance to himself. But the statute nevertheless remained ambiguous about subjecthood; Blackstone pointed out as much.¹⁹⁰

Even at the time of *Calvin’s Case*, various sources conflicted with Bacon’s and Justice Hussey’s liberal interpretation of *De Natus Ultra Mare* and its subjecthood implications.¹⁹¹ But, by the time of *Wong Kim Ark*, a sensible

¹⁸⁸ 2 HOWELL’S STATE TRIALS at 585 (per Francis Bacon) (“By the statute of 25 Ed. 3, which, if you will believe Hussey, is but a declaration of the common law, all children born in any parts of the world, if they be of English parents continuing at that time as liege subjects to the king, and having done no act to forfeit the benefit of their allegiance, are ipso facto naturalized.”). See also, BROOKE’S GRAND ABRIDGEMENT. The Law French reads: “Nota p Hussey chiefs Justice, si home suit nee ultra mate dont le pere + mere sont engloys tis el suit enheritable deuat lestatute, tame oze lestatute sait c clere, titulo Trial Fitzh. 29 (1 R. 3.4.)” Roughly translated: “Hussey, Chief Justice, noted that if a person is born overseas to an English father and mother, he is capable of inheriting even apart from the statute, although the statute states the matter clearly.”

¹⁸⁹ *De Natus Ultra Mare* (1350), 25 Edw. III. Stat. 2.

¹⁹⁰ 1 BLACKSTONE 373 (suggesting that the statute was, contrary to other sources, merely about inheritance).

¹⁹¹ The primary case is *Hyde v. Hill* (1582), 37 Eng. Rep. 270 (“It was held upon evidence, that if baron and feme [husband and wife] English go beyond sea without licence, or tarry there after the time limited by the licence, and have issue, that the issue is an alien, and not inheritable, contrary to the opinion of Hussey, 1 Rich. 3. pl. 4”). But the conflict emerged far earlier. Hussey’s opinion found in LA GRAUNDE ABRIDGEMENT is contradicted by another entry: “Per Nouton, u home ala outer le meere sans conge le roy + ad issu la + deny + issu sinnyne, issu ne terra son heireo q it est alien nee, + le terre eschetera, + nul auter se rason heir. ” Roughly: “Per Nouton, if a man goes beyond the sea without the King’s leave, and has issue there born, and issue ensuing, the issue shall not hold his inheritance, for he is

and straightforward reading prevailed. Nothing in the statute justified the conclusion that it was declaratory of a common law principle that a parent's allegiance or protection subsequently confers a child's own natural subjection.¹⁹² "There is not, and never was, any such common law principle."¹⁹³

In writing *Calvin's Case*, Coke was probably aware that the cases interpreting the statute were contested. He thus opted for a narrower view. Observing that "many times" birth "without any place within the king's dominions may make a subject born" he explains that "if any of the king's Ambassadors in foreign Nations, have children there of their wives, being English women, by the Common Laws of England they are natural born. . . and yet they are born out of the king's dominions."¹⁹⁴ This first mention¹⁹⁵ of the ambassadorial exception seems to be no application of the general common law rule. Instead, by referencing the status of the Ambassador's wife, Coke appears to refer to the statute's requirement that both parents be subjects, just as Francis Bacon had done.

We find that the ambassadorial exception emerged either as a freestanding application of these statutory rules or from its own special exception. But a freestanding application of the statutory rule would mean, paradoxically, that the children of ambassadors from foreign nations would merely be subject to the conventional rule; they would be English subjects. The rule would only go one way, protecting the natural subjecthood of the children of *English* ambassadors, not vice versa. This is plausible, and both Coke and Blackstone¹⁹⁶ only refer to the exception being applied to English

alien born; and the land shall escheat, and no other shall be rightful heir." See "Denizen & Alien," in LA GRAUNDE ABIRDGEMENT fol. 214 (1576).

¹⁹² See *United States v. Wong Kim Ark*, 169 U.S. at 669-72 (noting, among other things, that serious historical investigation proved Bacon, Hussey, and others were wrong about the declaratory nature of *De Natus Ultra Mare*).

¹⁹³ *Id.*, at 670 (quoting HORACE BINNEY, *THE ALIENIGENAE OF THE UNITED STATES UNDER THE PRESENT NATURALIZATION LAWS* 14, 20 (1853)).

¹⁹⁴ Emphasis ours. 7 Co. Rep. at 18a-b.

¹⁹⁵ We have not been able to identify an earlier instance in which common law sources recognize that the children of ambassadors are English.

¹⁹⁶ Both only refer to *English* ambassadors living abroad. Blackstone cites Coke for the proposition that an ambassador's children were "always" held to be natural subjects despite Coke's apparent application of the statutory rule (one that, incidentally, Blackstone appeared to interpret differently). Compare *Calvin's Case*, 7 Co. Rep. at 18a with 1 BLACKSTONE 373.

ambassadors abroad (therefore only overlapping with the relevant statutory exception). The plausible special exception for ambassadors, however, would be an extension of the principle that ambassadors were understood by English law to be closer to sovereigns themselves than normal sojourning subjects. They would thus benefit from the only part of the common law said to extend through parental blood rather than place: the king's children themselves.

Under international law accepted in England, ambassadors (or "prorex") within the kingdom were not subject to "any Act of Parliament, private Law or Custom of this Relam" that did not comport with the Law of Nations or *ius gentium*.¹⁹⁷ In other words, unlike "the subjects of either kingdom" (England or the foreign nation), only international law applied to Ambassadors because they possessed the "priviledge and dignity" and "high . . . place" attendant to their nation's sovereignty.¹⁹⁸ They "representeth a kings person" and thus were required to travel to and from England under protective letters of "credence" or "safe conduct," just as a foreign King would.¹⁹⁹ As representatives of their sovereign, they could not "be punished here as any other private Alien."²⁰⁰ But, notably, if an Ambassador committed a crime such "as Treason, Felony, Adultery, or any other crime which is against the Law of Nations," then "he loseth the priviledge and dignity of an Ambassador, as unworthy" of the exception, may be punished by the ordinary course of English law, and would "not . . . be remanded to his Sovereaign but of curtesie."²⁰¹ In other words, Ambassador parents were not subject to the governing authority of English law as any normal alien would be. Instead, they carry their nation's sovereignty with them and, like that of the English monarch, impart their own sovereign ties to their children while abroad.

¹⁹⁷ 2 INSTITUTES 153.

¹⁹⁸ *Id.*

¹⁹⁹ See EDWARD COKE, THE FOURTH PART OF THE INSTITUTES OF THE LAWS OF ENGLAND: CONCERNING THE JURISDICTION OF COURTS 153 (1797) [hereinafter 4 INSTITUTES] ("[A]t this day there could be no Ambassador without Letters of credence of his Sovereaign, to another that had Sovereaign Authority."); *id.*, at 155 ("And it is to be observed that of ancient time, and until latter days no Ambassador came into this Realm before he had a safe conduct. For as no King, etc. can come into this Realm without a license or safe conduct, so no Prorex, etc. which representeth a kings person can do it.").

²⁰⁰ *Id.*

²⁰¹ *Id.* See also, MATHEW HALE, HISTORIA PLACITORUM CORONAE: THE HISTORY OF THE PLEAS OF THE CROWN VOLUME I 96 (1736) [hereinafter "HALE, 1 HISTORIA PLACITORUM"] (describing the "special capacity . . . for a special end" that attaches to ambassadors and foreign agents").

Although it seems the tradition came to converge on the second of these theories,²⁰² neither plausible reading of the ambassadorial exception impinges the conventional story of what confers natural subjecthood at common law. It is emphatically not the conventional rule that “[t]o be a natural born subject” within England “one must be born under the ligeance of a subject.”²⁰³ As Coke says, if land is not under the king’s actual obedience, a child *might* be natural born if the statutory exception applied. But that exception only applies when the king does not possess the land.

The statutory exception was, incidentally, modified frequently by Parliament. These repeated modifications repeatedly show the conceptual difference in English law between the subjecthood status of parents and birth within or without the crown’s allegiance. Edward III’s *De Natis Ultra Mare* began the statutory tradition by regulating inheritance rights. As we saw, however, it generated some confusion. In 1708, however, Parliament suggested otherwise by passing the Foreign Protestants Naturalization Act. It states:

That the Children of all natural born Subjects born out of the Ligeance of Her Majesty Her Heires and Successors shall be deemed adjudged and taken to be natural born Subjects of this Kingdom to all Intents Constructions and Purposes whatsoever.²⁰⁴

Like *De Natis Ultra Mare*, the language here conveys that parent “natural born Subjects” are distinct from birth within “the ligeance of her Majesty.” Again, the statute would be superfluous if the common law rule already comprehended parental allegiance.

In 1711, Parliament amended parts of the act, keeping the statutory rule about the children of subjects abroad.²⁰⁵ In 1730, the British Nationality Act likewise provided:

²⁰² 4 BLACKSTONE 70 (stating that “the common law of England recognizes” the rights of ambassadors “in their full extent, by immediately stopping all legal process, sued out through hthe

²⁰³ See Wurman, *Jurisdiction and Citizenship*, *supra* note 110 at 332.

²⁰⁴ An Act for naturalizing Foreign Protestants, 7 Anne c. 5 (1708), in THE STATUTES OF THE REALM VOLUME IX 63 (A. Luders ed.) (1963) [hereinafter 9 STATUTES OF THE REALM]. See also, 29 Car. II, c. 6 (1677) (naturalizing children born during the Interregnum).

²⁰⁵ *An Act to repeal the Act of the Seventh Year of Her Majesties Reign Intituled An Act for naturalizing Foeign Protestants (except what relates to the Children of Her Majesties*

for the explaining the said recited Clause in the said Act [of 1708] . . . [t]hat all Children born out of the Ligeance of the Crown of England, or of Great Britain, or which shall hereafter be born out of such Ligeance, whose Fathers were or shall be natural-born Subjects of the Crown of England, or of Great Britain, at the Time of the Birth of such Children respectively ... are hereby declared to be natural-born Subjects of the Crown of Great Britain, to all Intents, Constructions and Purposes whatsoever.²⁰⁶

Again, to be born “out of the Ligeance” is distinct from parents who “were or shall be natural-born Subjects.” The Plantation Act of 1740 likewise repeats the nomenclature: “[A]ll Persons born out of the Ligeance of His Majesty . . . who have . . . or shall inhabit or reside for . . . seven years or more in any of His Majesty’s colonies in America . . . [upon taking an oath of fealty or fidelity] shall be deemed, adjudged, and taken to be His Majesty’s natural-born subjects of this Kingdom.”²⁰⁷ Whether one was born “out of the ligeance” was a function of the place in which one was born and not the status of one’s parents; children born abroad to natural-born English subjects were themselves born “out of the ligeance.”

The exception was continuously legislated about.²⁰⁸ But the rule for birth upon actually possessed land remained the same, and it remained a guarantee of common law, not statute law. One reads in Francis Plowden’s 1784 *Investigation of the Native Rights of British Subjects* that from these statutes “it is equally clear, that a person may be a natural born subject of Great

natural born Subjects born out of Her Majesties Allegiance), 10 Anne. c. 9 (1711), in 9 STATUTES OF THE REALM 557.

²⁰⁶ The British Nationality Act, 4 Geo. II, c. 21 (1731), in 6 THE STATUTES AT LARGE: FROM MAGNA CHARTA, TO THE END OF THE LAST PARLIAMENT, 1761 62-63 (1763).

²⁰⁷ *And Act for naturalizing such foreign Protestants, and others therein mentioned, as are settled, or shall settle, in any of his Majesty’s Colonies in America*, 13 Geo. II cap 5 (1740), in *id.*, at 384-85.

²⁰⁸ Indeed, it was the subject of various statutes in the early United States, including the First Congress. Why would Congress have created a statutory rule protecting the citizenship of children to natural-born citizens if it were not presupposed by them (and the common law) that natural-born citizenship extended from some other rule? *See generally*, Naturalization Act of 1790 (1 Stat. 103, March 26, 1790), Naturalization Act of 1795 (1 Stat. 414, January 29, 1795), Naturalization Act of 1802 (2 Stat. 153, April 14, 1802), and Act of February 10, 1855 (10 Stat. 604).

Britain by statute law, as well as by common law.”²⁰⁹ “At the instant of birth, the right of being a natural born subject accrues to the infant, and he becomes entitled to the benefit and protection of our king, laws, and constitution, if the place of his birth *was then within the dominions* of the king of Great-Britain.”²¹⁰ Citing *Calvin’s Case*, he tells his reader that it is “a settled point, that allegiance is co-extensive with the dominions of the sovereign.”²¹¹ Moreover, children born to Aliens in England may inherit from their English brothers “as if his father and mother had been English: for that quality [inheritable blood] comes not to us from our parents, but solely from the place of our birth.”²¹²

But Plowden was not alone in understanding *Calvin’s Case* this way. Before Plowden, Matthew Hale tells us in his *Prerogatives of the King* that

Calvin’s Case, hath settled this question, viz. that this subjection is not only confined to those that are born in England only, not to those only that are born within the territories and dominions of the crown of England, but

²⁰⁹ FRANCIS PLOWDEN, AN INVESTIGATION OF THE NATIVE RIGHTS OF BRITISH SUBJECTS 161-162 (1784). He supposed that it was obvious that the common law did not touch subjects abroad (because it did not touch parentage) which was why the statutes emerged. See *id.*, at 41 (“The legislature then, knowing that by the common law every child born out of the ligeance of the crown of England, was rendered thereby an alien, and of course disabled to inherit lands in England, made a general naturalization act for the benefit of all future generations; thereby enlarging the common law of the land, in favor of the children of English subjects, born out of the ligeance of the king: and remedying the evil which was felt by the common law.”).

²¹⁰ *Id.*, at 2. Emphasis ours. See also, *id.*, at 1 (“Within the dominions of each separate nation, there are certain benefits and advantages to be possessed and enjoyed by the native indigenae, from which aliens, born out of such dominions, are excluded.”).

²¹¹ *Id.*, at 8. He continues:

“[S]ince the determination of *Calvin’s case*, in which the idea of one local allegiance for the natural subjects of England, and of another local allegiance for the natural subjects of Scotland was exploded and defeated, every person born within the dominions of the king of England, whether in London or Dublin, Scotland or Jersey, in Hanover or Quebec, is under the protection, consequently at the ligeance of our King, and thereby capable of taking lands in England by descent or purchase and of enjoying all the other Rights and liberties of an Englishman.”

Id., at 8-9.

²¹² *Id.*, at 65. This would explain why the statute of Edward III created the inheritance exception.

[extends] to those that are born under the same king, though in separate and independent territories. Thus the *post-nati* in Scotland are natural born subjects in reference to England, though they are born in a distinct kingdom, yet because the king is the same over both and the natural allegiance is due to the person of the king, a birth within any part of his dominions makes a man not only a natural born subject of that kingdom or country wherein he is born, but of all the countries under the subjection of the same king at the time of his birth.²¹³

William Blackstone, echoing this understanding, stated simply: “Natural-born subjects are such as are born within the dominions of the crown of England, that is, within the ligeance.”²¹⁴ Yet, “by several more modern statutes” he adds, “all children born out of the king’s ligeance, whose fathers were natural-born subjects, are now deemed to be natural-born subjects.”²¹⁵ As he said, discussing the “maxim” of common law, “every man owes natural allegiance where he is born,” which is why statutory extensions of subjecthood became necessary.²¹⁶

Take, finally, Thomas Jefferson’s own reflections on the subject. In his 1783 “Notes on British and American Alienage,” he reflects that someone might think that “[t]he state of the father draws to it that of the son.”²¹⁷ The answer:

In Villenage [feudal serfdom and slavery] it does, but in no other case at the Common law. Thus a Natural subject having

²¹³ SIR MATTHEW HALE’S PREROGATIVES OF THE KING 54 (D.E.C. Yale ed. 1976). The manuscript was “substantially completed” in the 1660s and consulted by practitioners in manuscript form, but it was never published. *Id.*, at xxvi. It nevertheless represents the consensus common law understanding of *Calvin’s Case* in England in the late seventeenth century. See also Whittington, *supra* note 44 at 518 (discussing Matthey Hale’s analysis of aliens in amity and enemy aliens).

²¹⁴ 1 BLACKSTONE 354. He is mirroring the language used by statutes such as *De Natus Ultra Mare*.

²¹⁵ *Id.*, at 361. Hale, in contrast to Blackstone, seemed to agree with Hussey and Bacon that foreign birth was affected by common law, rather than Parliament’s naturalization power.

²¹⁶ *Id.*

²¹⁷ Thomas Jefferson, “Notes on British and American Alienage [1783],” in 6 THE PAPERS OF THOMAS JEFFERSON 433-36 (Julian Boyd ed., 1952).

a son born in a foreign state; the son was an alien at the Common law. The stat. 25.E.3. st.2. [De Natis Ultra Mare] first naturalized him if *both* parents were, at the time of his birth, natural subjects; and 7.Ann.c.5. and 4.G.2.c.21. where the father alone was. So an Alien in England having a child born there, that child is a natural subject. A denizen purchases land. His children born *before* denization can-not inherit, but those born *after* may. The state of the father then does not draw to it that of the child, at the Common law.²¹⁸

Jefferson's principal source? "Calvin's ca[se]."²¹⁹ He adds, per the general rule, "[w]hile the kings of Engld. had possessions in France, those born during such possession were natural subjects of Engl[an]d. 19.a. So is it now of Ireland, Jersey, Guernsey, Man, Alderney, &c."²²⁰ And "[i]f an alien have issue born within the king's obedience, the issue is a natural only: ib. This excludes enemies *possessing* a town."²²¹ Jefferson understood *Calvin's Case* well. It remained unambiguous. Only recently has it become necessary to disambiguate.

The *Wong Kim Ark* Court was presented with arguments that the statute of Edward III was declaratory of the common law and thus that parental citizenship status mattered under the actual common law rule. The Court was presented with the conflicting evidence and with Bacon's and Hussey's opinions. Unsurprisingly, it sided with Coke, Blackstone, and Jefferson:

"The notion that there is any common law principle to naturalize the children born in foreign countries, of native-born American father and mother, father or mother, must be discarded. There is not, and never was, any such common law principle." Binney on Alienigenae, 14, 20; 2 Amer. Law. Reg. 199, 203. And the great weight of the English authorities, before and since he wrote, appears to support his conclusion. *Calvin's Case*, 7 Rep. 17a, 18a; Co. Lit. 8a, and Hargrave's note 36; 1 Bl. Com. 373; Barrington on Statutes, (5th ed.) 268; Lord

²¹⁸ *Id.* Emphasis his.

²¹⁹ *Id.*

²²⁰ *Id.*

²²¹ *Id.* Emphasis ours.

Kenyon, in *Doe v. Jones*, 4 T. IR. 300, 308; Lord Chancellor Cranworth, in *Shedden v. Patrick*, 1 Macq. 535, 611; Cockburn on Nationality, 7, 9; D3e Geer v. Stone, 22 Oh. D. 243, 252; Dicey Conflict of Laws, 178, 741. “The acquisition,” says Mr. Dicey, (p. 741) “of nationality by descent, is foreign to the principles of the common law, and is based wholly upon statutory enactments.”²²²

Parental status was far from “most relevant” to determining one’s birthright status within the crown’s domain. It was irrelevant. The “most relevant desideratum” was the place of birth and whether, at the time of birth, the place was under the sovereign control of the crown. Relying on the statutory exception for subjects abroad to show that the true rule was different within England commits a fallacy of composition. It seeks to use an exception to prove the rule.

IV. WHAT IS “PROTECTION” AT COMMON LAW?

The common law rule as we have reported it here and elsewhere does not meaningfully comprehend parentage. Courts would determine the location of birth and that location would usually settle the matter. This section explains the common law concept of “protection.” On the restrictionist reading, protection was a status parents needed to possess to give birth to English subjects.²²³ If one presumes that parental status matters, the concept of protection does not deny birthright status to children merely on account of a parent’s unlawful presence. Protection does something else. In the parlance of the Citizenship Clause, one is subject to the jurisdiction of the United States if one is provided protection.

Wurman argues that protection was tied to a particular kind of sovereign consent.²²⁴ That consent, he claims, manifested as a sovereign

²²² *Wong Kim Ark*, 169 U.S. at 670.

²²³ See Wurman, *Jurisdiction and Citizenship*, *supra* note 110 at 320 (“[T]he most relevant desideratum at common law was whether the parents . . . were under the protection and within the allegiance of the sovereign.”).

²²⁴ *Id.*, at note 5 (stating that there is a special “role of consent in establishing an alien’s allegiance and protection”).

granting permission for aliens to enter the country through statutes.²²⁵ The argument implies that statutes that prohibit aliens from entering the United States likewise deny common-law protection and the birthright implications that protection arguably brings. Wurman buttresses this argument by looking to statutes that regulate alien merchants and the historic writ of safe conduct.²²⁶ His argument is historically unsupportable for several reasons.

First, taken to its logical conclusion, the proposed parent-centric protection-based rule collapses into a rule based on alien amity and enmity. Enemies received no protection.²²⁷ Protection could be granted to enemies selectively by the writ of safe conduct, but no special writ existed to selectively remove an alien's protection during a time of peace.²²⁸ Peace (or "amity") existed when the king of England was not in a state of declared war with a foreign nation.²²⁹ An alien was "either a friend that is in league . . . or an enemy that is in open war."²³⁰ Any alien from that peaceable nation would receive the king's protection. Because kings extended peace to one another, peace was extended to their respective subjects. These subjects were then supposed to possess temporary allegiance while traveling in the peaceable king's land. That allegiance is "wrought by the Law" and "when an Alien that is in amity, cometh into England, so then he is within the Kings protection, and owes a locall obedience or ligeance."²³¹

²²⁵ See Wurman, *supra* note 110 at 343 ("[F]or an alien to be under the sovereign's protection, the sovereign's consent by statute or by safe-conduct was required.").

²²⁶ See Wurman, *supra* note 110 at 343

²²⁷ See *infra* note 243-46 and accompanying text. See also Keener, *Calvin's Case and Birthright Citizenship*, *supra* n. 44 at 31 note 76.

²²⁸ See *infra* Part IV.iv and accompanying text.

²²⁹ 1 INSTITUTES at 129b ("[T]he law doth distinguish between an alien, that is a subject to one that is an enemy to the king, and one that is subject to one that is in league with the king; and true it is that an Alien enemy shall mainataine neither reall nor personall Action . . . that is untill both nations be in peace."). See also Keener, *Calvin's Case and Birthright Citizenship*, *supra* n. 44 at 30.

²³⁰ *Calvin's Case*, 7 Co. Rep. at 17a. Notably, even an alien from a country at "open war" could retain the king's protection if he himself did not engage in warlike behavior. An alien enemy who "lives here as a private man" and remains in the country after war is declared is still "under the cover and protection of the king of England" and continues to owe "local allegiance." HALE, HISTORIA PLACITORUM at 60. The American edition further notes that in the United States legal protection of enemy aliens is implied by their not having been removed from the country. *Id.*, at 60 n. 1 (1847 ed).

²³¹ LEIGH, PHILOLOGICALL COMMENTARY at 150-151. See also *Calvin's Case*, 7 Co. Rep. at 5b (stating that "ligeantia localis" or local allegiance is "wrought by the law, and that is when

Second, protection is a guarantee of process and it is extended to all aliens from peaceable nations. That process could not be denied (or “disabled”) to anyone but traitors, outlaws, abjurers,²³² or alien enemies. That process was granted to all subjects and alien visitors (including criminals), save those from enemy nations.²³³ But another form of protection could be granted.²³⁴ That protection was granted by equity and extended to aliens on a case-by-case basis. The reverse was not true.²³⁵ Just like any Englishman, to be removed from the protection of law, an individual alien in amity would need to be “disabled” by due process of law. The king could not except aliens out of the law’s protection by whim any more than he could do so for his own subjects.²³⁶ He could, of course, declare war. Out of prudence or mercy, the king could extend protection to otherwise uncovered aliens but he could not take it away, except by declaring war against an entire foreign nation.

Third, the consent-based view of “protection” is tied to a misapprehension of statute law. The common law distinguished between aliens generally and a special subclass of aliens called “merchants.”²³⁷ Merchants were subject to special commercial regulation. In many respects, including in Magan Charta, merchants had special privileges distinct from aliens generally. They would receive special assistance during times of war and could even bypass trials for speedy conflict-resolution outside common law courts.²³⁸ It is a mistake to equate the subclass of merchants and statutory language concerning them with aliens generally. Aliens benefitted from ordinary (but limited) civil liberties and received special common law process rights. Aliens could freely enter and leave the country, sue and be sued, and would be indicted for violating the king’s peace. Perhaps most importantly, they would receive jury trials. The various statutes, including Magna Charta,

an alien that is in amity cometh into England, because as long as he is within England, he is within the King’s protection”).

²³² Abjurers are subjects who renounced their English subjecthood. *See* EDMUND WINGATE, MAXIMES OF REASON, OR, THE REASON OF THE COMMON LAW OF ENGLAND 347 (1658) (“A person abjured is dis-abled to sue any Action; for that he is extra Legem; and yet he cannot be properly said to be Outlawed.”) [hereinafter WINGATE, MAXIMES OF REASON].

²³³ *See infra* Part IV.ii and accompanying text.

²³⁴ Wurman, *supra* note 110, at 341-42.

²³⁵ *See infra* notes 339-40 and accompanying text.

²³⁶ Even bills of attainder were *de jure* trials that formally removed someone from the law’s protection. *See infra* note 274 and accompanying text.

²³⁷ *See infra* Part IV.iii.

²³⁸ *See infra* notes 310-13 and accompanying text.

that discuss and regulate merchants cannot be used to demonstrate the existence of a special regulatory regime for immigration. Because they do not regulate aliens generally, they cannot therefore prove that statutory consent was necessary for an alien's protection. Even if they could, the crime of entering England illegally would not on its own have meant that the aliens would receive no criminal process. They would receive process, which is nothing other than "protection," and then be removed.

The curious reader will wonder whether these process rights could be modified by statute. The answer was undeniably yes. Parliament was supreme. As Blackstone tells us, "I know of no power in the ordinary forms of the Constitution, that is vested with the authority to control [Parliament]." ²³⁹ But these process rights were neither taken away nor qualified, at least not before the American War for Independence. In the United States, process rights were removed from legislative control by the Constitution. Thus, it remains the case that prohibiting immigration is unrelated to the process rights that a criminal alien might possess. ²⁴⁰ At common law, the two only align in times of war.

Thus, aliens present during times of peace—or "in amity" or "friendship"—possessed certain privileges. "An alien friend . . . may by the Common Law have, require, and get within this Realm, by gift, trade, or other lawfull means, any treasure, or goods personal whatsoever, as well as any Englishman, and may maintain any action for the same." ²⁴¹ But the privileges were limited. Aliens in amity could not maintain any action to recover *land*. "Alien friends cannot acquire, or get, nor maintain any action real or personal, for any land or house, unless the house be for their necessary habitation." ²⁴² Indeed, this discrepancy animates the question presented to the Exchequer Chamber in *Calvin's Case*.

²³⁹ 1 BLACKSTONE 91.

²⁴⁰ *Zadvydas v. Davis*, 533 U.S. 678, 693 (2001) ("[T]he Due Process Clause applies to all 'persons' within the United States, including aliens, whether their presence here is lawful, unlawful, temporary, or permanent."). It is also true that "[d]ue process does not invest any alien with a right to enter the United States, nor confer on those admitted the right to remain against the national will. Nothing in the Constitution requires admission or sufferance of aliens hostile to our scheme of government." *Shaughnessy v. United States ex rel. Mezei*, 345 U.S. 206, 222-23 (1953) (per Jackson, J. dissenting).

²⁴¹ *Calvin's Case*, 7 Co. Rep. at 17a.

²⁴² *Id.*

The question of this case as to matter in law was, whether Robert Calvin the Plaintiff (being born in Scotland since the Crown of England descended to His Majesty) be an alien born, and consequently disabled to bring any real or personal action for any lands within the realm of England.²⁴³

The distinction between aliens present in amity and natural subjects was thus narrow. The latter could sue for anything. The former could sue for anything but landed property. Calvin demonstrated that he was a natural-born subject not by successfully bringing a suit in court. Any friendly alien could have done that. He demonstrated that he was a natural-born subject by bringing a suit for land, which no alien could have done.

The distinction, by contrast, between natural subjects and enemies was vast. “But if this Alien become an enemy (as all Alien friends may) then he is utterly disabled to maintain any action, or get any thing within this Realm.”²⁴⁴ As we show below, it the *disability* to bring legal actions or demand juries that is meant by someone not being under the king’s protection. Consequently, enemy aliens are functionally equivalent to outlaws,²⁴⁵ traitors, and anyone attainted at law.²⁴⁶ “If a man be attainted of Felony or Treason, he hath lost the King’s legal protection, for he is thereby utterly disabled to sue any action real or personal (which is a greater disability than an alien in league hath).”²⁴⁷ And thus it required special action by the sovereign to provide such protections to *enemy* aliens. Aliens in amity could not lose life or property but by trials, attainders, and due process. It is that process that formally constitutes the law’s protection. Because the concepts of amity and enmity remained intact and migrated to America,²⁴⁸ the same due process guarantees and expectations were contemporaneous at the time of the Founding and beyond.

²⁴³ *Id.*, at 2a.

²⁴⁴ *Id.*, at 17a.

²⁴⁵ See *id.*, at 14a (noting that “[a] man Outlawed is out of the benefit of the Municipal Law” but because his natural allegiance is perpetual he may be pardoned by “the King’s natural protection,” which is of equity).

²⁴⁶ See *infra* notes 277, 279, and accompanying text.

²⁴⁷ *Calvin’s Case*, 7. Co. Rep. at 13b-14a.

²⁴⁸ See Jefferson, *supra* note 216 and accompanying text. See generally, Whittington, *supra* note 44 at IV.A.

i. Protection was Process

Protection, it is said, is exchanged for obedience.²⁴⁹ Protection is not an empty word either; it possessed formal legal content at common law. That content did not change before the Revolution of 1776. Put simply, if someone was “protected” at common law, that person was entitled to *due process*. This protection was, Coke explained, “by law.”²⁵⁰ A second form existed, however, “of grace” and attached to kingly powers like the pardon.²⁵¹

As Coke explained in *Calvin’s Case* and elsewhere,²⁵² the kings over time became “tied to” the “formality of Law.”²⁵³ Whereas “Kings in ancient time” adjudicated by “natural equity,” “Municipal Laws were given” necessarily to carry out and buttress peace.²⁵⁴ First, that peace was a guarantee of legal process in formalized practices of constables,²⁵⁵ writs, juries, and courts formed by common law and statute law.²⁵⁶ Second, it was a set of particular equitable exceptions or additions to that legal process. Both forms of protection derive from the ancient “king’s peace.” But, by the time of *Calvin’s Case* and later, “protection” meant the general guarantee of or access to law courts and writs, subject to valid exceptions carried out by royal prerogative. As law courts and jury trials were categorically guaranteed to aliens in amity and categorically denied to aliens in enmity, any rule about protection given to aliens derived first from a status of peace between nations.

²⁴⁹ *Calvin’s Case*, 7 Co. Rep. at 5b (explaining that when an alien comes “within the King’s protection” he “therefore . . . oweth unto the King a local obedience or ligeance”). See also Whittington, *supra* note 44 at 530.

²⁵⁰ See 1 INSTITUTES 130a (explaining that particular protections are either “by law” or “of grace”); *Calvin’s Case*, 7 Co. Rep. 14a (describing “legal protection” as “the benefit of the Municipal Law”).

²⁵¹ *Id.*

²⁵² In perhaps the most famous moments of Coke’s life, he explained to King James I that the king is subject to and a creature of the law itself. In *Prohibitions del Roy* Coke states, quoting Bracton, that James I is “sub lege quia lex facit regem” or “under the law because the law makes the king.” See *Prohibitions del Roy* (1608), 12 Co. Rep. 65. For more information about the relationship of *Calvin’s Case* to *Prohibitions del Roy*, see generally Keener, *The Provenance of Edward Coke’s Artificial Reason*, *supra* note 115.

²⁵³ *Calvin’s Case*, 7 Co. Rep. at 13a.

²⁵⁴ *Id.*, at 17b.

²⁵⁵ *Beale v. Carter* (K.B. 1312), 3 COKE’S NOTEBOOKS 484 (“[T]he constable is a conservator of the peace by the common law, and his office and duty is to prevent felonies, riots and routs and other perturbations of the peace.”).

²⁵⁶ See *infra* note 274 and accompanying text.

Equating legal process with the king's peace predates William the Conqueror. Known first as a protection over the "king's highway," crimes against peace—or *girthbryce* ("breach of peace")—were ancient.²⁵⁷ In its incipient form, this peace was enforced and protected municipally by the hundred court and ealdorman,²⁵⁸ but it ultimately drifted into the jurisdiction of common law courts. At times, this early form of protection was described as due explicitly to foreigners.²⁵⁹ In 994 A.D., for example, King Aethelred's famous treaty with the Danes extended the king's peace to visitors from lands at peace with him: "Let every man of those that are in peace with us have peace both by land and by water, both within harbour and without."²⁶⁰ As kingly jurisdiction grew, so did the protections for foreigners and the kinless. At another time, the king was dubbed the *maeg and mundboran*, the "kinsman and protector" of visiting aliens.²⁶¹ William the Conqueror, following certain

²⁵⁷ Per Maitland and Pollock, all criminal offences were violative of the peace. The phrase "the king's highway" appears in the *Leges Edwardi* but became, as they report, "a kind of ornament of speech" that ultimately extended everywhere. See FREDERICK POLLOCK & FREDERIC WILLIAM MAITLAND, 1 *THE HISTORY OF ENGLISH LAW BEFORE THE TIME OF EDWARD I* 22 (1898) [hereinafter POLLOCK AND MAITLAND, *HISTORY OF ENGLISH LAW*]. See also, BRUCE R. O'BRIEN, *GOD'S PEACE AND KING'S PEACE: THE LAWS OF EDWARD THE CONFESSOR* 73 (1999) [hereinafter O'BRIEN, *GOD'S PEACE*].

²⁵⁸ POLLOCK AND MAITLAND, *HISTORY OF ENGLISH LAW*, at 51.

²⁵⁹ O'BRIEN, *GOD'S PEACE*, at 77. For example, the apocryphal common law text, *Leges Edwardi Confessoris*, singled out Jewish people for special protection. *Id.*, at 185 ("It should be known that all Jews, in whichever kingdom they may be, ought to be under the guardianship and protection of the liege king.").

²⁶⁰ Frederick Pollock, *King's Peace*, 1 L. Q. REV. 37, 43 (1885). This may be precursor language to Magna Charta Ch. 30. See also, 1 *ANCIENT LAWS AND INSTITUTES OF ENGLAND* 285-286 (ed. Thorpe) (1840).

²⁶¹ O'BRIEN, *GOD'S PEACE*, at 80. See also, *THE LAWS OF THE EARLIEST ENGLISH KINGS* 109 (ed. F.L. Attenborough) (1922) (reporting from the laws of King Alfred and King Guthrum that "if any attempt is made to deprive in any wise a man in orders, or a stranger, of either his goods or his life, the king . . . and the bishop of the diocese shall act as his kinsmen and protectors, unless he has some other.").

ancient precedents of England,²⁶² extended and enforced customary protections to aliens present, such as his Normans, in the land.²⁶³

The king was no kinsman to enemies. And subjects could lose their kinship with the king. A kind of domestic enemy existed in the formal status of “outlaw,” defined as one’s “loss or deprivation of the benefit belonging to a Subject, that is of the Kings protection and the Realm.”²⁶⁴ In Coke’s time, a subject could not be deprived of protection but by greivous offenses and *praemunire*.²⁶⁵ Receiving no protection, outlaws had neither security of life nor property.²⁶⁶ At various times, anyone could kill outlaws with impunity and the crown could forcibly take their possessions.²⁶⁷ Even before the Conquest, it was no offence to kill the king’s enemy.²⁶⁸ Maitland and Pollock report that the law of enemies was highly redolent of attainder by the writ of *praemunire facias*, a process that explicitly removed offenders from the king’s protection.²⁶⁹ Over time, the forms and habits by which special protections

²⁶² This is the so-called “murder fine.” *Id.*, at 77-78. According to the *Leges Edwardi Confessoris*, following a murder, the community (vill) would pay a fine through their baron that would not be returned to the community until the murderer was found. *See* O’BRIEN, GOD’S PEACE at 173-75. The law was apparently imposed after the conquest of King Cnut to protect his foreign men. *Id.*, at 175. *See also id.*, at 78 (discussing the plausibility of this history).

²⁶³ After Hastings in 1066 B.C., Englishmen and Normans were in constant conflict. Once he supposedly authorized the ancient “laws and customs” of England, William I began enforcing the murder fine to preserve peace. *Id.* at 193. The affirmation is apocryphally recorded in the *Leges Edwardi Confessoris*: “But all the fellow countrymen who had set forth the laws [to William] begged him very much to allow them to have the laws and customs with which their ancestors had lived and they themselves were born, because it was hard fro them to adopt laws and to judge according to those that they did not know. . . . Finally, by the counsel and at the request of the barons, he acquiesced. And so the laws of King Edward were authorized.” *Id.*

²⁶⁴ JOHN RASTELL, AN EXPOSITION OF CERTAINE DIFFICULT AND OBSCURE WORDS, AND TERMES OF THE LAWES OF THIS REALME, NEWLY SET FORTH & AUGMENTED, BOTH IN FRENCH & ENGLISH, FOR THE HELP OF SUCH YONG STUDENTS, AS ARE DESIROUS TO ATTAINE TO THE KNOWLEDGE OF THE SAME 175 (1536). *See also Calvin’s Case*, 7 Co. Rep. at 14a (defining outlaws the same way).

²⁶⁵ *See infra* note 274 and accompanying text.

²⁶⁶ The deprivation of “protection” was explicit. *See* LEIGH, PHILOLOGICALL COMMENTARY at 175 (“Outlawrie, is the loss or deprivation of belonging to a Subject, that is of the Kings protection and the Realm.”).

²⁶⁷ POLLOCK AND MAITLAND, HISTORY OF ENGLISH LAW at 55. Later, Coke notes that the right to execute outlaws was narrowed to sheriffs only. *See Calvin’s Case*, 7 Co. Rep. at 14a.

²⁶⁸ POLLOCK AND MAITLAND, HISTORY OF ENGLISH LAW at 55.

²⁶⁹ *Id.*

were granted by kings faded into a general kingly protection carried out, limited, and affirmed by the common law.²⁷⁰ Some vestiges of the old regime remained.²⁷¹ Centuries thereafter, criminal indictments formalistically read that someone acted “against his due allegiance and fealty and against the peace of the said present lord king and lady queen, their crown and dignity, etc.”²⁷²

In the *Institutes*, Coke discusses *praemunire* at length. Famously used by Henry VIII to oust Cardinal Wolsey,²⁷³ *praemunire* and the writ of *praemunire facias* reflected the common-law understanding of the king’s peace and the king’s protection. Focusing on the use of the word “protection,” Coke looks to Littleton’s *Tenures*, which say: “the law and the king’s writs be the things, by which a man is protected and holpen; and so, during the time that a man . . . is out of the king’s protection, he is out of helpe and protection by the king’s law, or by the king’s writ.”²⁷⁴ Coke’s analysis proceeds:

There be three things, as here it appeareth, whereby every subject is protected, viz. *Rex, Lex, et Rescripta Regis*, the king, the law, and the king’s writs. The law is the rule, but it is mute. The king judgeth by his judges, and they are the speaking law, *lex loquens*. The processe and the execution, which is the life of the law, consisteth in the king’s writs. So as he that is out of the protection of the king, cannot be aided or protected by the king’s law, or the king’s writ. *Rex tueter legem, et lex tueter jus*. Besides men attainted in a *praemunire*, every person that is attainted of high-treason, petit-treason, or felony, is disabled

²⁷⁰ Pollock, *supra* note 259, at 48 (“After the Conquest, then, the various forms in which the king’s special protection had been given disappear, or rather merge in his general protection and authority.”). Coke would come to describe the general protection as a “legal protection” created by judges and municipal law. See *infra* note 276-77 and accompanying text.

²⁷¹ Peace by way of special writs remained. For their use in ancient England see O’BRIEN, *GOD’S PEACE* at 187 (quoting the *Leges Edwardi Confessoris* referring to “peace by the king’s writ”). By Coke’s time, writs of protection were significantly limited. See 1 *INSTITUTES* 130a-131b (discussing the specific writs).

²⁷² “Indictment filed in Trin. 3 & 4 Mar.” (1556), in 1 *DYER’S NOTEBOOKS* 93 (John Baker ed.) (1994).

²⁷³ See W.T. Waugh, *The Great Statute of Praemunire*, 37 *ENG HIST. REV.* 173 (1922).

²⁷⁴ 1 *INSTITUTES* at 199.

to bring any action; for he is *extra legem positus*, and is accounted in law *civiliter mortuus*.²⁷⁵

To be outside the king's protection was to be civilly dead. Anyone "attainted in a *Praemunire*," Coke tells us in *Calvin's Case*, should be treated "with [as] an enemy" because "any man might have slain such a person."²⁷⁶ This nullification of so-called "legal protection" was necessarily "tyed to Municipal Laws" but it could have been overridden by pardon.²⁷⁷ Outlaws were not merely criminals to be punished with trials. They fell outside the country's lawful authority and were thus disabled from the ordinary process rights of criminals.²⁷⁸

This legal protection is "Judicial" or "Municipal" in nature.²⁷⁹ It necessarily extended anywhere within the king's possession. Importantly, it protected the sacrosanct rights Coke found within Magna Charta. Discussing Chapter 29 in the *Institutes*, Coke lingers on the phrase "liber homo" ("freeman"). After explaining that the words apply to men and women,²⁸⁰ he emphasizes the phrase's significance: "the liberty of a mans person is more precious to him than all the rest that follow, and therefore it is great reason, that he should by law be relieved therein, if he be wronged."²⁸¹ Someone could

²⁷⁵ 1 INSTITUTES at 130a. The Latin reads: "The king protects law, and law protects right. . . . set outside the law . . . civilly dead."

²⁷⁶ *Calvin's Case*, 7 Co. Rep. at 14a.

²⁷⁷ *Id.*

²⁷⁸ As Coke notes, "A man outlawed is out of the benefit of the municipal law; for so saith Fitz. N. B. 161. a. *utlagatis est quasi extra legem positus*: and Bract. 1. 3. tract. 2. c. 11. saith, that *ea put geret lupinum*." *Id.* An outlaw bears the "head of a wolf" and may be slain by anyone just like a predatory beast.

²⁷⁹ *Id.*, at 14a. Protection was defined the same way later, too. See LEIGH, PHILOLOGICALL COMMENTARY at 194 ("Protection, there be three things whereby every Subject is protected, viz. Rex, Lex, & rescripta Regis, the King, the Law, and the Kings Writs. The Law is the rule, but it is mute, the King judgeth by his Judges, and they are Lex loquens. The process and the execution which is the life of the Law, consisteth in the Kings Writs, so that he that is out of the protection of the King, cannot be aided or protected by the Kings Law, or the Kings Writs, Rex tuetur legem & lex tuetur jus.").

²⁸⁰ 2 INSTITUTES at 45. Interpretations of "liber homo" generally included men, women, and friendly aliens. See JOHN BAKER, THE OXFORD HISTORY OF THE LAWS OF ENGLAND, VOLUME VI: 1483-1558 431 (2003) (noting that "'homo contains both sexes', and friendly aliens, but it did not include alien enemies, outlaws, pagans and infidels, persons attainted of felony, attainted jurors, or even villeins") [hereinafter BAKER, 6 HISTORY OF THE LAWS OF ENGLAND].

²⁸¹ *Id.*

not be deprived of their security of life and property by outlawry (literally “*exlex*”) but by “the law of the land” (i.e., *process*).²⁸² Although here Coke is speaking generally of subjects, this was likewise true for aliens in amity who the law attainted and removed from the general protection.²⁸³ Coke continued in his private notebooks:

And forasmuch as everything that everyone has in this world, or which concerns the freedom and liberty of his body or his freehold, or the benefit of the law to which he is inheritable, or his native country in which he was born, or the preservation of his reputation or goods, or his life, blood, and posterity: to all these things this Act applies.²⁸⁴

This chapter of Magna Charta forbade the denial of “justice or right” to subjects.²⁸⁵ “It is called right,” Coke tells us, “because it is the best birthright the subject hath, for thereby his goods, lands, wife, children, his body, life, honor, and estimation are protected from injury, and wrong.”²⁸⁶ The guarantee is criminal procedure and due process. Such security and freedoms evaporate without the king’s (i.e., the *law’s*) general protection. In Coke’s time, the king could not selectively remove people from the law’s protection without creating a constitutional crisis.²⁸⁷

²⁸² *Id.* For a discussion of the complicated procedure, see THEODORE PLUCKNETT, A CONCISE HISTORY OF THE COMMON LAW 430-32 (1956) (“The result of outlawry on criminal process is, in effect, a conviction; the outlaw is ‘attained’ and forfeits his chattels, while his free land . . . will escheat. If captured, the outlaw could be hanged merely upon proof of the outlawry having been made.”).

²⁸³ See Baker, *infra* note 279 and accompanying text; see also *Page’s Case* (1587) 5 Co. Rep. 52a (discussing the effects of attainder on an alien who lived in England).

²⁸⁴ “Treatise on Magna Charta and Habeas Corpus,” in 7 COKE’S NOTEBOOKS 1478 (1604).

²⁸⁵ 2 INSTITUTES 56.

²⁸⁶ *Id.*

²⁸⁷ The 1628 Petition of Right (originally drafted by Edward Coke) puts it best:

[B]y the said Great Charter and other the laws and statutes of this your realm, no man ought to be adjudged to death but by the laws and statutes of this your realm, no man ought to be adjudged to death but by the laws established in this your realm, either by the customes of the same realm, or by acts of parliament: and . . . no offender of what kind soever is

ii. Protective Process Extended to Aliens

The legal and “generall protection of the king . . . extends generally to all the king’s loyall subjects, denizens and aliens within the realme, whose offences have not made them incapable of it”²⁸⁸ There are many examples of how the process rights of criminal aliens in amity operated in England contemporaneously with *Calvin’s Case*. Take the following from Coke’s *Institutes*:

Aliens that are within the Realm of England, and whose Soveraignes are in amity with the King of England, are within the protection of the King, and do owe a local obedience to the King . . . and if they commit High Treason against the King, they shall be punished as Traitors, but otherwise [outside of amity] it is of an enemy²⁸⁹

Amity means that aliens will have the privilege of being indicted.²⁹⁰ They will get trials.²⁹¹ They will even be able to request that juries be partially composed of aliens by the ancient right of *de medietate linguae*.²⁹² The protection of aliens was so intertwined in English law that aliens were participants in the very process due to their criminal peers. As should by now be obvious, these process rights *are* the king’s protection. More fundamentally, however, the protection for aliens flowed from the peaceable relations of nations.

exempted from the proceedings to be used, and publishments to be inflicted by the laws and statutes of this your realm.

Petition of Right, 1628, 3 Car. 1, cap. 1, § VII (Eng.).

²⁸⁸ 2 INSTITUTES at 46. Coke is referring to attainder and praemunire.

²⁸⁹ EDWARD COKE, THE THIRD PART OF THE INSTITUTES OF THE LAWS OF ENGLAND: CONCERNING HIGH TREASON, AND OTHER PLEAS OF THE CROWN, AND CRIMINAL CASES 4-5 (6th ed. 1680) [hereinafter 3 INSTITUTES].

²⁹⁰ See WINGATE, MAXIMES OF REASON 346 (“If an Alien of a Countrey in league with the King come into this Kingdome, and here commit Treason, &c. he shall be indicted for it, and procéded against, according to the municipal Law of the land.”).

²⁹¹ *Id.*, at 27 (“The tryal against an Aliennee, that lived here under the protection of the king, and amity being between both kings, for High treason, shall . . . be tried according to the due course of the Common Law.”).

²⁹² This right is as old as 1354. See, Keener, note 44, at 31-32. For the test of alienage for purposes of collecting jurors, see *supra* note 159 and accompanying text.

Shirley's Case is the most famous example of the king's general protection extending to a foreigner. John Shirleys (or "Sherleys"), a Frenchman, entered England to participate in a rebellion in York.²⁹³ Once the rebellion was suppressed, the subjects were tried for treason and a question was raised about Shirleys's indictment. The natural question was whether he was within the law's protection and thus disabled from the right to common law process.

And note in the case above the indictment was *against the duty of his allegiance*, when he was not a subject of the realm; but this is of no signification; in this time of peace between England and France, to levy war with other English rebels was sufficient treason; and if it were in time of war, he should not be arraigned, but ransomed.²⁹⁴

His arraignment *was* his protection. That protection flowed explicitly from the "time of peace between England and France." Indeed, Coke cites *Shirleys's Case* in *Calvin's Case* for the proposition that a visiting alien "owed to the King a local obedience" as a consequence of amity, "that is, so long as he was within the King's protection."²⁹⁵ An alien from a friendly country who violated the duty of obedience to the law was a criminal, not a foreign combatant.

iii. Distinguishing Merchants from Aliens

The common-law protection guaranteed to aliens in amity differs from the regulatory scheme for the merchant class. This scheme changed over time,

²⁹³ *Shirley's Case* (1557), in DYER, REPORTS at 144a. See also Keener, *supra* n. 44 at 32-33 (explaining how the case "stands for the proposition that an alien in amity may enter England for the purpose of committing crimes (treason, no less!) and still be afforded the privileges of allegiance and the right to a trial").

²⁹⁴ *Id.* See also *Courteen's Case*, Hob. 270, 80 Eng. Repr. 416 (1618) ("But to the other point, I told the Attorney General, that I held the Dutch living here within the king's protection, being of a friend country, to be also truly under his subjection, and therefore capable of the title of his loving and obedient subjects; but they are not capable of the distinct title of natural subjects, which is usually in statute set in opposition against denizens and strangers. And therefore if such a stranger in Amity commit treason here, the Indict. shall conclude cont. debitam allegiantiam, and shall call the king Dominum suum, but not naturalem Dominum.").

²⁹⁵ *Calvin's Case*, 7 Co. Rep. at 6a.

but it generally fell under the moniker of *legem mercator* or “law merchant.”²⁹⁶ Law merchant and common law were separate domains of law.²⁹⁷ By Coke’s time, some viewed law merchant as a species of equity and admiralty law. Others, like Coke, considered law merchant a part of the common law. Regardless, English law operated differently for merchants than for aliens. That specific regulatory history, while important, has little to do with the general rights of aliens who might give birth to children in England. The lesser does not include the greater.

By the 1550s, there were between four and five thousand aliens present in London.²⁹⁸ Foreign merchants were probably ten percent of that population.²⁹⁹ And although statutes that addressed merchants sometimes crept into judicial discussions of aliens generally,³⁰⁰ the categories were legally distinct.³⁰¹ Indeed, the presence of aliens occasionally generated strife and frustration. But there was no easy common law remedy to unwelcome migration and presence, and the best example was that of the Roma people (Gypsies).³⁰² This is not to say that officials did not experiment with workarounds to address and evaluate the status of immigration in England.³⁰³

²⁹⁶ 2 INSTITUTES 58.

²⁹⁷ As Maitland and Pollock tell us, “[m]ere common law has little to do with these foreign merchants.” Indeed, “[b]efore the end of the thirteenth century ‘the law merchant’ was already conceived as a body of rules which stood apart from the common law.” The law there is “a mesh of privileges and of privileges that are hardly consistent” with one another. POLLOCK AND MAITLAND, HISTORY OF ENGLISH LAW at 447, 450.

²⁹⁸ For estimates of numbers see A. PETTEGREE, FOREIGN PROTESTANT COMMUNITIES IN SIXTEENTH-CENTURY LONDON 16-17, 83 (1986).

²⁹⁹ JOHN BAKER, HISTORY OF THE LAWS OF ENGLAND at 614.

³⁰⁰ In *Calvin’s Case*, Coke refers to Magna Charta’s Chapter 30, but only insofar as it discusses the effects of war upon foreigners (there, merchants specifically). 7 Co. Rep. at 24b. See also Keener, *supra* note 44 at 34.

³⁰¹ See *infra* notes 307-17 and accompanying text.

³⁰² Gerard Magliocca, *Without Domicile or Allegiance; Gypsies and Birthright Citizenship*, 49 HARV. J.L & PUB. POL’Y 539 (2026). Strikingly, a 1563 Act of Parliament purported to expel “Egyptians” but not “any person or persons born within the Queen’s Majesty’s Dominions.” Presumably this statutory caveat accounted for the natural subjects born to Roma parents who were unlawfully present. *Id.*

³⁰³ In 1613 and 1614, Walter Chute petitioned the king to create an office “for registering all foreigners within the realm except foreign merchants.” As proposed, an alien that didn’t voluntarily register himself or herself would be compelled to “leave the realm within a convenient time.” The Privy Council raised questions of legality and requested an advisory opinion from Coke and Hobart (the two chief justices). Coke reports that such a

The point, however, is that the welcomeness of foreigners was irrelevant to birthright subjecthood.³⁰⁴

But recent restrictionist accounts of the common-law birthright rule have viewed merchants and aliens as interchangeable. Magna Charta has several important chapters discussing merchants. The Great Charter is, thus, especially significant for the following erroneous conclusion: “an alien without permission to enter the realm—and certainly an alien *forbidden* from entering the realm—whether from a friendly or enemy country, would not have been under the protection of the sovereign.”³⁰⁵ In Chapter 30, Magna Charta grants “merchants” who “were not openly prohibited before” “safe and sure conduct” to travel to, stay within, and conduct business within the kingdom.³⁰⁶ But there is no mention of aliens generally. Only merchants. To reach the conclusion above from Magna Charta and other laws one must assume the false equivalency that a subclass of tradespeople, subject to a different domain of law, are the same as alien generally. But the restrictionist account goes further. It interprets openly prohibited merchants to be forbidden aliens and, notably, understands “safe and sure conduct” to be a grant of general common-law protection.

Both the plain meaning and inherited interpretations of Magna Charta tell us that this passage speaks to the regulation of commerce and trade, not the movement and protection of aliens generally. Coke tells us the “chapter concerneth merchant strangers.”³⁰⁷ He did not say “strangers” only. The prohibition against merchants was specific to “merchant strangers in amitie” whose participation in the English economy could be prohibited.³⁰⁸ As later commentators put it, Magna Charta “declared, that all Merchant Strangers

patent would be void and unlawful. Of many inconveniences, Coke reflects that the “counting of foreigners by a private person would inflict a terror on them, and the kings and princes of other countries would take offence at it and do in like manner to the king’s subjects.” See *Walter Chute’s Case* (1613-14), 8 COKE’S NOTEBOOKS 1899-1901.

³⁰⁴ See Magliocca, *supra* note 47 at 542 (“In other words, the native-born children of illegal alien parents were treated as subjects rather than as aliens.”).

³⁰⁵ Wurman, *Jurisdiction and Citizenship: A Reply*, *supra* note 113 at 4.

³⁰⁶ See 2 INSTITUTES 57 (where Coke reproduces and analyzes the text of the Charter).

³⁰⁷ *Id.* Even if we imagine that Coke was wrong in thinking that such provisions for safe conduct were originally meant to serve a specific function for alien merchants, the common law clearly came to mean that through the influence of Coke and others. There is no evidence that by the late eighteenth century anyone in England or America thought that aliens in amity required special permission in order to receive the protection of the law.

³⁰⁸ *Id.*

might be publicly prohibited *to Trade into this Realm*, be they in Amity, or otherwise.”³⁰⁹ Indeed, the same chapter contrasts enemy merchants with enemy aliens generally. Unlike aliens in enmity generally, enemy merchants were entitled to a presumption of safety during war. When war begins, enemy merchants “shall be attached without harm of body or goods, until it be known unto us, or our chief justice, how our merchants be intreated there in the land making war against us; and if our merchants be well intreated there, theirs shall be likewise with us.”³¹⁰ Coke adds, however, that “for such merchant strangers as come into the realme after the warre beginne, they may be dealt with as open enemies.”³¹¹ The chapter exists, he concludes, “for advancement of trade, and traffique; the meanes for the well using, and intreating of merchant strangers in all the particulars aforesaid, is a matter of great moment, as appeareth by many other acts of parliament, for as they be used here, so our merchants shall be dealt withall in other countries.”³¹²

The status of merchants conferred special privileges and procedures distinct from common law. Bracton describes merchants as “persons who ought to have speedy justice.”³¹³ English law grew to accommodate that speed. The first merchant courts of “pepoudrous” existed to swiftly resolve disputes in fairs and markets of England because, as Coke and Blackstone later observe, quick dispute-resolution “advance[d] trade and traffick” and resolved coordination issues of “the variety of persons that resort from distant places to a fair or market.”³¹⁴ The 1353 statute of Staple provided new statutory courts for the relief of merchants and it sought, explicitly, to “give courage to merchant strangers to come with their wares and merchandise into the realm.”³¹⁵ The substantive law of law merchant was, moreover, distinct from the common law. By the fifteenth century, if cases were not resolved by the

³⁰⁹ CHARLES MOLLOY, *DE JURE MARITIMO ET NAVALI, OR, A TREATISE OF AFFAIRS MARITIME AND OF COMMERCE IN THREE BOOKS* 435 (1676 ed.).

³¹⁰ *Id.*

³¹¹ *Id.*, at 58.

³¹² *Id.* Mathew Hale argues that as a consequence of this rule *enemy* merchants still “have the benefit of the king’s protection, and so owe a locall alligiance, which if they violate, they may be dealt with as traitors, not as enemies, for they have the advantage of the king’s protection, as well as his other subjects.” HALE, 1 *HISTORIA PLACITORUM* 60.

³¹³ Francis M. Burdick, *What Is the Law Merchant?* 2 COLUM. L. REV. 470 (1902) (quoting Bracton).

³¹⁴ *Id.*, quoting Coke and Blackstone.

³¹⁵ 27 Ed. III. Statute 2 cap. 2 (1353), in 1 *THE STATUTES AT LARGE* 276 (1763). It principally regulated “the staple of wools, leather, woodfels and lead.”

Court of the Mayor of the Staple,³¹⁶ it was understood that “merchants’ causes are properly to be determined in the chancery . . . for the customs of merchants are preserved chiefly by the said Court.”³¹⁷ One likely reason for this Chancery jurisdiction, we note below, is a merchant’s possession of the writ of “safe conduct.” Unlike normal aliens, merchants operated within a legal regime entirely distinct from the law of amity and common law generally.

The guarantee of “safe and secure conduct” is adding to amity, not supplementing it. This is because “protection” came in multiple forms. All persons present from peaceable countries have process rights. They are protected, and that protection is general. But “safe conducts” were a species of specific protection and, like amity, a creature of international law. It is a mistake to assume that without specific protection one was likewise without any general protection. Importantly, both kinds of protection operated differently within the common law system. Safe conducts, as used by merchants or ambassadors, *excepted* them from the processes of common law. It also protected them and other aliens in times of war.

iv. Particular Protection, Safe-Conducts, and Sovereign Consent

Although the common law granted a general protection to all non-enemies within the realm, the King could also grant “protection” particularly by writ.³¹⁸ These protective writs do not suggest that aliens in amity needed special permission or consent from the sovereign to receive protection. Protection extended by common law from the peace of kings. And, importantly, protection was different from permission to remain. Blackstone states:

³¹⁶ See 4 INSTITUTES cap. 26 (“The Court of the Mayor of the Staple is guided by the law merchant, which is the law of the staple . . . this Court (though it was far more ancient) is strengthened and warranted by act of parliament . . . It was oftentimes kept at Callice, and sometimes at Bridges in Flanders, and at Antwerpe, Middleburgh, &c., and therefore it was necessary that this Court should be governed by the law merchant.”).

³¹⁷ GERARD MALYNES, *VEL LEX MERCATORIA OR THE ANCIENT LAW-MERCHANT* 303 (1622)

³¹⁸ Coke tells us in the Institutes that, notwithstanding the general protection that extends to all subjects, denizens, and aliens, “there is a particular protection by writ.” 1 INSTITUTES 130a.

For so long as their nation continues at peace with ours, and they themselves behave peaceably,³¹⁹ they are under the king's protection; though liable to be sent home whenever the king sees occasion. But no subject of a nation *at war with us* can, by the law of nations, come into the realm, nor can travel himself upon the high seas, or send his goods and merchandize from one place to another, without danger of being seized by our subjects, unless he has letters of safe-conduct.³²⁰

Without a proper understanding of "protection," one might find it perplexing that aliens could be liable to removal despite being formally under the king's protection.³²¹ But protection guarantees the basic rights to common law process and its removal was both formalized and dramatic even when foreigners were no longer welcome. Indeed, even natural subjects were, in certain extreme instances, refused entry into their own kingdom.³²² No one doubts the protection they would be guaranteed in the realm as natural subjects. Insofar as protection remains part of the common law paradigm adopted by the Fourteenth Amendment, Blackstone's difference between protection and welcomeness remains.

Protection may be denied to aliens in amity only when they are convicted of offences that remove them from the king's protection. But particular writs of protection were not guarantees of general legal protection. They bypassed some ordinary legal process through some adjustment, exception, or stay of common law proceedings.³²³ Some granted immunity to

³¹⁹ He is referring to attainder, treason, praemunire, and other formal methods by which individuals were removed from the king's protection. Breaking the peace would be tried. In extreme cases, breaking the peace resulted in the removal of the king's protection.

³²⁰ 1 BLACKSTONE *251-52.

³²¹ See Wurman, *supra* note 113 at 4 ("[A]n alien without permission to enter the realm—and certainly an alien *forbidden* from entering the realm—whether from a friendly or enemy country, would not have been under the protection of the sovereign.").

³²² See, e.g., 27 Eliz. cap. 2. ("It shall not be lawful for any Jesuit, seminary priest, or other such priest, deacon, or other religious or ecclesiastical person whatsoever, born within this realm or any of the queen's dominions . . . to come into this realm or any of the queen's dominions, (except as in this act is excepted,) under pain of high treason.").

³²³ As Coke tells us, the "particular protection is of two sorts; one, to give a man immunity or freedom from actions or suits; the second, for the safety of his person . . . from violence, unlawful molestation or wrong." 1 INSTITUTES 130a.

soldiers during wartime and to ambassadors abroad.³²⁴ Others were specific to “great men” leaving the realm.³²⁵ Others were for prisoners of war.³²⁶ None conferred to individuals the general protection guaranteed by amity and to natural subjects. To the contrary, they were special immunities that existed to augment, delay, or change the very common law process that the general protection guaranteed.

Safe conducts were no different. And they were important. As Blackstone notes above, safe conducts were especially significant during wartime because they excepted aliens from the danger of “enemy” status. These writs functionally (though not formally) removed aliens from the state of enmity. Francis Bacon reflects on this quality of safe conducts in his *Calvin’s Case* argument. Speaking of the legal disabilities that attach to enemy aliens, he adds:

Neverthelesse, this admitteth a distinction. For if he come with safe conduct, otherwise it is. For then he may not be violated, either in person or goods. But yet hee must fetch his Justice at the fountaine head, for none of the Conduit pipes are open to him, he can have no remedy in any of the Kings Courts: but he must complain himselfe before the Kings Privy Councill. There he shall have a proceeding summary from houre to houre, the cause shall be determined by naturall equity, and not by rules of Law, and the decree of the Councill shall be executed by ayde of the Chauncery, as is 13. Edw. 4.³²⁷

Safe conducts issued to an enemy alien created a “kind of enemy” called “*inimicus permissus*.”³²⁸ Such aliens were individually and equitably protected by the king, but could also receive process rights of the general protection.

Safe conducts were unnecessary for aliens in amity. But representatives of foreign sovereigns, at least for a time, required them. Aliens were extended the courtesy of the king’s peace with a foreign peaceable king, but the travel of that peaceable king (or his envoy) to England was seen as

³²⁴ *Id.*

³²⁵ *Id.*, at 130b.

³²⁶ *Id.*

³²⁷ 2 HOWELL’S STATE TRIALS 581-82. Bacon is referencing the case below at *infra* note 334 and accompanying text.

³²⁸ *Calvin’s Case*, 7 Co. Rep. 18a.

exceeding the courtesy of amity. Foreign king's and their representatives required the king's specific welcome and thus, as Coke tells us, needed safe conducts. We read in *Calvin's Case* that "a Monarch or an absolute Prince cannot come into England without license of the King, but any subject being in league, may come into this Realm without license."³²⁹ This requirement of license by safe conduct extended to everyone who "representeth a Kings person," otherwise called *Prorex* ("viceroy").³³⁰ Ambassadors thus required safe conduct to enter the king's realm (and vice versa).³³¹ Of course, the King could issue safe conducts if—as they were phrased in the ancient Register³³²—he feared for a particular foreigner's safety.³³³ But doing so was not necessary.

Part of the legal apparatus that allowed merchants the separate processes of the law merchant was the writ of safe conduct. In addition to speedy conflict-resolution and special statutory courts, merchants with safe conduct could waive or avoid the inexpediency of jury trials. In one controversy in the Exchequer, it was put to the judges whether an alien merchant seeking restitution could circumvent the common law courts.³³⁴ The

³²⁹ *Id.*, at 21b.

³³⁰ 4 INSTITUTES cap. 26 at 155. "And it is to be observed that of ancient time, and until latter days no Ambassador came into this Realm before he had a safe conduct. For as no king, etc. can come into this Realm without a license or safe conduct, so no *Prorex*, etc. which representeth a Kings person can do it. For safe conducts see the Writs in the Register de salvo conductu, and the Statutes of 15 H.6 18 H. 6 and 20 H. 6 with all incidents thereunto. And king H.7 that wise and politick king would not in all his time suffer Lieger Ambassadors of any forain king or Prince within this Realm, nor be any with them, but upon occasion used Ambassadors."

³³¹ See also 4 INSTITUTES 153 ("[I]f a forein Ambassador being *Prorex* committeth here any crime, which is contra ius gentium, as Treason, Felony, Adultery, or any other crime which is against the Law of Nations, he loseth the privilege and dignity of an Ambassador, as unworthy of so high a place, and may be punished here as any other private Alien."); *Id.*, at 155 ("[O]f ancient time, and until latter days no Ambassador came into this Realm before he had a safe conduct. For as no king, etc. can come into this Realm without a license or safe conduct, so no *Prorex*, etc. which representeth a Kings person can do it.").

³³² The writs are called *de salvo conductu* in the *Registrum Brevium*. For information on the *Registrum Brevium*, see generally F.W. Maitland, *The History of the Register of Original Writs*, 3 HARV. L. REV. 97 (1889). Coke copies the writ into *Calvin's Case*, 7 Co. Rep. at 9a-b.

³³³ *Id.* The safe conduct explicitly says "et metuentes ex verisimilibus conjecturis per quosdam sibi comminantes tam in corpore quam in rebus suis" which means "and fearing from likely conjectures certain persons threatening to them, as well in [their] body as in [their] goods." (translation provided by authors).

³³⁴ The Carrier's Case (K.B. 1473), YB Pasch. 13 Edw. 4, pl. 5, fol. 9a-10b.

answer: an “an alien merchant, who had the king’s letters of safe conduct to come here, was not bound according to the law of the land to await trial by jury . . . and would be tried according to the law of nature called law merchant, in the Chancery.”³³⁵ Such was Bacon’s point in his *Calvin’s Case* speech.³³⁶ Despite an unsteady relationship between equity and common law forces,³³⁷ safe conducts were understood to be exceptions (or supplements) to the generalized protection provided by amity and common law generally. Safe conducts provided “protection,” and were sometimes understood to create a relationship of allegiance.³³⁸ But a safe conduct did not alone speak to whether someone was within the king’s protection otherwise.

These various features of safe conducts are interesting and complex, especially as they interacted with international law and law merchant.³³⁹ But this nuance is arguably irrelevant for our purposes. Why are safe conducts relevant to birthright subjecthood? In the restrictionist account, safe conducts are said to imply that the protection requisite for allegiance and, thus, for a child’s natural subjection is a matter of *consent* or *compact* between the sovereign and a foreigner.

³³⁵ *Id.* The Law French: Stillington LC: Cest suit est pris per un marchand alien, que est venus per safe conduit icy, & il n' est tenus de suer solonques le ley del terre a tarier le trial de xii. homes, & auters solempnities del ley de terre, mes doit suer icy, & serra determine solonque le ley de nature en le Chancery, & il doyt suer la de heur en heur & de jour pur le spede des Marchants, &c.; Et dit oustre que marchants, &c. ne serra lies par nostre statutes, lou les statutes sont 'introductiva novae legis', mes ils sont 'declarativa antiqui juris', cestassavoir, nature, &c.; Et coment que ils sont venus deyns le royalme pur cest le Roy ad jurisdiction d' eux de mitter d' estoyer al droyt, &c. mes cest serra 'secundum legem naturae' que est appelle per ascuns ley Marchant, que est ley universal per tout le monde.

³³⁶ See *supra* note 327 and accompanying text.

³³⁷ See PLUCKNETT, A CONCISE HISTORY OF THE COMMON LAW 663 (1956) (“[W]hen Coke came to the bench he deliberately set himself to cripple the court of Admiralty and to capture mercantile law for the common lawyers.”).

³³⁸ See *supra* note 327 and accompanying text. See also REPORTS FROM THE NOTEBOOKS OF EDWARD COKE VOLUME III, 1591-1595 at 566-67 (John Baker ed.) (2021) (discussing the protection of Mary Queen of Scots’s safe conduct).

³³⁹ Blackstone cites Pufendorf for the proposition that all nations have the power to issue safe conducts for the “admission of strangers as they think convenient . . . Great tenderness is shewn by our laws, not only to foreigners in distress . . . but with regard also to the admission of strangers who come spontaneously.” 1 BLACKSTONE 259. Merchants—in contrast to normal sojourning aliens—benefit especially from Chapter 30 of Magna Carta. *Id.*, at 260.

Abstractly, it is true that *a kind* of consent generates common law protection. That consent is peace. That peace may indeed be granted individually through equitable writs of safe conduct or protection. But the argument that amity is, ultimately, irrelevant is based on a flawed reading of the common law. The argument proposes that the common law of amity is superseded by a lost, superseded common law by which sovereign permission to enter conferred protection.

This analogy is untenable. For one, safe conducts for merchants, dignitaries, or individual aliens were materially different from mere access to common law process. Even if those processes converged later, they were certainly distinct at the time of the Great Charter. Pollock and Maitland insist that we should “regard Coke’s doctrine that the alien friend is protected by ‘personal actions’ as ancient common law.”³⁴⁰ We are also not aware of a historic writ of “unsafe conduct” by which individuals were selectively unprotected by the king’s command. The sudden loss of legal protection, as we explain above, can only emerge because of war. In other words, the loss of legal protection for a class of aliens came only from a loss of amity. Otherwise, individuals lost their entitlement to protection by common law’s due process. The analogy ultimately and fatally rests on the false equivalency of permission and protection. History is clear that the lawfulness of behavior is distinct from the protection of process, whether that be in common law or equity courts. That process was sacred.

V. DOES JURISDICTION REQUIRE ALLEGIANCE?

One path to a more restrictive interpretation of the Citizenship Clause is the possibility that “subject to the jurisdiction” includes an allegiance requirement. Individuals who are born in the United States might not be subject to the jurisdiction of the United States if they do not possess the requisite allegiance. After all, there are plenty of references to “allegiance” and “ligeance” in the common law sources.³⁴¹ As the government’s brief in *Trump v. Barbara* put it, “in the context of the Citizenship Clause, ‘jurisdiction’ refers

³⁴⁰ POLLOCK AND MAITLAND, HISTORY OF ENGLISH LAW, 448.

³⁴¹ But the allegiance of English common law was different from how it is characterized by some scholars today. We must avoid anachronism. There was no notion of “requisite allegiance.” Either you had allegiance (which might be natural and perpetual or local and temporary) or you had none.

to the ‘political jurisdiction,’ a concept that turns on whether a person owes sufficient allegiance to and may claim protection from the United States.”³⁴² John Eastman has similarly argued that the Court has misinterpreted the Citizenship Clause by not appreciating that it requires “complete, political jurisdiction, which requires as well allegiance to the sovereign.”³⁴³ More recently, Kurt Lash has urged an “allegiance-based” reading of the Citizenship Clause, which concludes that birthright citizenship “required requisite allegiance to the United States.”³⁴⁴

According to this line of thought, allegiance better captures the goals the drafters of the Fourteenth Amendment than does any traditional notion of governing authority. Solicitor General John Sauer explained to the Court that “allegiance is what the word ‘jurisdiction’ means,” at least within the context of citizenship.³⁴⁵ “They’re talking and they’re thinking about it in those debates, about allegiance.”³⁴⁶ Eastman has said “not owing allegiance to another sovereign” is “the constitutional mandate.”³⁴⁷ Rather than adding to

³⁴² Brief for Petitioner at 14, *Trump v. Barbara*, (Jan. 20, 2026) (No. 25-365).

³⁴³ John Eastman, *Born the USA? Rethinking Birthright Citizenship in the Wake of 9/11*, 42 U. RICHMOND L. REV. 955, 963 (2008).

³⁴⁴ Kurt T. Lash, *Prima Facie Citizenship* 101 NOTRE DAME L. REV. 101, 105 (2026). *See also*, Eugene A. Lucci, *The Fourteenth Amendment Does Not Guarantee Birthright Citizenship to Children of Illegal Aliens* (2026) (unpublished manuscript) (advocating an “allegiance-based reading of the Clause”).

³⁴⁵ Transcript of Oral Argument at 7, *Trump v. Barbara*, (No. 25-365) (U.S. argued Apr. 1, 2026) https://www.supremecourt.gov/oral_arguments/argument_transcripts/2025/25-365_l6gn.pdf.

³⁴⁶ *Id.*

³⁴⁷ Eastman, *supra* note 343, at 957. For Eastman the liberal political theory on which the United States was founded requires this allegiance-based approach to citizenship. Within American political theory, allegiance is chosen through the mutual agreement of the individual and the political community. Unsurprisingly, he therefore thinks that the entire concept of birthright citizenship is “contrary to the principle of consent that is one of the bedrock principles of the American regime.” John C. Eastman, *From Feudalism to Consent: Rethinking Birthright Citizenship*, HERITAGE FOUND. LEGAL MEMORANDUM No. 18, at 7 (Mar. 30, 2006). In this he echoes the consensualist theory, which tended not to talk about notions of allegiance at all. *See* PETER H. SCHUCK AND ROGERS M. SMITH, *CITIZENSHIP WITHOUT CONSENT* (1985). When Solicitor General John Sauer references the “Republican/Democratic/American understanding” of allegiance, it is this liberal consensualist theory of citizenship he seems to have in mind as well. Transcript of Oral Argument at 66, *Trump v. Barbara*, (No. 25-365) (U.S. argued Apr. 1, 2026) [https://www.supremecourt.gov/oral_arguments/argument_transcripts/2025/25-](https://www.supremecourt.gov/oral_arguments/argument_transcripts/2025/25-365_l6gn.pdf)

the ranks of citizens through the “apparent arbitrariness of birthright citizenship,” the special context of citizenship should demand that those recognized as citizens be committed to American values and the ideal of American nationhood.³⁴⁸ Demonstrating such allegiance is a statutory requirement for naturalization into citizenship. It can, perhaps, be assumed for the children of U.S. citizens.³⁴⁹ Everyone else needs to demonstrate that they have dissolved their foreign ties, even if they have not yet taken an actual oath of allegiance.³⁵⁰

Our concern is not with whether the lack of an allegiance requirement for citizenship is “absurd”³⁵¹ or “irrational”³⁵² or even un-American. Our concern is simply with whether the term “subject to the jurisdiction” of the United States in the Fourteenth Amendment somehow meant individuals who owe allegiance to the United States as a matter of original meaning.

Allegiance is not a common or intuitive reading of a jurisdictional clause, but there are statements in the legislative record that have been understood to support it. The first is Senator Lyman Trumbull’s statement on May 30, 1866 in the congressional debates on the Fourteenth Amendment. “What do we mean by ‘subject to the jurisdiction of the United States?’ Not owing allegiance to anybody else. That is what it means.”³⁵³ The second is Representative John Bingham’s statement on March 9, 1866 in the congressional debates over the Civil Rights Act of 1866. “I find no fault with the introductory clause, which is simply declaratory of what is written in the Constitution, that every human being born within the jurisdiction of the United

365_l6gn.pdf. Lash, by contrast, would place his emphasis on allegiance not within the context of liberal ideas about a social compact but within the context of the aftermath of a bloody civil war. The Reconstruction Congress was not writing against the backdrop of three hundred years of the common law. It was writing against the backdrop of a just concluded civil war “due to a treasonous denial of allegiance to the Union.” Lash, *Prima Facie Citizenship*, *supra* note 344, at 141 (“there would be no national citizenship without a reasonable expectation of national *allegiance*”).

³⁴⁸ Lino A. Graglia, *Birthright Citizenship for Children of Illegal Aliens: An Irrational Public Policy*, 14 TEX. REV. L. & POL. 1, 4 (2009).

³⁴⁹ Brief for Petitioners, *supra* note 342, at 11.

³⁵⁰ Lash asserts that this demonstration can be taken as “presumptive” until a “familial context” reveals that inadequate allegiance. Lash, *supra* note 344, at 207. Eastman would seem to demand more than that. Eastman, *From Feudalism*, *supra* note 347, at 8.

³⁵¹ Eastman, *From Feudalism*, *supra* note 347, at 6.

³⁵² Graglia, *supra* note 348, at 4.

³⁵³ CONG. GLOBE, *supra* note 81, at 2893.

States of parents not owing allegiance to any foreign sovereignty is, in the language of your Constitution itself, a natural-born citizen.”³⁵⁴ Trumbull’s remark has been central to the restrictionist case for how to understand the original meaning of the Citizenship Clause at least since it was quoted in the dissenting opinion in *Wong Kim Ark*.³⁵⁵ The reference to allegiance in Bingham’s statement had long been ignored since his emphasis in that speech was on the “simply declaratory” nature of the Citizenship Clause.³⁵⁶ Only recently has Bingham been interpreted as expressing a more restrictive reading of the clause.³⁵⁷

The Civil Rights Act of 1866 does significant work in the case for an allegiance-based reading of the Citizenship Clause. Unlike the Fourteenth Amendment, the Civil Rights Act did make an explicit reference to allegiance, or at least an allegiance-adjacent concept. The citizenship clause of the Civil Rights Act stated that that “all persons born in the United States and not subject to any foreign power, excluding Indians not taxed, are hereby declared to be citizens.”³⁵⁸ As the congressional debates over that bill indicated, that proposed statutory language was highly confusing and seemed to leave the door open to future political manipulation. As a consequence, the Citizenship Clause of the Fourteenth Amendment emerged from a different congressional

³⁵⁴ CONG. GLOBE, *supra* note 81, at 1291 (statement of Rep. Bingham).

³⁵⁵ *United States v. Wong Kim Ark*, 169 U.S. 649, 721 (1898). See also PETER H. SCHUCK AND ROGERS M. SMITH, CITIZENSHIP WITHOUT CONSENT 81 (1985); Patrick J. Charles, *Decoding the Fourteenth Amendment’s Citizenship Clause: Unlawful Immigrants, Allegiance, Personal Subjection, and the Law*, 51 WASHBURN L.J. 211 (2012); John C. Eastman, *From Feudalism to Consent: Rethinking Birthright Citizenship*, Heritage Found. Legal memorandum No. 18, at 2 (Mar. 30, 2006); Lino A. Graglia, *Birthright Citizenship for Children of Illegal Aliens: An Irrational Public Policy*, 14 TEX. REV. L. & POL. 1, 7 (2009).

³⁵⁶ See, e.g., Howard Jay Graham, *Our Declaratory Fourteenth Amendment*, 7 STAN. L. REV. 3, 15 (1954); Kurt T. Lash, *The State Citizenship Clause*, 25 U. PENN. J. CON. L. 1097, 1123 (2023).

³⁵⁷ See, e.g., “Subject to the Jurisdiction Thereof”: Birthright Citizenship and the Fourteenth Amendment: Hearing Before the Subcomm. on the Const. & Ltd. Gov’t of the H. Comm. on the Judiciary, 119th Cong., at 44 (2025) (Testimony of R. Trent McCotter). The government’s brief in *Trump v. Barbara* points only to these two quotes in support of its claim that in adopting the Citizenship Clause Congress meant to require a “sufficient” and preexisting allegiance before citizenship could attach. Unsurprisingly, the government’s brief drops the primary component from the Bingham quote, that the clause was merely declaratory of longstanding American law. Brief for Petitioners at 17, *Trump v. Barbara* (Jan. 20, 2026) (No. 25-365).

³⁵⁸ 14 Stat. 27 (1866).

committee and adopted entirely different language to establish the second condition for birthright citizenship. Those who would favor an allegiance requirement for citizenship would be on much firmer ground if the Constitution included an entirely different text than it in fact does.

The weight of historical evidence of the original meaning of “subject to the jurisdiction” in the Citizenship Clause of the Fourteenth Amendment is not supportive of excluding those who have not demonstrated adequate allegiance to the United States. There is little evidence that the Reconstruction Congress meant to reject the traditional common law and replace it with something new. Far from being a clearer term that would help resolve the alleged ambiguity of “jurisdiction,” “allegiance” obscures rather than clarifies. To the extent that allegiance had a clear meaning within the law relating to citizenship at the time of the drafting of the Fourteenth Amendment, it simply restated the traditional common law rule.

i. Rejecting the Common Law?

To understand the original meaning of the Citizenship Clause we might only need to read a few pages in the *Congressional Globe* if the 39th Congress was clearly rejecting the past and adopting an entirely new understanding of the basis of citizenship. There is little evidence that the members of the 39th Congress were doing so. They repeatedly indicated that they understood the constitutional text that they were adopting to embody the longstanding common law rule of citizenship. They gave no indication that they intended to be idiosyncratic or expected readers of the Fourteenth Amendment to throw away their lawbooks in order to understand the new constitutional text.

On this point, the relevant discussion in Congress extends across the consideration of both the Civil Rights Act of 1866 and the Fourteenth Amendment.³⁵⁹ Both documents included a citizenship clause that secured

³⁵⁹ Republicans in Congress were also clear about how they viewed this question in debating other legislative issues as well. Senator Willey, for example, in discussing a bill relating to the governance of the District of Columbia contended, “I can conceive of no intermediate state between slavery and citizenship among the natives of our soil and within our jurisdiction, unless there be an exclusion in express terms.” The “spirit of our institutions, if not according to the letter of our Constitution,” had already established the common law rule of native-birth citizenship without the need for any further legislative action. CONG. GLOBE, *supra* note 81, at 3436. Similarly, in debating the terms by which the rebel states would be restored to the Union, Representative Ashley said, “I hold that every man born in the United States is a citizen of the United States.” *Id.*, at 2881.

citizenship for the native born. For both the statute and the constitutional text, congressional Republicans wanted to formally reject the assertion by Chief Justice Roger Taney in *Dred Scott* that blacks could not be citizens and to secure rights of federal citizenship for vulnerable minority populations against potentially hostile state governments. The further effort to shift from statute to Constitution responded to concerns that the existing Constitution did not fully or adequately protect these rights and thus future judges or future elected federal officials could reverse the gains that were thought to be made with the Civil Rights Act of 1866. Since the debate over the Civil Rights of 1866 came first in time, the discussion that occurred in the winter and spring of 1866 formed the more extensive backdrop against which the Fourteenth Amendment was debated in May and June.

The relationship between the new text being advanced by the congressional Republicans and the preexisting common law was complicated by the existence of *Dred Scott* and the late antebellum debates over citizenship that had emerged in state courts in the South.³⁶⁰ Those judicial developments in the 1850s likewise claimed to be grounded in the common law. Thus, congressional discussions during Reconstruction had to take account of both a traditional common law rule inherited from England and carried forward by American courts and a newer Southern rule that added an explicit racial component to the understanding of birthright citizenship. In reading the congressional debates, it is thus important to bear in mind whether the legislators are referencing the traditional rule or the Southern rule, as we will label them, when characterizing their own understanding of what rule they are adopting and how it relates to what had come before.

The evidence is overwhelming that the members of the 39th Congress understood the rule being debated in the Civil Rights Act and the Fourteenth Amendment to be a codification of the traditional common law rule. Republican supporters of the new measures in particular emphasized that their proposed text was merely meant to be declaratory of the longstanding rule. To the extent that members asserted that the newly proposed text was a departure from the common law rule of birthright citizenship, the rule that they had in mind was the Southern rule most infamously advanced in *Dred Scott*. Some Democrats thought that departing from that Southern rule would be a mistake, while Republicans thought that departing from *Dred Scott* was the entire point. They just denied that they were replacing *Dred Scott* with

³⁶⁰ See Whittington, *By Birth Alone*, supra note 44, at 492-493.

anything new or unfamiliar. From their perspective, it was *Dred Scott* and not the Fourteenth Amendment that was the innovation and departure.

One objection to the proposed Civil Rights Act of 1866 was that it was beyond the power of Congress to create new citizens by statute, and that this was what the citizenship clause of the bill was in effect doing. The standard response of the bill's supporters was that it was doing nothing of the sort. The Civil Rights Act of 1866 did not create any new citizens, because it was simply describing the existing legal rule in the United States that individuals born within the country are natural-born citizens. The preexisting common law rule had already made the former slaves citizens, and it was unnecessary for Congress to alter that rule or take any substantive action of its own. The Civil Rights Act merely declared and clarified what was already the case, both as to the existing rule and its appropriate application as the freemen.

Again and again, Republicans insisted that birthright citizenship in its traditional common law form as inherited from England was the existing law of the land in America and the Congress was merely reinforcing and not altering that law. Senator Lyman Trumbull, as chair of the Senate Judiciary Committee, was recognized as the lead author of the Civil Rights Act of 1866. He explained what was meant clearly and succinctly. "In my opinion birth entitles a person to citizenship, that every free-born person in this land is, by virtue of being born here, a citizen of the United States, and the bill now under consideration is but declaratory of what the law now is."³⁶¹ The only reason to include the citizenship clause at all was because "some persons deny this," and thus it was "advisable to declare it in terms in the statute itself."³⁶² Thus, a statute "declaring every person, no matter what color, born in the United States a citizen of the United States" was doing no more than making explicit what the law already was and had long been and did not alter the preexisting citizenship status of anyone.³⁶³ If you were "born in the United States," you had always been a citizen of the United States by virtue of the traditional common law, and Congress was doing nothing to change that.³⁶⁴

³⁶¹ CONG. GLOBE 600 (Feb. 2, 1866).

³⁶² *Id.*

³⁶³ *Id.*

³⁶⁴ The previous day Trumbull had likewise emphasized that since "it is desirable to place this matter beyond question," it was useful to pass a statute that was "declaratory of what in my judgment the law now is." *Id.*, at 574.

When President Andrew Johnson vetoed the Civil Rights Act, Trumbull again emphasized that, in regard to the citizenship clause, the bill did nothing but declare the law as it always had been. The citizenship clause had not even been included in the first drafts of the bill because “it was believed by myself and many others that all native-born persons since the abolition of slavery were citizens of the United States.”³⁶⁵ That was the explicit opinion of executive branch officials since the election of Abraham Lincoln.³⁶⁶ But, Trumbull asked, is not “an act declaring what the law is, one of the common acts passed by legislative bodies?”³⁶⁷ When it was helpful to have “greater certainty” about what the law is, legislatures routinely would “pass a statute declaring it,” and the Civil Rights Act was just such a “declaratory act” affirming the long-standing rule of birthright citizenship.³⁶⁸ Under the existing law, Trumbull declared, “even the infant child of a foreigner born in this land is a citizen of the United States long before his father” who must wait through a residency requirement before seeking to be naturalized.³⁶⁹ Trumbull was explicit. The native-born children of foreigners are American citizens. That was the preexisting law as he understood it, and that was the law that he meant to codify.

Other Republicans echoed Trumbull on this point. Justin Morrill of Vermont celebrated the citizenship clause not “as a matter of law, as a matter of enactment, giving legislative force or legislative sanction,” because on that he thought it was “no importance.”³⁷⁰ Its importance was not as a lawmaking action but as “the grandest declaration of all time” of fundamental principles that were already true,³⁷¹ “that the native born is a citizen, and a citizen by his birth alone.”³⁷² The citizenship clause is not “an enactment” in the sense of making or changing law; it simply “affirms the high principles of American law, and that only.”³⁷³ James Wilson of Iowa had introduced the Civil Rights Act into the House and thought it would be denied by no one that “the English doctrine which claims as a subject every person born within the jurisdiction of the

³⁶⁵ *Id.*, at 1756.

³⁶⁶ *Id.*

³⁶⁷ *Id.*

³⁶⁸ *Id.*

³⁶⁹ *Id.*, at 1757.

³⁷⁰ *Id.*, at 571.

³⁷¹ *Id.*

³⁷² *Id.*, at 570.

³⁷³ *Id.*

Crown” was the law of the colonies and continued after the Revolution to be the law of the United States and was implicit in the Constitution.³⁷⁴ He believed the government had “drifted from the old moorings of equality and human rights” as the Civil War approached, but maintained that the citizenship clause was “merely declarative of what the law now is.”³⁷⁵ The principle of birthright citizenship, Wilson contended, “applies to this country as well as to England” and in the same terms.³⁷⁶ If not for the pressures of race, “this bill would be almost, if not entirely, unnecessary,” but because of the problems of race “it is necessary to fortify the declaratory portions of this bill with such sanctions as will render it effective.”³⁷⁷ The citizenship clause was declaratory of the law as it already was; the federal enforcement of civil rights was new.³⁷⁸

Some Democratic opponents of the citizenship clause, by contrast, contended that it was a departure from the pre-existing law of the land, but that was precisely because they understood the law of the land of the United States to be the law as articulated by the Supreme Court in *Dred Scott*. Of course, no one on either side of the aisle disagreed with the point that the citizenship clause departed from the Southern rule embraced by Taney. The Civil Rights Act of 1866 might well be an attempt to overturn *Dred Scott*, but it did so not by substituting some new rule but by purporting to declare that *Dred Scott* had simply been wrong about the correct law. The New Jersey Democrat Andrew Rogers, for example, denounced the “opinions of the radical portion opposed to me in politics” who would question and seek to overturn the “very question” that the Court had “settled” in *Dred Scott*.³⁷⁹ The Constitutional Unionist Peter Van Winkle insisted that “the common law of England is not of force under the national Constitution,” and thus blacks “are

³⁷⁴ *Id.*, at 1117.

³⁷⁵ *Id.* at 1115.

³⁷⁶ *Id.*, at 1116.

³⁷⁷ *Id.*, at 1118.

³⁷⁸ *See also, Id.*, at 1152 (“Now, I do not regard that as the enunciation of any new principle. It is, in my judgment, but declaratory of the existing law.”) (statement of Rep. Thayer); *Id.*, at 1262 (“As a positive enactment this would hardly seem necessary. Even as a declaration of existing law, a proposition [so simple] . . . would seem to find its more appropriate place in the elementary treatises upon law rather than upon the statute-books.”) (statement of Rep. Broomall); *Id.*, at 1291 (“the introductory clause, which is simply declaratory of what is written in the Constitution.”) (statement of Rep. Bingham); *Id.*, at 1832 (“This clause is unnecessary, but nevertheless proper, since it is only declaratory of what is the law without it” and “was the common law of England”) (statement of Rep. Lawrence).

³⁷⁹ *Id.*, at 197.

not citizens by birth.”³⁸⁰ He opposed the introduction into the United States of any rule that would recognize as citizens by birth from “all sorts of people from all countries”³⁸¹ and thought every society retained a God-given right to exclude from citizenship anyone they thought “objectionable.”³⁸² The Democrat Reverdy Johnson initially explained that Congress could certainly “pass an act declaring [native-born blacks] to be citizens,” “but for the decision in the *Dred Scott* case.”³⁸³ But as the debate wore on, Johnson seemed doubtful of even that, for the citizenship clause of the Civil Rights Act is “the exercise of a positive and absolute power to change the law – not to declare what the laws in order to remove doubts, but to make the law.”³⁸⁴ The problem turned out not only to be the Court’s pronouncement in *Dred Scott* but also the lack of any federal power to say anything at all about whether citizenship “would exist in consequence of birth alone.”³⁸⁵ The future of birthright citizenship was entirely in the hands of the states and the English rule could be recognized or rejected by them as they saw fit.³⁸⁶ The proposed citizenship clause was declarative of the traditional common law rule, but Johnson denied that Congress had any authority to either affirm or alter the rules regarding natural-born citizens. Democrats objected to the citizenship clause of the Civil Rights Act precisely because it was understood to entrench the common law rule of birthright citizenship, and Democratic objectors preferred to leave discretion in the hands of state governments to modify or reject the English rule as they saw fit so as to keep out those who did not deserve citizenship.³⁸⁷

Given that extensive discussion during the debates over the Civil Rights Act of 1866, it is no surprise that there was less discussion of this particular point during the debates over the Fourteenth Amendment. The citizenship clause of the Fourteenth Amendment was universally understood to be codifying the same rule as the citizenship clause of the Civil Rights Act, though with “better” language.³⁸⁸ Moreover, since there was no question that Congress could, if it so chose, “create citizens” by constitutional amendment,

³⁸⁰ *Id.*, at 497.

³⁸¹ *Id.*

³⁸² *Id.*, at 498.

³⁸³ *Id.*, at 597.

³⁸⁴ *Id.*, at 1777.

³⁸⁵ *Id.*

³⁸⁶ *Id.*

³⁸⁷ See also, Whittington, *By Birth Alone*, *supra* note 44.

³⁸⁸ *Id.*, at 2894 (statement of Sen. Trumbull).

there was less reason to discuss the extent to which the Citizenship Clause of the Fourteenth Amendment was merely declaratory of the law as it was. Even so, Republicans continued to insist that the Fourteenth Amendment's Citizenship Clause was merely entrenching the preexisting common law rule.

When Senator Jacob Howard introduced the Fourteenth Amendment on behalf of the Joint Committee on Reconstruction, it did not yet include the citizenship clause. It simply assumed the existence of "citizens of the United States as such."³⁸⁹ Those citizens had been assumed by the terms of the original Constitution as well and had always meant "a person who was born within the limits of the United States and subject to their laws."³⁹⁰ That was the rule "by virtue of national law, or rather natural law which recognizes persons born within the jurisdiction of every country as being subjects of citizens of that country," and the Constitution of 1787 had already taken steps to make sure that the individual states could not "exercise its sovereign power" to declare "the citizens of every other State to be aliens in reference to itself."³⁹¹ The Civil Rights Act of 1866 had passed over President Johnson's veto and had included a declaratory citizenship clause. The Committee on Reconstruction did not initially think the Fourteenth Amendment needed to bother to declare yet again what the law already was. Being born on American soil and subject to American law had always made you an American, and the Fourteenth Amendment built from there.

Senator Benjamin Wade proposed amending the first section of the Fourteenth Amendment draft to replace the reference to "citizens of the United States" with the more explicit "persons born in the United States or naturalized by the laws thereof."³⁹² Wade thought the identification of citizens had long been "settled," but nonetheless recognized that "a doubt [had been] thrown over that subject" by the Court and so some explicit text might make things "very strong and clear" and prevent mischief "if the Government should fall into the hands of those who are opposed to the views that some of us maintain" and "when party spirit runs high."³⁹³ It was better "to put the

³⁸⁹ *Id.*, at 2765.

³⁹⁰ *Id.*

³⁹¹ *Id.* Howard's remarks also illustrate the sometimes limited knowledge of the members of Congress about the precise contours of the existing law. Howard seems to have assumed that the English common law rule which governed America was the law "of every country," but continental Europe did not follow *jus soli*.

³⁹² *Id.*, at 2768.

³⁹³ *Id.*, at 2768-2769.

question beyond all doubt” and “beyond all cavil for the present and for the future” by entrenching the traditional rule.³⁹⁴ Senator William Fessenden, who had chaired the committee that had produced the original draft of the Fourteenth Amendment that Wade was proposing to amend, pointed out that there were traditional exceptions to the language that Wade proposed. But Wade thought it unnecessary to complicate the language when everyone already understood what it meant and qualifiers might invite abuse.³⁹⁵ “Born in the United States” was a legal term of art for Wade, and as such it simply communicated the traditional common law rule of native birth.

A few days later, Howard, under Fessenden’s watchful eye, read out the revised text that emerged from the Joint Committee and from several caucuses of the Republican members of the Senate. It now began with the citizenship clause, recognizing “all persons born in the United States and subject to the jurisdiction thereof” as citizens of the United States.³⁹⁶ After the proposals were printed, Howard launched the debate on them, stating that the new citizenship clause “is simply declaratory of what I regard as the law of the land already.”³⁹⁷ Although the Senate then occupied itself debating whether the language of the proposed text should be further refined, that debate was premised on simply getting the text to adequately convey the traditional rule and not to accidentally depart from it. As the House opened its debate on the amendment, Representative James Henderson desired “to show that this section will leave citizenship where it is now” and just “makes plain” what *Dred Scott* cast into doubt.³⁹⁸ The identity of citizens under the Fourteenth Amendment “are the persons, and none others, who have ever been citizens of the United States.”³⁹⁹

For the Republican supporters of the citizenship clauses of the Civil Rights Act and the Fourteenth Amendment, there was no need to reinvent the wheel and there is no evidence that they meant to do that. The goal was to state clearly that *Dred Scott* was wrong and thus that the native-born freedmen were citizens. Given Republican and antislavery commitments, there was no desire to overturn or reverse *Dred Scott* because they did not regard it as good

³⁹⁴ *Id.*, at 2769.

³⁹⁵ *Id.*, at 2769.

³⁹⁶ *Id.*, at 2869.

³⁹⁷ *Id.*, at 2890.

³⁹⁸ *Id.*, at 3031.

³⁹⁹ *Id.*, at 3032.

law that needed to be formally overturned. *Dred Scott*, after all, “is entitled to just as much moral weight as would be the judgment of a majority of those congregated in any Washington bar-room. It is a *dictum* prescribed by the stump to the bench.”⁴⁰⁰ What was needed was an authoritative declaration that restored the law of citizenship to what, in their view, it had always been, a matter of birth rather than a matter of race or desirability. The challenge was how to craft crisp and clear language that would express the traditional rule and that could not be subverted or circumvented when the government fell into the wrong hands. This was not a matter of departing from the common law or replacing it, but simply of restating it in appropriately bold terms. The supporters of the Fourteenth Amendment were united in wanting (in regard to the citizenship clause) to restore the legal status quo as it had existed before *Dred Scott* threw things into doubt.⁴⁰¹ They repeatedly denied that they meant to do anything other than that.

ii. The Many Meanings of Allegiance

While “subject to the jurisdiction thereof” was clear legal language in 1866, “allegiance” was not.⁴⁰² Rather than reducing ambiguities, the introduction of notions of allegiance into our reading of the text of the Fourteenth Amendment creates new ones. It should therefore be no surprise that the drafters of the Fourteenth Amendment did not choose the language of allegiance in order to communicate a birthright citizenship rule. It is also not terribly surprising that the congressional debates that did discuss allegiance were themselves confused and easily confusing to subsequent readers.

“Allegiance” is a term that evokes a mystical attachment between the citizen and the nation. It implies that the citizen will be true to the nation and share its ideals. Since the early twentieth century, naturalizing citizens must swear their “true faith and allegiance.”⁴⁰³ The phrase itself was borrowed from the Ironclad Oath Congress required of the former Confederates before they

⁴⁰⁰ New York Tribune, quoted in CHARLES WARREN, 2 THE SUPREME COURT IN UNITED STATES HISTORY 305 (1926).

⁴⁰¹ Of course, the rest of the Fourteenth Amendment that followed the Citizenship Clause did much more than merely declare the law as it was.

⁴⁰² James Heilpern and Keith E. Whittington, *supra* note 42 (elaborating the meaning of “subject to the jurisdiction” and related language in the legal discourse of the mid-nineteenth century).

⁴⁰³ 34 Stat. 596 (1906).

could be employed by the federal government.⁴⁰⁴ At times, courts have taken the view that such “true faith” could not be “vague and ambiguous”⁴⁰⁵ and required an investigation into whether an applicant is truly “fitted for citizenship.”⁴⁰⁶ True faith and allegiance mandates that a would-be citizen must demonstrate that “he is a lover of his adopted country” and would “in sincerity dedicate his life to its service.”⁴⁰⁷ Theodore Roosevelt famously declared that “there is no room in this country for hyphenated Americanism,” for allegiance “is a matter of the spirit of the soul” and those who had not given their soul “purely to the United States” should be “unsparingly condemned.”⁴⁰⁸

Introducing such a concept into the decision as to whether to recognize a native-born individual to be a citizen might have been appealing to some radicals, but it was both too radical to receive significant congressional support and not evident in the Citizenship Clause that was actually adopted.⁴⁰⁹ Empowering future government officials to determine which native-born Americans had the “requisite allegiance” to deserve to be deemed natural-born citizens would have done the opposite of putting the birthright question “beyond all cavil for the present and for the future.”⁴¹⁰

“Allegiance” as characterized in legal discourse at the time of the 39th Congress was simply another way of saying a duty to obey the government. If we take allegiance to be a question of objective legal status rather than subjective mental states at the time of the adoption of the Fourteenth Amendment it meant nothing more than an obligation of obedience. Allegiance was, in legal terms, the formal corollary of being subject to the jurisdiction. Allegiance did not make one subject to the jurisdiction. Allegiance is what followed from *being* subject to the jurisdiction of the country.

This relationship between jurisdiction and allegiance, between governing authority and the duty of obedience, is simply the traditional

⁴⁰⁴ 18 Stat. 314 (1873).

⁴⁰⁵ *United States v. Schwimmer*, 279 U.S. 644, 653 (1929).

⁴⁰⁶ *United States v. Macintosh*, 283 U.S. 605, 616 (1931).

⁴⁰⁷ *In re Olson*, 4 F.2d 417, 418 (WD Wash. 1925).

⁴⁰⁸ THEODORE ROOSEVELT, 18 THE WORKS OF THEODORE ROOSEVELT 392 (1925).

⁴⁰⁹ See, e.g., CONG. GLOBE, *supra* note 81, at 2400. (Statement of Rep. Phelps) (“in order to be an alien to the United States Government it is not necessary that a man should be foreign-born. He may be an alien although not foreign-born. And I hold, sir, that the people of the southern States did, by treason and rebellion, become alien enemies to this Government.”).

⁴¹⁰ *Id.*, at 2769.

common law relationship laid down in *Calvin's Case* and carried forward through William Blackstone and Chancellor Kent.⁴¹¹ As such, it would be unsurprising for members of Congress discussing the common law rule of birthright citizenship to reference allegiance. In his own notes on citizenship status in the wake of the American Revolution, Thomas Jefferson observed, "allegiance is the test of a natural subject."⁴¹² Allegiance was the "test" because it described to whom one owed obedience. An American citizen "owes no allegiance" to Great Britain after the Revolution, and "it makes us aliens then."⁴¹³ Those who owed allegiance were subjects; those who did not owe allegiance were aliens.

But "allegiance" as a legal concept was not a precondition of jurisdiction, nor could allegiance be divided into some sufficient or insufficient amount. One could not take oneself out of the jurisdiction of the sovereign by failing to have some requisite level of allegiance. Allegiance was a legal state that was imposed on an individual. The duty of obedience, "allegiance," is simply what happened the moment that one was made subject to the jurisdiction of a government. Americans had taken themselves out of the jurisdiction of the English king by successfully fighting a war of independence, and they were acknowledged as no longer being within the king's jurisdiction by the subsequent peace treaty that formalized the new territorial bounds of the king's dominions. Americans owed allegiance to the British king and their acts "would be treason in a British subject" so long as they were governed by the British king and subject to his rule, and they could be punished as such if they fell within that monarch's grasp.⁴¹⁴ Escaping that relationship required removing the former colonies from British control. Once the English rulers were driven out, then allegiance shifted to the new rulers – the Americans themselves. Knowing which sovereign authority one had an ultimate legal duty to obey led to one knowing to which sovereign one was a "natural subject."

⁴¹¹ As *Calvin's Case* tells us, one possesses allegiance, temporary or perpetual, on land under the King's obedience. See *supra*, note 181 and accompanying text. The two terms are intertwined.

⁴¹² Jefferson, *supra* note 217, at 6:434.

⁴¹³ *Id.*, at 433.

⁴¹⁴ *Id.*, at 434.

Legal dictionaries at the time echoed the traditional common law by connecting allegiance to protection and obedience.⁴¹⁵ Allegiance was “the tie or bond (*ligament*) of fidelity and obedience” that citizens or subjects owed “their sovereign, government or country, in return for the protection afforded them.”⁴¹⁶ Allegiance designates the “lawful and faithful obedience” owed to the sovereign.⁴¹⁷ Allegiance is the “tie which binds the citizen to the government, in return for the protection which the government affords him.”⁴¹⁸ An oath renouncing allegiance indicates that an individual will no longer show any fidelity to the old sovereign, that one will no longer obey.⁴¹⁹

Allegiance came in three varieties. All three strictly repeat the traditional common-law categories. Bouvier distinguishes between “acquired allegiance” of the naturalized citizen, the “local allegiance” of an alien present within the country and under the local protection of the government, and the “natural allegiance” resulting from “the birth of a person within the territory and under the obedience of the government.”⁴²⁰ Similarly, Burrill characterized “local allegiance” as “a temporary kind of allegiance” such as that owed by aliens who “are equally bound with natives to obey all general laws for the maintenance of peace and the preservation of order, and which not relate specially to our own citizens.”⁴²¹ By contrast, “natural allegiance” was owed “from citizens of the United States to their native or adopted country” and “it seems, cannot be renounced without the permission of the government.”⁴²² Natural allegiance, according to Wharton, was a “perpetual attachment” due to the sovereign, whereas local allegiance was “temporary

⁴¹⁵ On the traditional common law connection between protection and allegiance, see Whittington, *By Birth Alone*, *supra* note 44.

⁴¹⁶ ALEXANDER M. BURRILL, 1 A LAW DICTIONARY AND GLOSSARY 86 (1859) [hereinafter BURRILL, A LAW DICTIONARY]. He is clearly referring to language from *Calvin's Case*. See 7 Co. Rep. at 4b (“*Ligeantia est quasi legis essentia. Ligeantia est ligamentum, quasi ligamentum: quia sicut ligamentum est connexio articulorum et juncturarum, &c.* As the ligatures or strings do knit together the joints of all the parts of the body, so doth ligeance joyn together the Sovereign and all his Subjects, *quasi uno ligamine.*”).

⁴¹⁷ J.J.S. WHARTON, LAW LEXICON 40 (1860).

⁴¹⁸ JOHN BOUVIER, A LAW DICTIONARY 115 (1868).

⁴¹⁹ BURRILL, A LAW DICTIONARY at 12.

⁴²⁰ JOHN BOUVIER, A LAW DICTIONARY 115.

⁴²¹ BURRILL, A LAW DICTIONARY at 164.

⁴²² *Id.*, at 220. Burrill also notes that a “native citizen” is simply “a person born in the United States the since the declaration of independence.” *Id.*, at 219.

only” and due from an alien “for so long a time as he continues within the sovereign’s dominions and protection.”⁴²³

Current citizens possessed either natural allegiance or acquired allegiance, depending on whether they were born in the United States or were naturalized. Aliens present in the United States possessed local allegiance, unless they were within one of the standard common-law exceptions that exempted them from that duty to obey the law. The only legal difference between natural allegiance on the one hand and local allegiance on the other was that natural allegiance was permanent and extraterritorial while local allegiance was temporary and bound by the territorial limits of the United States.⁴²⁴ “Allegiance” otherwise described the same legal duty of obedience for both the citizen and the alien. Both owed the same obedience so long as they were subject to the jurisdiction of the United States. Aliens could remove themselves from that jurisdiction by leaving the country, whereas citizens could not.⁴²⁵

Importantly, of course, some individuals were outside the scope of American allegiance entirely. That is, some individuals did not owe obedience to the American government in any of these three forms. Foreigners outside the country obviously owed the United States no allegiance. As discussed in the traditional common law sources, foreign ambassadors and invading armies likewise did not owe allegiance even when they were on American soil

⁴²³ J.J.S. WHARTON, *LAW LEXICON* at 509.

⁴²⁴ Arguably, though not clearly, there might be some things that local sovereign could not lawfully demand of their temporary subjects. The British maintained that British subjects resident in the United States during the Civil War were appropriately subject to militia duty “for the purpose of maintaining internal order, and even to a limited extent to defend the places of their residence against local invasion by a foreign power” but not to military draft for purposes of conducting a war. “Letter from Lord Lyons to Earl Russell, Oct. 16, 1863,” *in* 1863 FOREIGN REL. U.S. PT. 1 584. A requirement to participate in a foreign war went beyond the limits of local allegiance that an alien owed the local sovereign.

⁴²⁵ This is not to say that there were no other legal differences between citizens and aliens, but “allegiance” was not the term for describing those differences. Citizens possessed rights that the alien did not possess, primarily political rights. Those legal distinctions were not preconditioned on “allegiance.” They were preconditioned, in the first instance, on citizenship. Thus, Chancellor Kent said, to be a “subject” of a country within which one is present is just to be “bound by allegiance and subjection to the government and law of the land.” JAMES KENT, 2 *COMMENTARIES ON AMERICAN LAW* 288 (9th ed. 1867). To be a natural-born subject within the context of the United States is simply to be “born within and under the allegiance” of the United States, and to that degree “subjects are citizens” were “convertible terms as applied to natives.” *Id.*

because they were said to carry their territory with them.⁴²⁶ For similar reasons, Indian tribes were regarded as quasi-foreign nations and aliens even though their members were born within the territory of the United States.

This tripartite categorization of allegiance was the legal baseline. It described what allegiance is (the duty to obey) and the source (natural or voluntarist) and duration (permanent or temporary) of allegiance owed between an individual and a single sovereign government to whose jurisdiction that individual was immediately subject. The allegiance owed by an individual to that single sovereign is taken for granted by the law. The utility of the three-part distinction arises from the need to describe different ways by which that allegiance could be attached and how durable it might be.

An additional set of distinctions developed within American political discourse in the mid-nineteenth century that layered on top of that baseline. This set of distinctions was not primarily focused on the vertical relationship between the individual and a single sovereign government but on the constitutional structure that organized an individual's allegiance when multiple sovereigns could simultaneously claim some share of jurisdiction over that individual.⁴²⁷ In the context of an increasingly tense environment of the "divided sovereignty" of American federalism, some further way of talking about the constitutional architecture surrounding allegiance became necessary.⁴²⁸ Thus, Americans began to distinguish a primary from a

⁴²⁶ See, e.g., HENRY WHEATON, *ELEMENTS OF INTERNATIONAL LAW* 126 (1878).

⁴²⁷ An American citizen abroad was similarly in such a situation, simultaneously owing local allegiance to the country within which he was present and natural or naturalized allegiance to the United States. In such situations, the possibility arose that the two types of allegiance could come into conflict, as during a war between the two nations.

⁴²⁸ In the midst of the nullification crisis, the South Carolina nullification convention proclaimed, "We admit of no obedience, which shall conflict with that primary allegiance which ever citizen owes to the land of his birth or adoption." *PROCEEDINGS OF THE CONVENTION OF SOUTH CAROLINA UPON THE SUBJECT OF NULLIFICATION* 51 (1832). An American citizen's "primary and paramount allegiance," the nullifications argued, was to their state, not to the United States. 4 *STATE DOCUMENTS ON FEDERAL RELATIONS* 43 (Herman V. Ames ed. 1902). This, of course, was also the view of the secessionists two decades later, who called upon the citizens of what would become the Confederate States of America to recognize their primary and paramount allegiance to their states and to set aside their allegiance to the United States. Jefferson Davis rejected the milquetoast idea that "the citizen owed a double allegiance, or a divided allegiance – partly to his State, partly to the United States." JEFFERSON DAVIS, 1 *THE RISE AND FALL OF THE CONFEDERATE GOVERNMENT* 182 (1881). Davis instead thought "true allegiance," the "primary, paramount allegiance of the citizen" was due only to "the people of

secondary allegiance, which identified the hierarchy of the duty of obedience when sovereign commands conflicted for individuals subject to multiple sovereigns.⁴²⁹ The commands of the sovereign to whom one owed primary allegiance took precedence over those of the secondary sovereign.⁴³⁰ Such notions of primary and secondary allegiance might matter if the situation

the State to which he belongs” for only the people of the state were the true sovereign within the American theory of government. *Id.*

⁴²⁹ The idea of primary versus secondary allegiance could have relevance in an international law context as well when the hierarchy among multiple sovereigns needed to be determined. *See, e.g.*, ARCHIBALD BROWN, A NEW LAW DICTIONARY (1874) 22 (“according to the law of most continental countries, the parentage of the parties determines their primary allegiance”). Yet another distinction could be drawn between direct and indirect allegiance, which described how the ties of allegiance were mediated. An individual’s secondary allegiance might only be derivative of the consent, tacit or explicit, of that individual’s primary sovereign. Thus, an individual might owe direct allegiance to a primary sovereign but be understood to owe only an indirect allegiance to a secondary sovereign.

⁴³⁰ The Unionists likewise sometimes used the language of primary or paramount allegiance, but of course disagreed with the secessionists about where that allegiance lay. In the early days of the Civil War, General William Harney, a native of Tennessee, explained why he declined an offer to serve in the Confederate army while briefly detained by those forces in Virginia. Unlike “some of my brethren in arms, citizens of seceding States” who felt it “their duty to throw up their commissions and follow their States,” Harney believed “as an officer of army and a citizen of the United States, I consider my primary allegiance to be due to the Federal Government, and subordinate to that is my allegiance to the State.” 1 THE REBELLION RECORD 180 (Frank Moore ed. 1861). The treatise writer Joel Parker agreed with Harney’s assessment, asserting that the “the allegiance due under [the Constitution] is the paramount allegiance.” JOEL PARKER, CONSTITUTIONAL LAW 14 (1862). Such had been the belief of Democratic Senator Reverdy Johnson as well, who insisted that the “paramount allegiance” of every citizen “is to the United States alone” for it was the federal government that bore ultimate governing authority over and offered final protection to every citizen since the adoption of the Constitution. *Rebellion Record*, *supra* note 430, at 2:135. At the outbreak of the war, antislavery Missouri lawyer Charles Drake similarly denounced “this whole dogma of State allegiance” and the idea that a citizen “owes primary and paramount allegiance to the State he lives in.” *Id.*, at 2:208. For Drake, the allegiance to a state within the Union was similar to a local allegiance since “the obligation upon him ceases the moment he steps outside her border.” *Id.* Senator William Fessenden reported for the Joint Committee on Reconstruction that there were still, in 1866, “a generally prevailing opinion” in the South that “upholds the doctrine that the first allegiance of the people is due to the States, and not to the United States.” *Report of the Joint Committee on Reconstruction*, S. Rep. No. 112, 39th Cong., 11 (1866).

came down “to the last extremity,” as they did during the secession crisis, but were not much more than an abstraction under normal circumstances.⁴³¹

Notably, the core meaning of allegiance and the relationship between jurisdiction and allegiance remains the same with the addition of these second-order distinctions. Every participant in these debates, whether arguing for state primacy or federal primacy, whether deploying natural or local allegiance, was working within a framework that treated jurisdiction and allegiance as necessarily correlative but asymmetric. The participants in the American debate over states’ rights disagreed about which sovereign’s jurisdiction was original and which was derivative, but those disagreements were premised on a common conceptual agreement that one owed a duty of obedience, or allegiance, to whichever sovereign properly had jurisdiction over you in a particular time and place and for a particular purpose.

Across all these distinctions, jurisdiction always implied and created allegiance, because allegiance was just the duty to obey the government to whose jurisdiction one was subject. When asking whether one was subject to the jurisdiction of a government, allegiance would not have been a helpful way to generate an answer. One learned the answer to the allegiance question only after one had answered the jurisdictional question. At best, referencing an individual’s “allegiance” was just a shorthand for referencing the jurisdictional relationship upon which that allegiance depended.⁴³² Although by the 1860s, references by American politicians to primary and secondary, paramount and subordinate, direct and indirect allegiance had become fairly commonplace, once beyond the secession crisis they added little to the first-order distinctions inherited from the common law. Jurisdiction could not be “allegiance-based” or depend on a “requisite allegiance.” “Allegiance,” the duty to obey the proper legal authority, was based on jurisdiction.

iii. “Allegiance” in the 39th Congress

Whether all the members of the Reconstruction Congress actually understood the legal status quo ante, the nuances of the traditional rule of English and American law that they said they were declaring, or how it should be applied to various facts on the ground is another matter. Not only did they

⁴³¹ CONG. GLOBE, 31st Cong., 1st Sess., 122 (1850) (statement of Sen. Mason).

⁴³² Burrill defines a “subject” as “one who is under the protection and power of a government of laws; one who owes allegiance to a government.” BURRILL, A LAW DICTIONARY at 490.

not describe the birthright citizenship rule with the facility that might have been expected of a legal treatise writer, they also did not show themselves to be particularly adept at understanding the whys and hows of its application. Extemporaneous legislative debates were not conducted with the precision of a written legal memorandum. Most legislators did not bother wading into the details of that rule at all. For most Republicans it was enough, and yet terribly important, just to say that everybody born on American soil was to be recognized as citizens and all on the same footing.

The language that they used in the constitutional text seems well chosen to communicate the traditional common law rule. Being born in the United States and subject to its jurisdiction was conventional legal phrasing in the nineteenth century that conveyed the same meaning as the traditional birthright rule when used in the context of citizenship.⁴³³ It is language that the 39th Congress itself used to convey that conventional meaning in other contexts.⁴³⁴ If one meant to convey the conventional birthright citizenship rule briefly and succinctly in a mid-nineteenth century legal document, this is the language one would use to communicate that idea to the legal community. If one were to want to affirm the principle of birthright citizenship to the general populace and antislavery constituencies, one might prefer Wade's more straightforward language of "born in the United States."⁴³⁵ But the addition of "and subject to the jurisdiction thereof" is more legally sound and avoids the kind of lawyerly nitpicks that Fessenden was mumbling to Wade even as he proposed his simple version. The final version of the Fourteenth Amendment included the stand-alone citizenship clause that Wade wanted, but used language that simply restated what Howard had first described as the long-established rule "used by the courts" – "born within the limits of the United States and subject to their laws."⁴³⁶

Members of Congress who discussed allegiance in connection with the citizenship clause were describing the governing-authority condition that determines who is subject to the jurisdiction of the United States. They were not announcing a new personal allegiance requirement that individuals must independently satisfy before the jurisdictional relationship can attach.

⁴³³ See generally Heilpern and Whittington, *supra* note 42.

⁴³⁴ *Id.*

⁴³⁵ CONG. GLOBE, *supra* note 81, at 2768.

⁴³⁶ *Id.*, at 2765.

It is worth noting at the outset what the debates do not show. If allegiance were understood as a distinctive additional requirement for birthright citizenship — a precondition that individuals must satisfy before being recognized as citizens — one would expect it to figure prominently as an affirmative element of the citizenship rule throughout the debates. It does not. The dominant pattern of the congressional debates, across both the Civil Rights Act discussions in the winter of 1866 and the Fourteenth Amendment debates in May and June, was to describe the citizenship clause in simple territorial terms: persons born on American soil are citizens. Republican Representative James Wilson, who introduced the Civil Rights Act in the House, celebrated the citizenship clause as "intended to confer upon negroes and all other persons born within the United States, without distinction of color, the rights of citizens."⁴³⁷ Republican Representative Martin Thayer thought that clause simply fulfilled the promise of the "great measure" that ended slavery by "declaring that all men born upon the soil of the United States shall enjoy the fundamental rights of citizens."⁴³⁸ Republican Representative Henry Raymond thought it beyond dispute that "all born upon the soil are subjects or citizens of the Government" and that "every native shall be a citizen of the country on whose soil he is born," and that it was the "special object" to enunciate that "great principle."⁴³⁹ Republican Representative William Lawrence, responding to the President's veto of the Civil Rights Act, praised the clause for reaffirming the "old common law" as recognized in *Lynch v. Clarke*, which had held that "all children born here are citizens without any regard to the political condition or allegiance of their parents."⁴⁴⁰ The petitions received by the 39th Congress calling for a constitutional guarantee of birthright citizenship focused on race, not allegiance, asking that no distinctions be made "among persons born on its soil, on account of race, color, or descent."⁴⁴¹ If the members of the 39th Congress were adding a peculiar allegiance requirement to the traditional common law rule, they showed no awareness of doing so and every indication of believing the opposite.

Several legislators who spoke directly to the citizenship clause articulated the governing-authority framework with precision sufficient to

⁴³⁷ *Id.*, at 2505 (statement of Rep. Wilson).

⁴³⁸ CONG. GLOBE, *supra* note 81, at 1151 (statement of Rep. Thayer).

⁴³⁹ *Id.*, at 1266 (statement of Rep. Raymond).

⁴⁴⁰ *Id.*, at 1832 (statement of Rep. Lawrence).

⁴⁴¹ *See, e.g., id.*, at 1303.

confirm that allegiance language, where it appeared, was being used as a correlative description of that framework rather than as an independent citizenship criterion. Republican Representative John Broomall of Pennsylvania stated the governing-authority rule in its most elementary form: "What is a citizen but a human being who by reason of his being born within the jurisdiction of a Government owes allegiance to that Government?"⁴⁴² The logical structure of Broomall's formulation deserves attention: jurisdiction is the antecedent condition; allegiance is the consequence. One is a citizen because one is born within the jurisdiction of a government and thereby owes allegiance to it — not because one first possesses allegiance and thereby becomes subject to its jurisdiction. Republican Representative Samuel Shellabarger, who had emerged as one of the more theoretically sophisticated voices in the Civil Rights Act debates, was explicit about the relationship between governing authority and allegiance. The federal government, he argued, was "entitled to demand service and allegiance, which is supreme over that due to any State."⁴⁴³ The supremacy of federal allegiance followed from the supremacy of federal governing authority — the government that had the paramount governing claim on the individual had the paramount allegiance claim as well. This is the correlation between jurisdiction and allegiance working in precisely the direction the legal background predicts: the governing relationship is prior and constitutive, and the allegiance relationship follows and reflects it.

Republican Representative James Henderson of Oregon, who offered a systematic treatment of the citizenship clause's legal foundations in the House debates on June 8, marshaled the leading authorities — Rawle, Kent, Story, and the North Carolina Supreme Court's opinion in *State v. Manuel* — to the same conclusion.⁴⁴⁴ The *Manuel* opinion, which Henderson quoted at length, articulated the governing-authority principle with particular clarity: before the Revolution, "all free persons born within the dominions of the King of Great Britain, whatever their color or complexion, were native-born British subjects; those born out of his allegiance were aliens."⁴⁴⁵ To be born "out of his allegiance" was to be born outside the domain of the King's governing authority. The phrase described a territorial condition — the reach of

⁴⁴² *Id.*, at 1262 (statement of Rep. Broomall).

⁴⁴³ *Id.*, at 1293 (statement of Rep. Shellabarger).

⁴⁴⁴ *Id.*, at 3031 (statement of Rep. Henderson).

⁴⁴⁵ *State v. Manuel*, 20 N.C. 144, 151 (NC 1838).

sovereign governing power — not a personal quality of loyalty or commitment. Henderson's purpose in surveying these authorities was to show "that this section will leave citizenship where it now is" and merely "makes plain" what *Dred Scott* had cast into doubt.⁴⁴⁶ The citizenship clause was not introducing a new allegiance requirement; it was restoring the traditional governing-authority rule that the traditional legal sources had always expressed.

The governing-authority reading finds further confirmation in an exchange that occurred on May 30, 1866 — the same day as Trumbull's contested statement. When Republican Senator John Conness of California addressed the question of whether children born in his state of Chinese immigrant parents would be citizens under the proposed Fourteenth Amendment, he answered without hesitation that they would be, and his reasoning was entirely in governing-authority terms. Chinese immigrants were subject to American law.⁴⁴⁷ The parental allegiance of Chinese immigrants to China was not raised as a potential obstacle, addressed and overcome, or qualified in any way. It was simply not part of the analysis. Senator Howard, who had introduced the citizenship clause language, responded to proposed amendments to explicitly exclude Indians from its coverage that he "regard[ed] the language of the section as sufficiently certain and definite."⁴⁴⁸ The May 30 debates that supposedly establish an allegiance precondition on citizenship simultaneously contain an explicit acceptance of birthright citizenship for children of Chinese immigrants, with no allegiance analysis required or offered.

The allegiance language that does appear in the May 30 debates arose in a specific and narrow context: the question of how Indian tribal members fit within the traditional birthright citizenship rule. That context is essential to understanding what the allegiance language was doing, and losing sight of it is what has led the allegiance-based reading astray.

Republican Senator James Doolittle of Wisconsin opened the discussion by expressing concern that the "subject to the jurisdiction thereof" language would sweep in reservation Indians, whom he thought were "most clearly subject to our jurisdiction, both civil and military. We appoint civil agents who have a control over them in behalf of the Government. We have our military

⁴⁴⁶ CONG. GLOBE, *supra* note 81, at 3031 (statement of Rep. Henderson).

⁴⁴⁷ *Id.*, at 2892 (statement of Sen. Conness).

⁴⁴⁸ *Id.*, at 2895 (statement of Sen. Howard).

commanders in the neighborhood of the reservations, who have complete control."⁴⁴⁹ Doolittle accordingly proposed adding "excluding Indians not taxed" to the citizenship clause to make explicit what he feared the existing language left ambiguous.⁴⁵⁰ Senator Fessenden, who had chaired the committee that produced the original draft, acknowledged that including "all the wild Indians" was beyond what anyone intended, and indicated he was open to clarifying language if the existing formulation proved inadequate.⁴⁵¹

It was in response to this specific concern that Trumbull and Howard spoke. Their remarks were not a freestanding exposition of a new citizenship theory; they were an explanation of why the clause as drafted already excluded tribal Indians and why Doolittle's proposed addition was therefore unnecessary. The entire discussion was premised on the question of how the traditional birthright rule applied to the peculiar situation of tribal nations — not on whether that rule should be supplemented with a new personal allegiance requirement.

Trumbull's response to Doolittle was to contest his description of the governing relationship between the United States and the tribes. "We make treaties with them, and therefore they are not subject to our jurisdiction. If they were, we would not make treaties with them."⁴⁵² Trumbull pressed the point practically: "Do we pass a law to control them? Are they subject to our jurisdiction in that sense?"⁴⁵³ The answer was plainly no. The federal government "did not pretend to take jurisdiction of murders and robberies and other crimes committed by one Indian upon another."⁴⁵⁴ There were, Trumbull observed, large regions of country "within the territorial limits of the United States, unorganized, over which we do not pretend to exercise any civil or criminal jurisdiction, where wild tribes of Indians roam at pleasure subject to their own laws and regulations, and we do not pretend to interfere with them. They would not be embraced by this provision."⁴⁵⁵

The question Trumbull was asking throughout was a practical one about governing authority: does American law actually govern these people? The answer was no — and that was because Indian country was governed by

⁴⁴⁹ *Id.*, at 2892 (statement of Sen. Doolittle).

⁴⁵⁰ *Id.*, at 2890.

⁴⁵¹ *Id.*, at 2893 (statement of Sen. Fessenden).

⁴⁵² *Id.*, at 2893 (statement of Sen. Trumbull).

⁴⁵³ *Id.*

⁴⁵⁴ *Id.*

⁴⁵⁵ *Id.*, at 2894.

tribal law, not American law. The land is doing the important work. What takes tribal Indians outside "subject to the jurisdiction thereof" is not something about their personal allegiance profiles but the governing status of the territory in which they lived and under whose law they were born. They had no duty of obedience to American law, which is to say that they had no "allegiance" to American law, because they were not governed by American law even though they were within the territorial bounds of the United States.

Democratic Senator Reverdy Johnson was more sympathetic to Doolittle's underlying concern, though he ultimately voted against the proposed addition. Johnson acknowledged the force of Trumbull's point — the United States had traditionally dealt with the tribes through treaties rather than legislation — but he questioned whether that practice reflected a constitutional obligation or merely a contingent choice. "We were under no obligation to do so," Johnson argued, "and we are under no constitutional obligation to do so now."⁴⁵⁶ If the federal government chose to exercise legislative jurisdiction over the tribes, it had the power to do so, and the suggestion that tribal members were categorically outside American jurisdiction as a matter of right rather than choice risked creating a constitutional rule that courts might apply in unexpected ways. Johnson himself described the substantive citizenship rule in entirely governing-authority terms: citizenship followed from "the fact of birth within the territory of the United States, born of parents who at the time were subject to the authority of the United States."⁴⁵⁷ The criterion was parental subjection to American authority — a governing-authority standard — not parental freedom from foreign allegiance.

Johnson's objection is worth pausing over because it clarifies what was actually at stake in the Indian debate. Johnson was not working from an alternative theory of citizenship or an alternative definition of jurisdiction. He was arguing about the constitutional status of tribal sovereignty — whether the United States' traditional treatment of the tribes as quasi-foreign nations reflected a genuine constitutional limit on federal jurisdiction or merely a policy choice that the federal government could reverse. That is a debate about the governing-authority condition, conducted entirely within the governing-authority framework. The disagreement between Trumbull and Johnson was about whether American governing authority was constitutionally excluded

⁴⁵⁶ *Id.*, at 2893 (statement of Sen. Johnson).

⁴⁵⁷ *Id.*

from Indian country or merely practically absent from it.⁴⁵⁸ Neither was arguing that tribal members were excluded from citizenship because of something about their personal allegiance; both were arguing about the reach of American governing authority over tribal territory and its inhabitants.

Trumbull nonetheless defended the existing language as adequate and accurate. "In some sense they are regarded as within the territorial boundaries of the United States," he acknowledged, "but I do not think they are subject to the jurisdiction of the United States in any legitimate sense; certainly not in the sense that the language is used here."⁴⁵⁹ Howard agreed, picking up where Trumbull had left off: "jurisdiction," as used in the citizenship clause, "ought to be construed so as to imply full and complete jurisdiction on the part of the United States, coextensive in all respects with the constitutional power of the

⁴⁵⁸ Thus, when Democratic Senator Thomas Hendricks pushed Trumbull on this point, Trumbull responded that it was similarly a matter of "discretion" whether the United States might someday extend its jurisdiction "over Mexico and govern her." *Id.*, at 2894. The governing reach of the United States, her jurisdiction, could be extended over new territories and populations by the future choices of government officials, which would in turn have consequences for who would be brought within the scope of the Citizenship Clause. But subjecting new populations to American jurisdiction in this way meant removing them from the category of foreign peoples to be dealt with through treaties and incorporating them into the United States such that they would be governed by ordinary law. If the United States were to annex Mexico, then it would in fact extend its governing authority over that territory and its peoples, and thus Mexicans who were previously outside the scope of American jurisdiction would become "subject to the jurisdiction" of the United States and owe a duty of obedience to American law (or, in the legal language of the nineteenth century, they would then owe "allegiance"), and children born in Mexico after such an annexation would be natural-born citizens of the United States. But, of course, until such an event happened, Mexico was not subject to the jurisdiction of the United States, and Mexicans in Mexico owed no allegiance to the United States. Frederick Schauer would say that this exchange raised two distinct points, one about the "designation of scope" of the rule and one about its "validity." That the scope of the rule would apply to Mexico in such a situation does not in itself establish that such an application of the rule is valid according to some external standard. FREDERICK SCHAUER, *PLAYING BY THE RULES: A PHILOSOPHICAL EXAMINATION OF RULE-BASED DECISION-MAKING IN LAW AND IN LIFE* 118-19 (1991). Whether American law extends over Mexico or Indian tribes is a "factual predicate" for the application of the rule, but is not a determinant of the scope of the rule itself. *Id.*, at 23. The senators disagreed about the factual predicate of the jurisdictional rule as it related to Indians and the validity of potentially altering the relationship between the tribes and the federal government. They did not disagree about what it meant to be subject to the jurisdiction of the federal government or its implications for allegiance.

⁴⁵⁹ CONG. GLOBE, *supra* note 81, at 2894 (statement of Rep. Trumbull).

United States — that is to say, the same jurisdiction in extent and quality as applies to every citizen of the United States now."⁴⁶⁰ The government had "always regarded and treated the Indian tribes within our limits as foreign Powers" with a "national character" analogous to foreign nations.⁴⁶¹ A tribal Indian, "although born within the limits of a State, is [not] subject to this full and complete jurisdiction."⁴⁶² Doolittle's proposed addition was therefore unnecessary — the existing language already communicated that those not subject to the full and comprehensive governing authority of the United States were outside the citizenship clause.

It was in explaining this conclusion that Trumbull deployed the allegiance language that has attracted so much recent attention. Persons "subject to the jurisdiction" of the United States, he said, are those "not owing allegiance to anybody else. That is what it means."⁴⁶³ And those like tribal Indians who owe "allegiance, partial allegiance if you please, to some other Government" are "not subject to the jurisdiction of the United States."⁴⁶⁴ The allegiance-based reading treats this as the announcement of a new personal

⁴⁶⁰ *Id.*, at 2895 (statement of Sen. Howard). Howard's "full and complete jurisdiction" language is also sometimes lifted out of context to support a restrictionist interpretation of the Citizenship Clause. Howard is clear, however, that he just means jurisdiction that would apply to "every citizen" and that is "coextensive in all respects with the constitutional power" of the federal government. The legal background against which he was speaking made clear that the exact same jurisdiction that applied to "every citizen" also applied to aliens on American soil who were subject to obligations of local allegiance. The jurisdiction over aliens within the United States is "full and complete." "Full and complete jurisdiction" would seem simply to describe the ordinary terms of jurisdiction in American law, the jurisdiction that applied when no competing governing structure qualified or displaced it. If someone wanted to argue that Indians could at some point in the future be brought within the governing authority of the United States and in that sense could be subjected to American jurisdiction, that did not alter how the ordinary legal usage of "subject to the jurisdiction" applied to them in 1866. So long as they were treated as quasi-foreign nations addressed through negotiated treaties, they were not subject to any kind of jurisdiction that was applied to American citizens or coextensive with the governing powers of the United States. To the extent that Doolittle believed that Indians were not consistently treated as quasi-foreign but were for certain purposes and on some occasions subjected to ordinary governing authority, this just meant that they were *sui generis* in having such an inconstant relationship to American jurisdiction.

⁴⁶¹ *Id.*

⁴⁶² *Id.*

⁴⁶³ *Id.*

⁴⁶⁴ *Id.*

allegiance requirement. But reading it against the governing-authority analysis Trumbull had just offered, it is clear that the allegiance language was descriptive shorthand for the governing-authority condition he had been explaining throughout the exchange. The tribes were outside “subject to the jurisdiction thereof” because American law did not govern them — because the United States dealt with them through treaties rather than legislation and did not pretend to exercise civil or criminal jurisdiction over their internal affairs. Their “partial allegiance if you please” to another government was Trumbull’s way of describing the divided governing-authority relationship that reflected that practical and constitutional reality. The allegiance description and the governing-authority analysis pointed to the same condition, just as the legal background would predict.

In the very next sentences after Trumbull declares “that is what it means,” he elaborates on what he means.⁴⁶⁵ In that paragraph, he entirely uses a governing-authority based frame to explain what “owing allegiance” means. He asked rhetorically, “can you sue a Navajoe Indian in court?”⁴⁶⁶ You could if they were subject to American laws and owed allegiance to the United States, but Trumbull asserted that you could not. Did we “control the Navajoes, or any other Indians,” by passing a law?⁴⁶⁷ We did not. We “make arrangements with the Indians . . . by means of a treaty.”⁴⁶⁸ There is no suggestion in Trumbull’s remarks that he meant anything by jurisdiction and allegiance other than the standard idea that jurisdiction referred to those who were governed by American law, as evidenced by such facts as whether or not one was amendable to the judicial processes of American courts or were reached by statute or by treaty.

The “partial allegiance” formulation itself deserves attention, because it illuminates the structure of Trumbull’s analysis. He did not say that tribal Indians owed no allegiance to the United States — he said their allegiance was partial. They were not entirely outside American authority; they were under a divided, incomplete governing-authority relationship in which the tribe had its own governing structure and the United States accommodated that structure through treaty relations. The governing-authority deficiency was itself partial, and the allegiance language tracked it. For the same reason, the

⁴⁶⁵ *Id.*

⁴⁶⁶ *Id.*

⁴⁶⁷ *Id.*

⁴⁶⁸ *Id.*

allegiance language cannot be read as requiring that persons subject to the jurisdiction thereof owe absolutely no allegiance to any other sovereign. State allegiance was a commonplace of the constitutional order. Shellabarger's entire argument about the supremacy of federal allegiance presupposed that state allegiance was real; federal allegiance was "supreme over that due to any State," not the only allegiance that existed.⁴⁶⁹ Every American owed some allegiance to a government other than the federal one. If "not owing allegiance to anybody else" were a literal personal quality requirement, it would disqualify every American from citizenship. Trumbull cannot have meant that.⁴⁷⁰ What he meant, as his governing-authority analysis throughout the exchange makes clear, was the absence of a competing governing authority outside the American constitutional order whose claims the United States itself practically accommodated—the kind of competing authority represented by the tribal governing structure, not the kind represented by a state government within the constitutional order.

There is also the problem of Trumbull's own April 4 statement in the veto reconsideration debate, which the allegiance-based reading cannot accommodate. Defending the Civil Rights Act's citizenship clause against the charge that it discriminated against foreigners, Trumbull observed that "even the infant child of a foreigner born in this land is a citizen of the United States long before his father" who must complete a residency requirement before naturalizing.⁴⁷¹ This was not a passing remark; it was Trumbull's own characterization of the birthright citizenship rule he understood himself to be codifying, offered to illustrate the rule's reach. The infant child of a foreigner — born of a parent who owes primary natural allegiance to a foreign sovereign — is a citizen by birth. If Trumbull's May 30 statement were properly read as a personal allegiance requirement excluding those whose parents owe

⁴⁶⁹ *Id.*, at 1293 (statement of Rep. Shellabarger).

⁴⁷⁰ Moreover, there is no evidence that Trumbull meant to reject the standard idea of "local allegiance," which is what the literalist reading of his statement would likewise imply. All foreign nationals on American soil owed both natural allegiance (to their home country) and local allegiance (to the United States). Trumbull clearly did not mean to say that foreign nationals owed no duty of obedience to American laws while they were in the United States. His concern was with whether some foreign allegiance by a competing sovereign authority precluded the application of American law to an individual within the boundaries of the United States. Trumbull's expression was inexact at best, but there is nothing in his larger argument that suggests he held to such a theory.

⁴⁷¹ *Id.*, at 1757 (statement of Sen. Trumbull).

allegiance to foreign sovereigns, his own April 4 statement would be wrong. An interpretation of Trumbull's May 30 remarks that makes them irreconcilable with his April 4 remarks should be rejected in favor of one that makes him coherent across the debates. The governing-authority reading achieves that coherence: the infant of a foreigner is a citizen because the child is born under comprehensive American governing authority, with no competing sovereign exercising governing authority over the territory of the child's birth, regardless of the parent's national allegiance. Trumbull's May 30 allegiance shorthand and his April 4 governing-authority statement describe the same rule from two angles.

Representative Bingham's statement presents a distinct but related question. Speaking on March 9, 1866 during the Civil Rights Act debates, Bingham described the citizenship clause as "simply declaratory of what is written in the Constitution, that every human being born within the jurisdiction of the United States of parents not owing allegiance to any foreign sovereignty is, in the language of your Constitution itself, a natural-born citizen."⁴⁷² The allegiance-based reading focuses on the parentage formulation and reads it as establishing a parental allegiance requirement for birthright citizenship. That reading does not survive scrutiny, for reasons that begin with the portion of Bingham's statement the government's brief in *Trump v. Barbara* chose not to quote.

Bingham's emphasis was on the "simply declaratory" character of the citizenship clause. He was not announcing a new requirement; he was describing the rule as he understood it to already exist and to be already written in the Constitution. That declaratory characterization is entirely consistent with the governing-authority reading and irreconcilable with the allegiance-as-precondition reading. As Lawrence's invocation of *Lynch v. Clarke* demonstrates, and as the authorities Henderson canvassed confirm, the existing common law rule was that parental allegiance was irrelevant to birthright citizenship. A reading of Bingham's parentage formulation as establishing a new parental allegiance requirement would make his "simply declaratory" characterization false. The more natural reading — the one that makes Bingham's own description of what he was doing accurate — is that the parentage formulation restates the traditional rule with the traditional common law exception built in.

⁴⁷² CONG. GLOBE, *supra* note 81, at 1291 (statement of Rep. Bingham).

By this time, the primary exception to *jus soli* birthright citizenship was the children of foreign ambassadors, whose households came to be treated as extensions of foreign sovereign territory even while physically present on the host country's soil.⁴⁷³ The governing logic of that exception was territorial rather than personal: the ambassador's household was understood to be under the governing authority of the sending sovereign, and the host country's governing authority formally did not extend over it. Children born in that household were not born under the host country's governing authority and were therefore not citizens by birth. Bingham's "parents not owing allegiance to any foreign sovereignty" is natural shorthand for the standard common law rule with the ambassador exception built in through the mechanism the common law had always used. The parents whose children are clearly within the birthright citizenship rule are those who are not representatives of a foreign sovereign exercising governing authority within American territory. Ordinary resident aliens — a French merchant, an Irish laborer, a Chinese immigrant — are not in that category. Their natural allegiance to their home sovereign is a personal national tie, but it does not confer on their home sovereign any governing authority over the households those individuals maintain on American soil. Their children are born under comprehensive American governing authority, and they are citizens.

If the parentage formulation were instead read as a general requirement that parents must owe no allegiance to any foreign sovereignty, the consequences would be sweeping in ways Bingham gives no indication of intending. Every child born to a resident alien would be excluded from birthright citizenship. Bingham presents the clause as declaratory of existing law; a reading that excluded all children of resident aliens would depart sharply from *Lynch v. Clarke* and the received common law tradition, yet Bingham characterizes the clause as restating that tradition. His broader

⁴⁷³ This resolves the tension that existed at the time of *Calvin's Case* between the common law rule and the international law fiction that ambassadors and *prorex* were representations of their princes and therefore brought their sovereignty with them. See *supra* notes 195-202 and accompanying text. For the rule by the 1860s, see HENRY WHEATON, *ELEMENTS OF INTERNATIONAL LAW* (8th ed. 1866) § 225 ("To give a more lively idea of this complete exemption from the local jurisdiction, the fiction of extraterritoriality has been invented, by which the minister, though actually in a foreign country, is supposed still to remain within the territory of his own sovereign. He continues still subject to the laws of his own country, which govern his personal status and rights of property. . . . His children born abroad are considered as natives.").

constitutional project throughout the debates — arming Congress with the enforcement power necessary to protect the rights of citizens against state infringement — presupposed a broad rather than a narrow citizenship class. The narrower reading makes Bingham's declaratory claim false and his constitutional project incoherent. The broader reading makes both intelligible.

The broader pattern of the debates confirms what the legal background of the preceding section predicts and what close attention to Trumbull and Bingham individually reveals. When members of the 39th Congress used allegiance language in connection with the citizenship clause, they used it as the correlative of the governing-authority relationship — as descriptive shorthand for the jurisdictional condition — not as an independent personal quality that must be assessed and found sufficient before citizenship can attach.

Broomall's formulation stated this relationship explicitly: birth within the jurisdiction of a government produces allegiance to that government. Wilson's description of the government's power to "draw the citizen by the strong bond of allegiance to the battle-field" treated the allegiance relationship as following from and evidencing the governing relationship — the government's power to conscript was the exercise of governing authority, and the allegiance bond and duty of the citizen to obey even to the point of being sent to war was its legal expression.⁴⁷⁴ Trumbull's own April 4 statement — "allegiance and protection are reciprocal rights" — described the governing relationship and the allegiance relationship as arising together, each the correlative of the other, both constituted by the same governing-authority bond.⁴⁷⁵ In each case the direction of the relationship runs from governing authority to allegiance, not from allegiance to governing authority. One learns whether someone owes allegiance to the United States only after one has established that they are subject to its jurisdiction — precisely the conclusion the preceding section reached from the legal dictionaries and common law sources of the period.

The members of the 39th Congress were not uncertain about the relationship between jurisdiction and allegiance, even if their extemporaneous remarks were sometimes imprecise. They understood that birthright citizenship followed from birth under the governing authority of the United States — that the allegiance relationship was constituted by that

⁴⁷⁴ CONG. GLOBE, *supra* note 81, at 1294 (statement of Rep. Wilson).

⁴⁷⁵ *Id.*, at 1757 (statement of Sen. Trumbull).

governing-authority relationship and was its natural legal consequence, not its precondition. When they used allegiance language, they were using it in the way that any competent lawyer of the period would have recognized: as a shorthand reference to the jurisdictional relationship upon which allegiance depended. That is the usage the legal background of the preceding section establishes as conventional for the period. That is the usage the congressional debates confirm.

iv. Taking the Constitutional Text Seriously

One striking feature of the restrictionist account of the citizenship clause is to direct our attention to the language not of the Fourteenth Amendment itself but to the earlier Civil Rights Act. On the one hand, both modern interpreters and the members of the 39th Congress itself all agree that the two versions of the citizenship clause were attempting to serve the same purpose and communicate the same rule regarding birthright citizenship. On the other hand, it would be an unconventional interpretive move to focus not on the final text adopted by the Congress but to rely instead on an earlier “draft,” in this case a draft in the form of the language used in the Civil Rights Act. The shift in focus would seem all the more odd given that Lyman Trumbull himself, the author of the earlier version of the citizenship clause but not the final version, admitted that the language used in the Fourteenth Amendment is “better” than the language used in the statute.⁴⁷⁶ Presumably the change in language was intentional, and likely motivated in part by unhappiness with the statutory version by key supporters and drafters of the Fourteenth Amendment. The text of the Fourteenth Amendment used language with an ordinary and clear legal meaning in the mid-nineteenth century, and it is not obvious why turning to an earlier version of the citizenship clause as an interpretive aid would add clarity rather than unnecessarily generate uncertainty. If both versions of the citizenship clause were understood to convey the same communicative meaning, the language that was finally incorporated and adopted into the Fourteenth Amendment itself would seem to provide the better and more authoritative guide to that meaning.

From the restrictionist perspective, however, a focus on the language of the Civil Rights Act has some advantages. Directing us to interpret that language puts Trumbull in the foreground since he authored that version of

⁴⁷⁶ CONG. GLOBE, *supra* note 81, at 2894 (statement of Sen. Trumbull).

the clause, and Trumbull happens to have also once said something that is particularly helpful to the restrictionist case.⁴⁷⁷ Never mind that Trumbull himself admitted that he had no special insight into the meaning of the Fourteenth Amendment's version of the citizenship clause since that language had been drafted and advanced by others.⁴⁷⁸

Moreover, the language of the Civil Rights Act is explicitly exclusionary in its linguistic structure, whereas the language the Fourteenth Amendment is explicitly inclusionary in its choice of language. The shift from exclusionary to inclusionary language is not particularly helpful to a more restrictionist account, but it might not matter much if there were no functional difference between the two. If those categories were mutually exclusive and jointly exhaustive, then using the exclusionary and inclusionary language would convey the same meaning and rule. Unfortunately, there are important differences in practice between the rule that the exclusionary language conveys and the rule that the inclusionary language conveys, which provides one very good reason why the drafters of the Fourteenth Amendment might well have preferred to use the inclusionary language to communicate their intended meaning. The inclusionary language of the Fourteenth Amendment is not just "better" in the sense of more carefully and clearly communicating the relevant rule. It is, in fact, more inclusionary in legally meaningful ways.

The text of the two versions of the citizenship clause are certainly similar but differ in important ways. The Civil Rights Act of 1866 provides that "all persons born in the United States and not subject to any foreign power, excluding Indians not taxed, are hereby declared to be citizens."⁴⁷⁹ The Fourteenth Amendment provides that "all persons born in the United States, and subject to the jurisdiction thereof, are citizens of the United States." Both use the language to describe the first qualification of natural-born citizenship, requiring birth "in the United States." They differ in the second qualification, shifting from the negative of "not subject to any foreign power" to the positive of "subject to the jurisdiction" of the United States.⁴⁸⁰ The statutory version of this qualification is not simply the negation of the constitutional version. There

⁴⁷⁷ See *supra* note 463 and accompanying text.

⁴⁷⁸ CONG. GLOBE, *supra* note 81, at 2893 (statement of Sen. Trumbull) ("Of course my opinion is not any better than that of any other member of the Senate.").

⁴⁷⁹ 14 Stat. 27 (1866).

⁴⁸⁰ Setting aside for this purpose the further element of the Civil Rights Act of "excluding Indians not taxed."

is an excluded middle, and the constitutional language addresses that “excluded middle” in a significant way. Taking the drafting of the Fourteenth Amendment out of the hands of Trumbull’s Judiciary Committee and entrusting it into the hands of Fessenden’s Reconstruction Committee mattered.

To see why it matters which text we choose to interpret, consider Figure 1. The figure draws out more explicitly the gap between the versions of the citizenship clause, the excluded middle. Effectively the language of the Civil Rights Act of 1866 is a subset of the category described by the language of the Fourteenth Amendment. Those who are “not subject to any foreign power” include some but not all of those who are “subject to the jurisdiction of the United States,” whereas the latter language includes all of those who would fall within the scope of the former language.

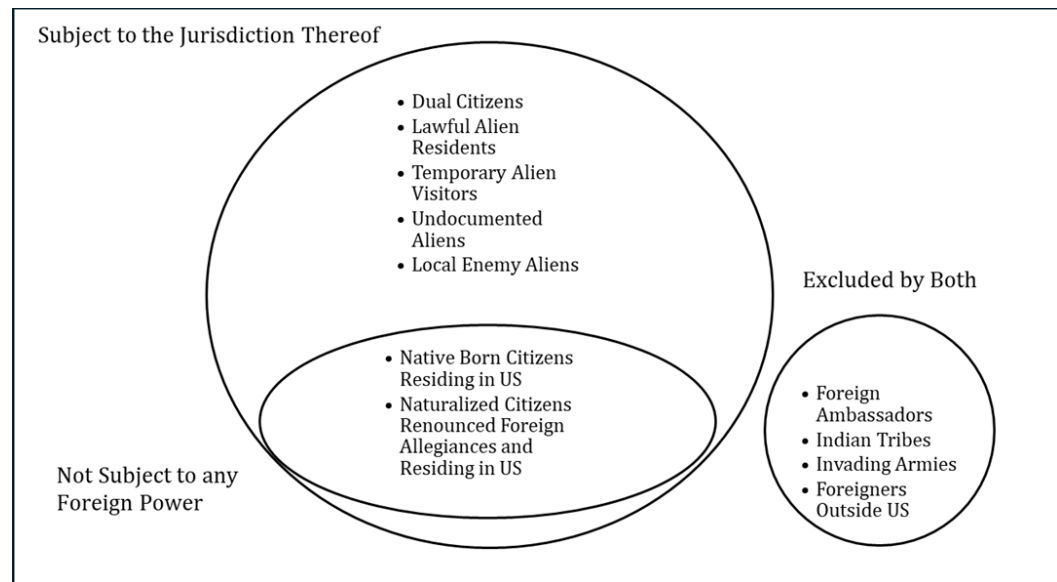


Figure 1: Location of Categories of Individuals under the Two Citizenship Clauses

Some classes of individuals are naturally beyond the scope of either version of the citizenship clause. Foreigners who are outside the United States are obviously subject to foreign powers and also (at least generally) not subject to the jurisdiction of the United States. Of course, when foreigners outside the United States give birth, their children also fail the first prong of the citizenship clause in that they are not born in the United States. Likewise, foreign ambassadors, Indian tribes, and invading armies are all subject to a

foreign power and “owe allegiance” to someone else as Trumbull would say. They are also outside the scope of the jurisdiction of the United States in the conventional sense in that they are not subject to American law and governing authority. Even if such individuals were to give birth to children within the territorial boundaries of the United States, those children would not be natural-born citizens under any reading of either version of the citizenship clause.

Two classes of individuals readily covered by the language of either the statute or the constitutional amendment include native-born citizens and naturalized citizens who have renounced their foreign allegiances and who are both residing in the United States.⁴⁸¹ Such individuals are “not subject to any foreign power” and “owe allegiance to one else” in that they are solely and exclusively within the jurisdiction of American state and federal governments and do not retain any foreign allegiances that might place them under the authority of a foreign power for certain purposes. At the same time, because both the native-born and the naturalized are American citizens, they are subject to the jurisdiction of the United States by virtue of the extended allegiance of citizenship as well as the fact that they are currently resident within the territorial jurisdiction of the United States.

The difficulty raised by the language of the Civil Rights Act is immediately apparent once we turn our attention to the categories of

⁴⁸¹ For these purposes, we set aside the case of American citizens who hold property interests abroad and thus might to some degree be subject to a foreign power through that foreign power’s territorial jurisdiction over that property. We also set aside the case of naturalized citizens who renounce their native allegiances, but whose native sovereign does not recognize such a renunciation as valid. The traditional English rule regarding native-born English subjects was that their allegiance was perpetual until they were released by the English sovereign. English subjects could not escape their obligations to the English monarch either by renouncing that allegiance or by taking an oath of allegiance to a foreign sovereign. From the English monarch’s perspective, such individuals still owed English allegiance and were subject to the lawful power of the English monarch (though they might be hard to reach if residing abroad). If such an individual were discovered to have joined an enemy army, for example, that individual could be charged with the crime of treason and treated accordingly. They need not be treated as enemy aliens or prisoners of war. For purposes of the diagram, such individuals were outside the circle of those were “not subject to any foreign power” but within the circle of those who were “subject to the jurisdiction” of the United States. *See, e.g.*, U.S. Dep’t of State, papers Relating to the Foreign Relations of the United States, pt. 1, vol. 2, at 1373 (1874). (“whether in America that doctrine is recognized. Its recognition there or repudiation could not in the slightest degree affect this country or its tribunals.”).

individuals who are outside of its scope but arguably within the scope of the text of the Fourteenth Amendment. Of course, these excluded categories might be a feature and not a bug for restrictionists, at least from a policy perspective. But it is worth taking note of how sweeping the exclusion would be, extending well beyond the two groups who happened to be singled out by President Trump's executive order. Moreover, the faithful application of the language of the Civil Rights Act would exclude classes of individuals that no one would have thought should have been excluded at the time. The language of the Civil Rights Act is significantly underinclusive of what the 39th Congress meant to accomplish, which is a good reason for the drafters of the Fourteenth Amendment to have chosen different, better language that more effectively communicated their intended meaning.

Dual citizenship might have been disfavored in American law in the nineteenth century, but it was well recognized that such a thing existed. Secretary of State Hamilton Fish issued an opinion to the president in 1873 explaining that it was possible for children to be "born to a double character" in that they are citizens of or subjects to more than one sovereign. The very same principle of birthright citizenship that applied to "the child born of alien parents in the United States" might also apply to "children of American fathers born without the jurisdiction of the United States."⁴⁸² After all, "no sovereignty can extend its jurisdiction beyond its own territorial limits so as to relieve those born under and subject to another jurisdiction, from their obligations or duties thereto."⁴⁸³ Thus, the child of an alien born in the United States was by virtue of American law a natural-born citizen of the United States, but that same child might also be held to be a natural-born citizen of a foreign state, for example by the doctrine of *jus sanguinis*.

The language of the citizenship clause of the Civil Rights Act of 1866 would seem to exclude such children from birthright citizenship in the United States. Children born of European fathers on American soil were generally natural-born citizens of the father's native country. They therefore "owed allegiance" to someone else and were "subject to a foreign power" from the moment of their birth. And yet, no one doubted that such children should be understood to be natural-born Americans regardless of those foreign ties created by foreign legal doctrines. Moreover, since citizenship everywhere

⁴⁸² U.S. Dep't of State, papers Relating to the Foreign Relations of the United States, pt. 1, vol. 2, at 1192 (1874).

⁴⁸³ *Id.*

except the United States was understood to be perpetual in the mid-nineteenth century, even a naturalized American citizen would normally still owe allegiance to and be subject to the sovereign of their native land. Naturalized American citizens were, from the perspective of their home countries, at best dual citizens (assuming their naturalization to American citizenship would be recognized at all). And yet again, no one doubted that the American-born children of such naturalized citizens were natural-born American citizens despite the parents owing an allegiance to a foreign sovereign and being subject to a foreign power. In the years after the ratification of the Fourteenth Amendment, European countries, including England, began to alter their own laws to relieve such children born abroad of allegiance and thus reduce the incidence of American-born children being dual citizens, but the 39th Congress could not have anticipated those developments and did not rely upon them.⁴⁸⁴ In 1866, the formulation of the Civil Rights Act would have created significant gaps in coverage, and the framers of the Fourteenth Amendment avoided that implication by adopting a different text.

The language of the Civil Rights Act would likewise have excluded yet another category of individuals that was clearly meant to be included by the Fourteenth Amendment. Aliens who were residing in the United States while awaiting nationalization were subject to the jurisdiction of the United States but they clearly still owed allegiance to a foreign power and as a consequence were subject to its authority. Generally speaking, aliens had to reside in the United States for five years before they could petition for nationalization.⁴⁸⁵ During that period of residency, such an alien could give birth to a child on American soil. Such a child was universally recognized to be a natural-born American citizen. The child would become an American citizen before the father.⁴⁸⁶ Such a possibility made little sense under the language of the Civil Rights Act of 1866 – or the restrictionists' gloss on the citizenship clause – but was easily accounted for by the language of the Fourteenth Amendment. Such a native-born child born to a resident alien was a natural-born American citizen because that child was born subject to the laws and under the

⁴⁸⁴ FRANCIS WHARTON, *A TREATISE ON THE CONFLICT OF LAWS* 36 (2nd ed. 1881).

⁴⁸⁵ 2 Stat. 153 (1802).

⁴⁸⁶ Of course, such an alien parent might never actually become a naturalized citizen. The parent might return to their native country, or neglect to ever petition for naturalization, or pass away before the residency period was completed. The native-born child was an American regardless of whether the alien parent ever followed the child into citizenship.

governing authority of the United States, regardless of the foreign allegiances that parents *necessarily owed* at the time of the child's birth on American soil.

The case of local alien enemies would seem to be even more extreme and yet was explicitly anticipated by statute as European wars loomed in the early republic. An alien intending to naturalize into American citizenship was required by the Naturalization Act of 1802 to reside in the county for five years.⁴⁸⁷ If a war broke out between the United States and that resident alien's native country, that resident alien immediately became an enemy alien. An enemy alien was subject to deportation and other potential restrictions, but such a resident enemy alien could also be allowed to remain living peacefully in the United States for the duration of the war. The Naturalization Act of 1798 had repealed an earlier five-year residency requirement and replaced it with a fourteen-year requirement.⁴⁸⁸ That 1798 statute also specified that no alien whose native country was then at war with the United States "shall be then admitted to become a citizen of the United States," regardless of their satisfying the residency requirement or being willing to take the required oath to support the Constitution of the United States.⁴⁸⁹ During the War of 1812, Congress specifically authorized the naturalization of some residents "notwithstanding they shall be alien enemies," while taking care to note that this did not preclude the possibility that such an alien enemy might be detained and removed "at any time previous to the actual naturalization of such alien."⁴⁹⁰ If such a local alien enemy had a child while "residing within the limits, and under the jurisdiction of the United States,"⁴⁹¹ there would have been no doubt that such a child would have been a native-born American citizen. That child's alien parent was not only under the allegiance of and subject to a foreign power, but that foreign power was actively at war with the United States and the parent was therefore a legally designated alien enemy. The parent would have been legally barred from obtaining citizenship by the 1798 statute and in some cases by the 1813 statute.⁴⁹² And even so, that child

⁴⁸⁷ 2 Stat. 153 (1802).

⁴⁸⁸ 1 Stat. 566 (1798).

⁴⁸⁹ *Id.*, at 567.

⁴⁹⁰ 3 Stat. 53 (1813).

⁴⁹¹ 2 Stat. 153, 154 (1802).

⁴⁹² Similar oddities could arise given the racial exclusion included in the early naturalization laws, by which an alien who was not eligible for naturalized citizenship could give birth to a child who was a natural-born citizen. The Southern rule sometimes looked to the naturalization laws in order to exclude such children from birthright citizenship on racial

would have been easily recognized as a natural-born American. The language of the Fourteenth Amendment and its traditional interpretation would have accounted for such cases without difficulty, but the language of the Civil Rights Act and the restrictionist interpretation of the citizenship clause would exclude such children.

Of course, the same considerations extend to the categories immediately in play under President Trump's executive order, those involving the native-born children of unauthorized aliens and temporary visitors. The conventional reading of the Fourteenth Amendment's language would cover those children and for the same reason that it would cover the other children located in this portion of the Venn diagram. Those parents and their children are subject to the laws and governing authority of the United States, and thus according to the ordinary usage of the language of the Fourteenth Amendment at the time that amendment was drafted those children would have been included within the terms of the second prong of the citizenship clause. There is a reasonable argument that the language of the Civil Rights Act would have excluded such children from birthright citizenship precisely because their parents (and thus often those children) were subject to a foreign power and owed an allegiance to a foreign nation. But by that same logic, children in a large number of other situations would likewise be excluded from American citizenship. A restrictionist reading must either explain the surprising result that children that everyone understood to be native-born Americans were in fact excluded by the terms of the Fourteenth Amendment or explain why a line can be drawn that distinguishes these cases. The most natural course to

grounds. Antislavery Republicans specifically rejected such a conclusion as fundamentally flawed on the grounds that the discretionary restrictions that Congress might adopt in the naturalization laws had no significance for the broad sweep of the rule of native-born citizenship. *Compare* 4 Op. Att'y Gen. 147, 148 (1843) (Att'y Gen. Hugh Legare) ("even the *slave* is distinguished from the *alien*. He is a part of the family, and as soon as he passes into the class of freemen, is considered at once capable of all the *rights* which mere birth, under the *ligeance* of a country, bestows") *with* 10 Op. Att'y Gen. 328 (1862) (Att'y Gen. Edward Bates) ("the *free man of color* . . . if born in the United States, is a citizen of the United States") *with* 9 Op. Att'y Gen. 373, 373-374 (1859) (Att'y Gen. Jeremiah S. Black) ("I have to say that a free white person born in this country, of foreign parents, is a citizen of the United States") *and with* 1 Op. Att'y Gen. 506, 507 (1821) (Att'y Gen. William Wirt) ("if nativity, residence, and allegiance combined, (without the rights and privileges of a white man,) are sufficient to make him a 'citizen of the United States' in the sense of the constitution, then free negroes and mulattoes are eligible to those high offices, and may command the purse and sword of the nation").

escaping this dilemma is to recognize that the restrictionist reading is mistaken and does not properly characterize the citizenship rule adopted by the Fourteenth Amendment.

Congress abandoned the language of the Civil Rights Act for a reason. That language was simply a bad way to communicate the meaning that they intended to convey, and so they chose language that did a better job. The language of the citizenship clause of the Fourteenth Amendment is not synonymous with the language of the citizenship clause of the Civil Rights Act, even if the drafters of both texts were trying to express the same idea. The language of the Fourteenth Amendment is not just an inclusive way of saying the same thing as the Civil Rights Act, it clearly states a more inclusionary rule. If we are to ignore the language that the 39th Congress did adopt and replace it with the language that they abandoned, we should both appreciate the implications of doing so and have a very good reason for making that interpretive move.

v. Allegiance, Loyalty, and Political Jurisdiction

The case for adding an allegiance requirement for birthright citizenship seems to turn on what modern restrictionists wished the drafters of the Fourteenth Amendment had done rather than on what they actually did. Their modern concerns that granting universal birthright citizenship based simply on those who were subject to the laws of the United States did find a voice in nineteenth century debates. Chief Justice Roger Taney was that voice. The drafters of the Fourteenth Amendment had no interest in entrenching Taney's view about the need for political preconditions on birthright citizenship. They were instead rejecting that view and trying to make sure that it could never set public policy again.

In the late antebellum period, Southern jurists were increasingly attracted to something like what Solicitor General called "political jurisdiction."⁴⁹³ Such a conception of jurisdiction would apply to those who "become part of their political community."⁴⁹⁴ That form of so-called jurisdiction asks not who is subject to the laws and under the governing

⁴⁹³ Transcript of Oral Argument at 10, *Trump v. Barbara*, (No. 25-365) (U.S. argued Apr. 1, 2026) https://www.supremecourt.gov/oral_arguments/argument_transcripts/2025/25-365_l6gn.pdf.

⁴⁹⁴ *Id.*, at 24.

authority of the United States but who had already established themselves as “part of a political community.”⁴⁹⁵ It asks who are “members of the political community,”⁴⁹⁶ share our values, and can be entrusted with the high responsibility of voting and holding political office. It asks who should be welcomed into the body of “we the people.” It asks who will be “loyal.”⁴⁹⁷ It should mirror the requirements of naturalization, where a would-be citizen must “assure us of a man’s becoming a good citizen.”⁴⁹⁸ Simply put, the assessment of character and oaths of allegiance involved in the choice of who becomes a naturalized citizen “makes a lot more sense than making it turn on birth on U.S. soil alone.”⁴⁹⁹

These were very much the questions that Roger Taney thought had to be asked when determining who was or was not a natural-born citizen of the United States. Tennessee’s supreme court held in 1838 that citizens, “in the sense of the Constitution,” were only those who were “entitled to all privileges, immunities and rights, civil and political” of the nation.⁵⁰⁰ The title of citizen was simply not “applicable” to those whom the polity would prefer not to give all the political privileges that would determine the future of the nation.⁵⁰¹ Attorney General William Wirt had concluded in 1821 that the “high characteristic privileges of citizenship,” to be “eligible to those high offices [that] command the purse and sword of the nation,” had to be jealously guarded to exclude those who were not worthy of such privileges.⁵⁰² Chief Justice Roger Taney contended that native-birth was never enough to establish citizenship. Nativity must be paired with a consideration of who could be admitted as a “member of the community who forms the sovereignty,” who could be allowed to be “constituent members of this sovereignty.”⁵⁰³ It was Kentucky Senator Garrett Davis who echoed those views in the 39th Congress, and insisted that the boundaries of the “governing population, the population that is clothed with political power and political

⁴⁹⁵ *Id.*, at 61.

⁴⁹⁶ THOMAS H. LEE, *THE CITIZENSHIP CLAUSE’S RESIDENCE REQUIREMENT*, at 17 (2026).

⁴⁹⁷ Hamburger, *supra* note 42.

⁴⁹⁸ Lee, *supra* note 496, at 39, quoting Rep. Thomas Hartley.

⁴⁹⁹ *Id.*

⁵⁰⁰ *State v. Claiborne*, 19 Tenn. 331, 339 (1838).

⁵⁰¹ *Id.*

⁵⁰² *Rights of Free Virginia Negroes*, 1 Op. Att’y Gen. 506, 507 (1821).

⁵⁰³ *Dred Scott v. Sandford*, 60 U.S. 393, 422, 404 (1857).

sovereignty” had to be strictly patrolled.⁵⁰⁴ For Davis, Taney, and others who argued for this view, race was an important marker for who could and could not be admitted into the “governing population.” But race was just the specific application of their principle at that particular moment in time. The larger principle was that the current sovereign community should always hold the power to exercise discretion over who would be allowed to join its membership.

It might have been natural for the Reconstruction Congress to have adopted the same principle, while perhaps just disagreeing over the application. It could have taken the specific issue of race off the table while leaving in place a governmental discretion to determine the future make-up of the political community. They had before them proposals for constitutional text that would have done just that.⁵⁰⁵ They might have adopted a loyalty test so as to exclude from future citizenship status those with questionable “familial allegiance” to the Union⁵⁰⁶ or to the Lincolnian project of recasting the nation as one “dedicated to the proposition that all men are created equal.”⁵⁰⁷ They did not do so.

They instead constitutionally precluded the entire issue of government discretion over which of the native born should qualify for citizenship. They did not index native-birth citizenship to race or loyalty or familial ties to the community. They joined native-birth citizenship with jurisdiction, the standard legal term for saying “subject to their laws.”⁵⁰⁸ There was no such thing in American law in the nineteenth century as “exclusive-allegiance jurisdiction.”⁵⁰⁹ Nothing in the debates of Congress suggests that they wanted to invent such a concept.

To be sure, the members of the 39th Congress frequently discussed loyalty and disloyalty. But those discussions did not involve the Citizenship Clause or the qualifications for citizenship. They involved Reconstruction policy generally and the extension of the franchise. Republican Senator James Dixon, for example, thought there were two paths that Reconstruction could take. One “contemplates a careful, cautious, discriminating admission of a loyal

⁵⁰⁴ CONG. GLOBE, *supra* note 81, at 528 (1866).

⁵⁰⁵ See, e.g., *id.*, at 1303.

⁵⁰⁶ Lash, *Prima Facie Citizenship*, *supra* note 344, at 108.

⁵⁰⁷ ABRAHAM LINCOLN: SPEECHES AND WRITINGS 734 (Roy P. Basler ed., 1946).

⁵⁰⁸ CONG. GLOBE, *supra* note 81, at 2765.

⁵⁰⁹ Hamburger, *supra* note 42.

representation from loyal States and districts.”⁵¹⁰ It would draw “the true line of distinction between traitors and true men” in order to induce “the States lately in rebellion” to embrace the path of “loyalty and fidelity to the Government.”⁵¹¹ The alternative policy would exclude states from congressional representation “irrespective of its present loyalty or the character of the people.”⁵¹² Republican Senator Edgar Cowan had similar concerns about how decisions were being made regarding the exclusion of states from representation in Congress. Congress had instructed a committee to report back on the “condition” of the states of the former Confederacy and their readiness for political representation in Congress. Cowan thought that turned entirely on “their loyal condition.”⁵¹³ And “what is a loyal man? What must he do, say, think, or feel, to entitle him to this appellation?”⁵¹⁴ In the law, a “loyal man” was just “one who submitted himself to the laws.”⁵¹⁵ Respecting that duty of obedience to the law is exactly what the “rebellious man” had refused to do.⁵¹⁶ Cowan warned, however, that if Congress departed from this well-known, objective legal standard for identifying loyalty, “it is hard to see where the end is” or “who is to judge.”⁵¹⁷ Would sufficient loyalty and allegiance require that the individual, or the entire community, hold the right “views on suffrage” or “slavery” or “the secession opinion” or “which party these fellows would prefer?”⁵¹⁸

The fear of disloyalty, Republicans thought, was to be managed by manipulating suffrage, not citizenship. Republican Senator Richard Yates urged the rapid extension of suffrage to the freedman for he believed it would “introduce a loyal element” into the Southern electorate and would help “secure us a loyal representation from the South and a loyal people in the South.”⁵¹⁹ Republican Representative Thaddeus Stevens worried that “before any constitutional guards shall have been adopted Congress will be flooded by

⁵¹⁰ CONG. GLOBE., at 1047 (statement of Sen. Dixon).

⁵¹¹ *Id.*

⁵¹² *Id.*

⁵¹³ *Id.*, at 1135 (statement of Sen. Cowan).

⁵¹⁴ *Id.*

⁵¹⁵ *Id.*

⁵¹⁶ *Id.*

⁵¹⁷ *Id.*

⁵¹⁸ *Id.*

⁵¹⁹ *Id.*, at 3037 (statement of Sen. Yates).

rebels and rebel sympathizers.”⁵²⁰ But in that very same speech Stevens did not suggest that citizenship be restricted to loyalists. He instead praised the Citizenship Clause for declaring “this great privilege [of citizenship] to belong to every person born or naturalized in the United States.”⁵²¹ The “constitutional guardrails” Stevens wanted to see put in place was securing for the “loyal men of color” access to “the ballot-box.”⁵²² Changing the balance of power between the “loyal” and the “rebels” was a priority for the Reconstruction Congress, but no one suggested doing so through changes in the scope of birthright citizenship or implied that this distinction had any relevance to the concept of jurisdiction.

One reason why Republican legislators did not contemplate the option of restricting birthright citizenship was because they accepted the well-developed antebellum Northern view that the citizenship did not necessarily entail the right to vote or hold office.⁵²³ As Attorney General Edward Bates had emphasized, “it is manifest that American citizenship does not necessarily depend upon nor coexist with the legal capacity to hold office and the right of suffrage, either or both.”⁵²⁴ Once someone was made a citizen, whether by birth or naturalization, they might also be granted political privileges, but in 1866 these were distinct and separate decisions. It was precisely because they were distinct and separate decisions that the Fifteenth Amendment was necessary, and that native-born women did not already enjoy the right to vote. Birthright citizenship for all was a necessary but not a sufficient condition for changing the composition of the electorate.

Perhaps Republican legislators would have thought differently about the Citizenship Clause if they had been working with the modern assumption that citizenship and suffrage necessarily go together and therefore had been confronted by a different set of possible implications for granting universal birthright citizenship. But that was not the legal or political context in which they were making decisions. They might well have agreed that some notion of “exclusive allegiance” would have been an appropriate standard for extending the privilege of voting and holding office, but that was simply not the question before them when drafting the Citizenship Clause. It is completely

⁵²⁰ *Id.*, at 3148 (statement of Rep. Stevens).

⁵²¹ *Id.*

⁵²² *Id.*

⁵²³ See Whittington, *By Birth Alone*, *supra* note 44, at 493-494.

⁵²⁴ Citizenship, 10 Op. Att’y Gen. 382, 387 (1861).

anachronistic to assume that citizenship implied voting rights for the 39th Congress. They did not need to treat allegiance as a gate that had to be opened before the privilege of citizenship could be granted because the duties of allegiance necessarily followed as a matter of law from receiving citizenship status. Citizenship was “just” a matter of “obedience and loyalty” within the legal context of 1866.⁵²⁵ “Loyalty” was nothing more nor less than the faithful adherence to that legal duty of obedience to the law.⁵²⁶ The “obligations of loyalty” were the obligations of obedience.⁵²⁷ The rebels were disloyal precisely because they had broken their duty of obedience to the law of the proper sovereign, and they remained disloyal precisely to the extent that they remained in such a state of disobedience. Allegiance was the imperative legal duty that followed from citizenship. It was not a filter to be applied before natural-born citizenship was to be recognized.

CONCLUSION

The Citizenship Clause of the Fourteenth Amendment is neither mysterious nor indeterminate. It codifies a rule whose substance has been stable across four centuries of Anglo-American law: those born within the territorial reach of the sovereign's actual governing authority are, by that fact alone, natural-born citizens. The twin conditions of native birth and subjection to the jurisdiction of the United States do the same work today that Coke's “ligeance” and “obedience” did in 1608,⁵²⁸ that Blackstone's “allegiance” and “dominions” did a century and a half later,⁵²⁹ and that Kent's “jurisdiction” and “allegiance” did on the eve of the Civil War.⁵³⁰ The drafters of the Fourteenth

⁵²⁵ Hamburger, *supra* note 42.

⁵²⁶ JOHN BOUVIER, A LAW DICTIONARY, at 2:89 (“that which adheres to the law”); BURRILL, A LAW DICTIONARY, at 2:167 (“lawful”).

⁵²⁷ EZRA CHAMPION SEAMAN, COMMENTARIES ON THE CONSTITUTIONS AND LAWS, PEOPLES AND HISTORY, OF THE UNITED STATES 245 (1863).

⁵²⁸ *Calvin's Case* (1608) 7 Co. Rep. at 18a (“[A]ny place within the King's dominions may make a subject born, but any place within the King's dominions without obedience can never produce a natural subject.”). *See supra* Part II; Part III.i–iii.

⁵²⁹ 1 BLACKSTONE 366 (“[N]atural-born subjects are such as are born within the dominions of the crown of England; that is, within the ligeance, or as it is generally called, the allegiance of the king . . .”); *see also id.* at 373 (children of aliens born in England are “generally speaking, natural-born subjects”).

⁵³⁰ 2 JAMES KENT, COMMENTARIES ON AMERICAN LAW 39 (“Natives are all persons born within the jurisdiction and allegiance of the United States.”); *see supra* Part II.

Amendment did not invent a rule, disguise one, or leave one half-finished. They entrenched a rule already established in American practice and debased only by the aberrant Taney Court decision the Amendment was written to repudiate.⁵³¹

The restrictionist readings canvassed in this Article do not displace that rule. The parental-consent reading collapses on inspection of the common-law record: English courts adjudicated alienage by asking where a person was born and whether that place was then within the sovereign's actual possession, not by inquiring into the status of the person's parents.⁵³² The supposed "exception" from which the parental rule is extracted is Coke's treatment of land no longer under the King's actual obedience – a circumstance precisely inapposite to the ordinary case of birth upon possessed soil.⁵³³ The protection-based reading rests on a mistranslation of "protection," which at common law denoted access to the King's process rather than permission to enter the realm, and which could be withdrawn from an alien in amity only by attainder, outlawry, or a declaration of war, not by sovereign whim.⁵³⁴ The allegiance-based reading inverts the legal relationship that every competent nineteenth-century lawyer took for granted: allegiance followed from subjection to jurisdiction. Allegiance did not precede jurisdiction, and it was not a discretionary gate that officials could

⁵³¹ *Dred Scott v. Sandford*, 60 U.S. 393 (1857), *superseded by constitutional amendment*, U.S. CONST. amend. XIV, § 1. On the framers' self-understanding of the clause as repudiating *Dred Scott* while restating the antecedent common-law rule, see *supra* Part V.i (canvassing the debates in the 39th Congress); see also *United States v. Wong Kim Ark*, 169 U.S. at 675.

⁵³² See *supra* Part III.ii (collecting examples from Fitzherbert's Book of Entries and the Year Books in which alienage was determined by place of birth alone, without reference to parental status). The test recited by Coke was whether a person was "born in such a Country which is not within ligeance of the king." 7 Co. Rep. at 5b; see also *Wong Kim Ark*, 169 U.S. at 655–58 (reviewing the common-law authorities).

⁵³³ See *supra* Part III.iv. Professor Wurman's reading, which treats Coke's discussion of enemy-occupied land as the statement of a general parental rule, ignores the critical qualifier that the hypothetical enemies "possess a town or fort." 7 Co. Rep. at 18a; see Ilan Wurman, *Jurisdiction and Citizenship*, *supra* note 110 (cited and discussed *supra* Part III).

⁵³⁴ See *supra* Part IV.i–ii. On the identification of "protection" with process at common law, see 2 INSTITUTES 55 (the "three things . . . whereby every subject is protected" are "Rex, Lex, et Rescripta Regis"); see also *Shirley's Case*, discussed *supra* Part IV.ii.

raise and lower as they saw fit.⁵³⁵ None of the restrictionist paths, in short, leads anywhere that originalism permits us to go.

Taking the constitutional text seriously means taking seriously the text rejected and the text ratified. The 39th Congress had before it the language of the Civil Rights Act of 1866 and consciously abandoned it for the broader, more carefully constructed formulation of the Fourteenth Amendment – a change that Senator Trumbull, the author of the earlier version, himself acknowledged was “better” at communicating the rule that the Civil Rights Act had likewise sought to codify.⁵³⁶ The drafters chose the language of jurisdiction because it communicated the traditional common-law rule more accurately than the exclusionary formula they had first tried. To read the Fourteenth Amendment by reference to statutory language its drafters deliberately replaced is to undo the work they did. To read it by reference to a handful of isolated legislative remarks, stripped of their context and of the speakers’ own repeated declarations that the clause was “simply declaratory” of existing law, is to let a shadow eclipse the text.⁵³⁷

The stakes of this interpretive exercise should be plain. The Citizenship Clause was drafted to foreclose exactly the sort of discretion that modern restrictionist readings would restore to the political branches: the discretion to reclassify native-born Americans as something less than citizens based on contested judgments about their loyalty, their parents’ legal status, or their fitness for the political community.⁵³⁸ Once accepted as constitutionally permissible, that discretion that might be used to deny citizenship status to the native-born children of unauthorized aliens or temporary visitors today

⁵³⁵ See *supra* Part V.ii (canvassing Bouvier, Burrill, and Wharton on the three standard categories of allegiance – natural, local, and acquired – each predicated on, not constitutive of, subjection to the sovereign’s jurisdiction). The structure is captured in Representative Broomall’s formulation: “What is a citizen but a human being who by reason of his being born within the jurisdiction of a Government owes allegiance to that Government?” CONG. GLOBE, *supra* note 81, at 1262 (1866) (quoted *supra* Part V.iii).

⁵³⁶ CONG. GLOBE, *supra* note 81, at 2894 (1866) (statement of Sen. Trumbull); see *supra* Part V.iv.

⁵³⁷ CONG. GLOBE, *supra* note 81, at 1291 (1866) (statement of Rep. Bingham) (citizenship clause is “simply declaratory of what is written in the Constitution”); *Id.* at 2890 (statement of Sen. Howard) (citizenship clause “is simply declaratory of what I regard as the law of the land already”); see also *supra* Part V.iii.

⁵³⁸ See *supra* Part V.v. On the framers’ intent to put the rule “beyond all cavil for the present and for the future,” see CONG. GLOBE, *supra* note 81, at 2769 (1866) (statement of Sen. Wade).

could be used to exclude entirely different groups from citizenship tomorrow as political winds shift. The rule ratified and entrenched into the Constitution in 1868 is broad but not boundless, inclusive but not indiscriminate. It excludes the children of foreign ambassadors, the children of invading enemy forces in occupied territory, and – in the peculiar American context – members of the domestic dependent nations governed by their own law rather than by ours.⁵³⁹ It does not exclude the children of those whom the sovereign would, as a matter of present policy, prefer not to have welcomed. That distinction lies at the heart of the Citizenship Clause, and a faithful originalist recovery of its meaning must preserve it. The traditional rule has outlasted kings, revolutions, a civil war, and more than a few attempts to narrow it. It should outlast this one as well.

⁵³⁹ See *Cherokee Nation v. Georgia*, 30 U.S. (5 Pet.) 1, 17 (1831) (characterizing the tribes as “domestic dependent nations”); *Elk v. Wilkins*, 112 U.S. 94 (1884); see also *supra* Part II.